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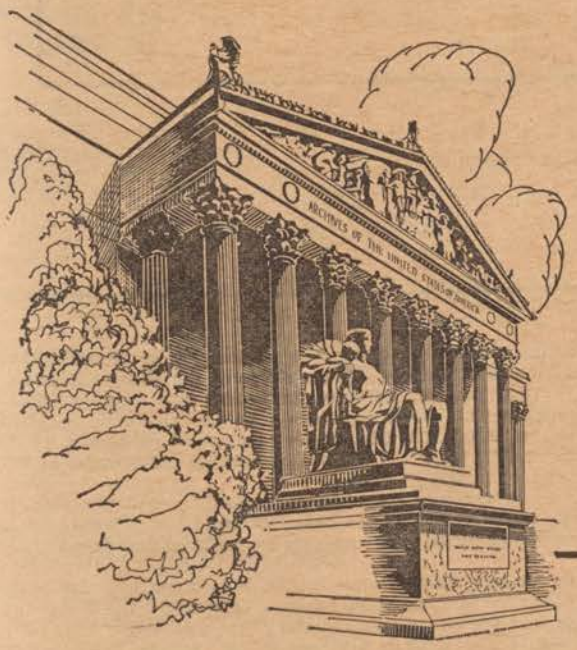
Friday, March 8, 1968 • Washington, D.C.

Pages 4305–4357

Agencies in this issue—

Agricultural Stabilization and Conservation Service
Atomic Energy Commission
Business and Defense Services Administration
Civil Aeronautics Board
Commodity Credit Corporation
Consumer and Marketing Service
Customs Bureau
Equal Employment Opportunity Commission
Federal Aviation Administration
Federal Maritime Commission
Federal Power Commission
Food and Drug Administration
Health, Education, and Welfare Department
Interior Department
Interstate Commerce Commission
Land Management Bureau
National Park Service
Post Office Department
Securities and Exchange Commission
Soil Conservation Service
State Department

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Announcing First 10-Year Cumulation

TABLES OF LAWS AFFECTED

in Volumes 70–79 of the

UNITED STATES STATUTES AT LARGE

Lists all prior laws and other Federal instruments which were amended, repealed, or otherwise affected by the provisions of public laws enacted during the years 1956–1965. Includes index of popular name acts affected in Volumes 70–79.

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PART 601—GREAT PLAINS CONSERVATION PROGRAM

Subpart—General Program Provisions

MISCELLANEOUS AMENDMENTS

The regulations governing the Great Plains Conservation Program, 22 F.R. 6851, as amended, are further amended as provided herein.

Section 601.13 *Conservation Materials or Services* (Authorizations) is amended by adding a new paragraph at the end thereof to read as follows:

§ 601.13 Conservation materials or services.

* * * * *

(e) The Administrator, SCS, shall: (1) Prescribe the procedure for authorizing the procurement of conservation materials or services to be cost shared in accordance with paragraph (a) of this section, and (2) designate the individual who may authorize the procurement of such materials or services.

§ 601.14 [Deleted]

Section 601.14 *Fair Prices for Conservation Materials or Services Acquired by a Producer Signatory to a Contract by Means of an Authorization* is amended by deleting the section in its entirety.

Section 601.15 *Materials and Services; Defective; Inspection and Analysis* is amended by renumbering it as § 601.14 and by further amending it to read as follows:

§ 601.14 Materials and services; defective; inspection and analysis.

(a) As a condition to the Secretary making payments under authorizations, opportunity must be given to inspect materials or services and to take necessary samples in accordance with instructions issued by the Administrator, SCS: *Provided, however,* That the inspection and analysis controls exercised by State regulatory authorities may be deemed a sufficient protection to the United States as to the quality standard of any material over which authority is exercised: *Provided, further,* That this shall not deprive the United States of the opportunity of the taking of additional samples nor shall it deprive the United States of the opportunity for the making of separate inspections of materials in any case where such further action is necessary to adequately protect the interest of the United States.

(b) Conservation material or service, furnished to a producer, to be cost shared in accordance with § 601.13(a) shall be deemed to be defective if such material or service does not meet the quality standard specified in the authorization issued in accordance with § 601.13(e).

(c) Conservation material or service deemed defective as provided herein may be accepted by the producer and the cost-share payment may be made for such defective material or service only if: (1) The material or service deemed defective will satisfactorily serve the purpose for which such material or service was procured, and (2) a deduction is made from the cost-share payment equal to the difference between the price of the conservation material or service of the quality specified and the value of the material or service furnished to the producer.

(d) The Administrator, SCS, shall designate the individual who shall determine the value of material or service deemed defective which is to be accepted as provided in paragraph (c) of this section.

A new § 601.15 is hereby added to read as follows:

§ 601.15 Payments due persons who have died, disappeared, or have been declared incompetent.

(a) Death: Where any person who is otherwise eligible to receive a cost-share payment dies before payment is received, payment may be made upon proper application therefor, without regard to claims of creditors other than the United States, in accordance with the following order of precedence:

(1) To the administrator or executor of the deceased person's estate.

(2) To the surviving spouse, if there is no administrator or executor and none is expected to be appointed, or if an administrator or executor was appointed but the administration of the estate is closed (i) prior to application by the administrator or executor for such payment, or (ii) prior to the time when a check, draft, or certificate issued for such payment to the administrator or executor is negotiated or used.

(3) If there is no surviving spouse, to the children of the deceased person in equal shares. Children of a deceased child of a deceased person shall be entitled to their parent's share of such payment, share and share alike. If there are no surviving children of a deceased child of such deceased person, the share of such payment which otherwise would have been made to such child of the deceased person shall be divided equally among the surviving children of the deceased person and the estates of any deceased child where there are surviving direct descendants.

(4) If there is no surviving spouse and no direct descendant, payment shall be made to the father and mother of the deceased person in equal shares, or the whole thereof to the surviving father or mother.

(5) If there is no surviving spouse, no direct descendant, and no surviving parent, payment shall be made to the brothers and sisters of the deceased person in equal shares. Children of a deceased brother or sister shall be entitled to their parent's share of the cost-share payment, share and share alike. If there are no surviving direct descendants of the deceased brother or sister of such deceased person, the share of the payment which otherwise would have been made to such brother or sister shall be divided equally among the surviving brothers and sisters of such deceased person and the estates of any deceased brothers or sisters where there are surviving direct descendants.

(6) If there is no surviving spouse, direct descendant, parent, or brothers or sisters or their descendants, the payment shall be made to the heirs-at-law in accordance with the law of the State of domicile of the deceased person.

If any person who is entitled to payment under the above order of precedence is a minor, payment of his share shall be made to his legal guardian, but if no legal guardian has been appointed, payment shall be made to his natural guardian or custodian for his benefit, unless the minor's share of the payment exceeds $1,000, in which event payment shall be made only to his legal guardian. Any cost-share payment which the deceased person could have received may be made jointly to the persons found to be entitled to such payment or shares thereof under this Section. A separate check may be issued to each person entitled to share in such payment.

(b) Disappearance: (1) In case any person otherwise eligible to receive a cost-share payment disappears before receiving payment, such payment may be made upon proper application therefor, without regard to claims of creditors other than the United States, to one of the following in the order mentioned:

(i) The conservator or liquidator of his estate, if one be duly appointed.

(ii) The spouse.

(iii) An adult son or daughter or grandchild for the benefit of his estate.

(iv) The mother or father for the benefit of his estate.

(v) An adult brother or sister for the benefit of his estate.

(vi) Such person as may be authorized under State law to receive payment for the benefit of his estate.

(2) A person shall be deemed to have disappeared if (i) he has been missing for a period of more than 3 months, (ii) a diligent search has failed to reveal his whereabouts, and (iii) such person has not communicated during such period with other persons who would be expected to have heard from him. Evidence of such disappearance must be presented to the State Conservationist in the form of a statement executed by the person making the application for payment, setting forth the above facts, and must be substantiated by a statement from a dis-

interested person who was well acquainted with the person who has disappeared.

(c) Incompetency: Where any person who is otherwise eligible to receive a cost-share payment is adjudged incompetent by a court of competent jurisdiction before payment is received, payment may be made, upon proper application therefor, without regard to claims of creditors other than the United States, to the guardian or committee legally appointed, payment, if not more than $1,000, may be made without regard to claims of creditors other than the United States, to one of the following in the order mentioned for the benefit of the incompetent person:

(1) The spouse.

(2) An adult son, daughter, or grandchild.

(3) The father or mother.

(4) An adult brother or sister.

(5) Such person as may be authorized under State law to receive payment for the incompetent.

(d) In case any person entitled to apply for a cost-share payment pursuant to the provisions of this § 601.15, dies, disappears, or is adjudged incompetent, as the case may be, after he has applied for such payment but before payment is received, payment may be made upon proper application therefor, without regard to claims of creditors other than the United States, to the person next entitled thereto in accordance with the order of precedence set forth herein.

(e) Definitions: As used in this subsection, the term "person" when relating to one who dies, disappears, or becomes incompetent, prior to receiving payment, means an individual producer who is due a cost-share payment pursuant to these regulations. "Children" shall include legally adopted children who shall be entitled to share in any cost-share payment in the same manner and to the same extent as legitimate children of natural parents. "Brother" or "sister," when relating to one who, pursuant to the regulations, is eligible to apply for a cost-share payment which is due a person who dies, disappears, or becomes incompetent prior to the receipt of such payment, shall include brothers and sisters of the half blood who shall be considered the same as brothers and sisters of the whole blood. "Payment" means issuance of a check by the Treasury Disbursing Officer pursuant to these regulations. (7 U.S.C. 1385)

Section 601.18 *Reconstitution of Operating Units* is amended to read as follows:

§ 601.18 Reconstitution of operating units.

If, for any cause:

(a) Two or more operating units as constituted at the time a contract is entered into are later combined, or

(b) One operating unit as constituted at the time the contract is entered into is later divided into two or more operating units, or

(c) Land is added to, or deleted from, an operating unit under a contract which significantly affects the plan of operations; the operating unit shall be considered reconstituted. When an operating unit is reconstituted, the contract shall be modified in accordance with procedures prescribed by the Administrator, SCS.

Section 601.20 *Successors-In-Interest* is amended by deleting paragraph (a) in its entirety and changing the remainder of the section to read as follows:

§ 601.20 Successors-in-interest.

(a) (1) If during the contract period all or a part of the right and interest of any producer signatory to the contract in the operating unit is transferred by sale or otherwise, the contract shall terminate as to such producer with respect to the acreage which has been transferred. In the event of such termination the producer whose right and interest is transferred shall forfeit all rights to further cost-share payments or grants under the contract with respect to the acreage which has been transferred and all cost-share payments or grants made to him under the contract shall be refunded with respect to such acreage unless the transferee who acquires his right and interest in such acreage is or becomes a party to a contract which will assume all obligations of the producer under the contract.

(2) The contract shall remain in full force and effect in accordance with the original terms and conditions of the contract with respect to the right and interest remaining in the producer, to be modified by the contracting officer and the producer signatory to the contract, however, to reflect the changes, if any, brought about by any transfer. In the event necessary modifications cannot be agreed to with the contracting officer, the producer shall refund all cost-share payments or grants theretofore made to him with respect to his remaining right and interest in the operating unit and to the producer in the contract. If this refund occurs, the producer would have no further rights or obligations under the contract.

(3) Except as this subpart may require otherwise, the transfer of all or part of the operating unit by any producer signatory to the contract shall not affect the rights and obligations of all other producers signatory to the contract.

(Sec. 4, 49 Stat. 164, as amended, 16 U.S.C. 590d)

Done at Washington, D.C., this 5th day of March 1968.

[SEAL] JOHN A. BAKER,
Assistant Secretary.

[F.R. Doc. 68-2876; Filed, Mar. 7, 1968; 8:47 a.m.]

Title 39—POSTAL SERVICE

Chapter I—Post Office Department

SUBCHAPTER C—INTERNATIONAL MAIL

APPENDIX—DIRECTORY OF INTERNATIONAL MAIL

Miscellaneous Amendments

The regulations of the Post Office Department are amended as follows:

I. In the appendix to Subchapter C—The Directory of International Mail under the individual country regulations make the following changes:

A. Under the country item Ecuador make the following changes:

1. Under Postal Union Mail a new item *Insurance* is added immediately following the item *Registration*.

POSTAL UNION MAIL

* * * * *

Insurance. Not applicable to Postal Union Mail.

* * * * *

2. Under Parcel Post insert the following sentence immediately following the first sentence in the item *Observations* to show that certificates of mailing are required for submission to consulate with invoices for parcels over $40.

PARCEL POST

* * * * *

Observations. * * * Certificates of mailing on Form 3817 or 3877 in quadruplicate must be submitted to the Consulate with the invoices. See Part 248 of this chapter. * * *

* * * * *

B. In the country item Greece make the following changes:

1. Under Postal Union Mail a new item *Insurance* is added immediately following the item *Registration* and the item *Special delivery* is modified to show that Special delivery service is established.

POSTAL UNION MAIL

* * * * *

Insurance. Not applicable to Postal Union Mail.

Special delivery. Yes. See Chart 5 in the front of the appendix for fees and other conditions.

* * * * *

2. Under Parcel Post a new item *Registration* is added immediately following the item *Special handling*.

PARCEL POST

* * * * *

Registration. No provision.

* * * * *

C. In the country item Nigeria under Parcel Post the item *Indemnity* is deleted and the items *Registration, Insurance,* and *Observations* are inserted in lieu thereof.

PARCEL POST

* * * * *

Indemnity. [Deleted]

Registration. No provision.

Insurance. No provision.

Observations. Service is suspended to certain offices. See "Observations" under Postal Union Mail.

* * * * *

(5 U.S.C. 301, 39 U.S.C. 501, 505)

TIMOTHY J. MAY,
General Counsel.

MARCH 4, 1968.

[F.R. Doc. 68-2868; Filed, Mar. 7, 1968; 8:46 a.m.]

Title 14—AERONAUTICS AND SPACE

Chapter I—Federal Aviation Administration, Department of Transportation

SUBCHAPTER F—AIR TRAFFIC AND GENERAL OPERATING RULES

[Reg. Docket No. 8741; Amdt. 585]

PART 97—STANDARD INSTRUMENT APPROACH PROCEDURES

Miscellaneous Amendments

The amendments to the standard instrument approach procedures contained herein are adopted to become effective when indicated in order to promote safety. The amended procedures supersede the existing procedures of the same classification now in effect for the airports specified therein. For the convenience of the users, the complete procedure is republished in this amendment indicating the changes to the existing procedures.

As a situation exists which demands immediate action in the interests of safety in air commerce, I find that compliance with the notice and procedure provisions of the Administrative Procedure Act is impracticable and that good cause exists for making this amendment effective within less than 30 days from publication.

In view of the foregoing and pursuant to the authority delegated to me by the Administrator (24 F.R. 5662), Part 97 (14 CFR Part 97) is amended as follows:

1. By amending § 97.11 of Subpart B to amend low or medium frequency range (L/MF), automatic direction finding (ADF) and very high frequency omnirange (VOR) procedures as follows:

ADF STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Lakewood Int	LOM (final)	Via OBK R 272° and 138° bearing to LOM.	2200	T-dn	300–1	300–1	200–½
				C-dn	500–1	500–1	500–1½
				S-dn-14L	500–1	500–1	500–1
Warren Int	LOM	Direct	2500	A-dn	800–2	800–2	800–2
Niles Int	LOM	Direct	3000				
Deerfield Int	LOM	Direct	2500				
OBK VOR	LOM	Direct	2500				

Radar available.
Procedure turn W side of crs, 318° Outbnd, 138° Inbnd, 2500′ within 10 miles.
Minimum altitude over LOM on final approach crs, 2200′.
Crs and distance, facility to airport, 138°—5.2 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.2 miles after passing LOM turn left to heading of 120° and climb to 1500′, make left-climbing turn to 3500′ and proceed to Evanston Int, via ORD R 075°.
NOTE: Runway 14L, LOM named "LIMA".
CAUTION: Takeoffs on Runway 32L, when weather is below 1000-3, climb to 2000′ MSL on runway heading prior to making left turn.
MSA within 25 miles of facility: 000°–090°—2500′; 090°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., LOM; Ident., OH; Procedure No. NDB(ADF) Runway 14L, Amdt. 9; Eff. date, 28 Mar. 68; Sup. Amdt. No. 8; Dated, 20 Jan. 68

Lakewood Int	LOM (final)	Via OBK R 272° and bearing 138° to LOM.	2200	T-dn	300–1	300–1	200–½
				C-dn	500–1	500–1	500–1½
				S-dn-14R	500–1	500–1	500–1
				A-dn	800–2	800–2	800–2
ORD VOR	LOM	Direct	2500				
OBK VOR	LOM	Direct	2500				
Warren Int	LOM	Direct	2500				
Niles Int	ORD VOR	Direct	3000				
Deerfield Int	LOM	Direct	2500				
Elgin Int	LOM	Direct	2500				

Radar available.
Procedure turn W side of crs, 318° Outbnd, 138° Inbnd, 2500′ within 10 miles.
Minimum altitude over facility on final approach crs, 2200′.
Crs and distance, facility to airport, 138°—5.3 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.3 miles after passing LOM, turn right to heading 155° and climb to 1500′ then make right-climbing turn to 3500′ and proceed to DPA VOR via DPA R 085° or, as directed by ATC, turn right to heading of 155° and climb to 1500′, then make right-climbing turn to 2500′ and proceed to Elgin Int via ORD R 271°.
NOTE: Runway 14R, LOM named "ROMEO".
CAUTION: Takeoffs on Runway 32L, when weather is below 1000-3, climb to 2000′ MSL on runway heading prior to making left turn.
MSA within 25 miles of facility: 000°–090°—2500′; 090°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., LOM; Ident., OR; Procedure No. NDB(ADF) Runway 14R, Amdt. 8; Eff. date, 28 Mar. 68; Sup. Amdt. No. 7; Dated, 20 Jan. 68

ADF STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Papi Int	LOM	Direct	2300	T-dn	300–1	300–1	200–½
Warren Int	ORD VOR	Direct	2500	C-dn	500–1	500–1	500–1½
ORD VOR	LOM	Direct	2300	S-dn-27R	400–1	400–1	400–1
OBK VOR	LOM	Direct	3000	A-dn	800–2	800–2	800–2
Lakewood Int	ORD VOR	Via OBK R 272° and ORD R 318°.	2500				
Deerfield Int	LOM	Direct	2300				
Niles Int	LOM	Direct	3000				

Radar available.
Procedure turn N side of crs, 088° Outbnd, 268° Inbnd, 2300′ within 10 miles.
Minimum altitude over facility on final approach crs, 2200′.
Crs and distance, facility to airport, 268°—4.5 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles after passing LOM, turn right to 285° heading, climb to 1500′ then make right-climbing turn to 3500′ and proceed to Lakewood Int via ORD VOR R 310° and OBK VOR R 272° or, as directed by ATC, turn right to 285° heading, climb to 1500′ then make climbing right turn to 3500′ and proceed direct OBK VOR.
NOTE: LOM named "Taft".
CAUTION: Takeoffs on Runway 32L, when weather is below 1000–3, climb to 2000′ MSL on runway heading prior to making left turn.
MSA within 25 miles of facility: 000°–090°—2500′; 090°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., LOM; Ident., IA; Procedure No. NDB(ADF) Runway 27R, Amdt. 7; Eff. date, 28 Mar. 68; Sup. Amdt. No. 7; Dated, 20 Jan. 68

CGT VOR	Stack Int	Via CGT R 356° and bearing 318° to RV LOM.	3500	T-dn	300–1	300–1	200–½
				C-dn	500–1	500–1	500–1½
				S-dn-32L	500–1	500–1	500–1
				A-dn	800–2	800–2	800–2
API VOR*	Stack Int	Direct	3500				
Niles Int	Stack Int	Via API R 088° and bearing 318° to RV LOM.	3500				
Stack Int	LOM (final)	318°—5 miles	2300				
ORD VOR*	Stack Int	Direct	3500				
OBK VOR*	Stack Int	Direct	3500				
Lakewood Int	ORD VOR	Via OBK VOR R 272° and ORD R 318°.	3500				

Radar available.
Procedure turn E side of crs, 138° Outbnd, 318° Inbnd, 3500′ within 10 miles of Stack Int.
Minimum altitude over LOM on final approach crs, 2300′; over Stack Int, 3500′.
Crs and distance, LOM to airport, 318°—5.6 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.6 miles after passing LOM, turn left to 300° heading climb to 2000′ then make left-climbing turn to 3500′ and proceed direct to DPA VOR.
NOTES: (1) ADF/VOR receivers or radar required. (2) Runway 32L LOM named River Grove. (3) *Requires holding pattern entry at Stack Int during nonradar operation. (4) All transition to Stack Int except as noted.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000–3, climb to 2000′ MSL on Runway heading prior to making left turn.
MSA within 25 miles of facility: 000°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., LOM; Ident., RV; Procedure No. NDB(ADF) Runway 32L, Amdt. 8; Eff. date, 28 Mar. 68; Sup. Amdt. No. 5; Dated, 20 Jan. 68

CGT VOR	Park Int	Via CGT R 356° and bearing 318° to ID LOM.	3500	T-dn	300–1	300–1	200–½
				C-dn	500–1	500–1	500–1½
				S-dn-32R	500–1	500–1	500–1
API VOR*	Park Int	Direct	3500	A-dn	800–2	800–2	800–2
Niles Int	Park Int	Via API R 088° and bearing 318° to ID LOM.	3500				
ORD VOR*	Park Int	Direct	3500				
OBK VOR*	Park Int	Direct	3500				
Park Int	LOM (final)	Direct	2300				
Lakewood Int	ORD VOR	Via OBK R 272° and ORD VOR R 318°.	3500				

Radar available.
Procedure turn E side of crs, 138° Outbnd, 318° Inbnd, 3500′ within 10 miles of Park Int.
Minimum altitude over LOM on final approach crs, 2300′; over Park Int on final approach crs, 3500′. Crs and distance, LOM to airport 318°—6 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6 miles after passing LOM turn right to 335° heading, climb to 1500′, then make right-climbing turn to 3500′ and proceed to Evanston Int via ORD R 075°.
NOTES: (1) Dual VOR receivers or radar required. (2) LOM 32R named Indian. (3) *Requires holding pattern entry at Park Int during nonradar operation. (4) All transitions to Park Int except as noted.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000–3, climb to 2000′ MSL on runway heading prior to making left turn.
MSA within 25 miles of facility: 000°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., LOM; Ident., ID; Procedure No. NDB(ADF) Runway 32R, Amdt. 6; Eff. date, 28 Mar. 68; Sup. Amdt. No. 5; Dated, 20 Jan. 68

VOR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Papi Int	Navy Int (final)	Via ORD R 038°.	2600	T-dn	300–1	300–1	200–½
				C-dn	500–1	500–1	500–1½
OBK VOR	Navy Int	Direct	2600	S-dn-22	400–1	400–1	400–1
Niles Int	ORD VORTAC	Direct	3000	A-dn	800–2	800–2	800–2
Warren Int	ORD VORTAC	Direct	2600				

Radar available.
Procedure turn N side of crs, 038° Outbnd, 218° Inbnd, 2600′ within 10 miles of Navy Int.
Minimum altitude over Navy Int on final approach crs, 2600′; over Rand Int, 1800′.
Crs and distance, Rand Int to VOR, 218°—3.6 miles.
If visual contact not established upon descent to authorized landing minimums of if landing not accomplished within 0 mile of ORD VOR, climb to 3500′ and proceed to DPA VOR via ORD, R 218° and DPA, R 085° or, as directed by ATC, climb to 1500′ on ORD, R 218°, then make right-climbing turn to 2500′ and proceed to Elgin Int via ORD, R 271°.
NOTE: Dual VOR receivers or radar required.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000–3, climb to 2000′ MSS on runway heading prior to making left turn. MSA within 25 miles of facility: 000°–90°—2500′; 090°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., L-BVORTAC; Ident., ORD; Procedure No. VOR Runway 22, Amdt. 7; Eff. date, 28 Mar. 68; Sup. Amdt. No. 6; Dated, 20 Jan. 68

COL VOR	Arlene Int	Via COL R 046°-	2000	T-dn	300–1	300–1	200–½
				LDIN-dn-13L%	800–2	800–2	800–2
				LDIN-dn-13R%	1000–3	1000–3	1000–3
Arlene Int	CRI VOR (final)	Via R 221	**1000	C-dn	NA	NA	NA
				A-dn	1000–3	1000–3	1000–3

Radar available.
Procedure turn not authorized.
Minimum altitude over facility on final approach crs, **1800′.
Crs and distance, facility to lead-in lights, 041°—1.7 miles. Arc distance via lead-in lights to Runway 13L, 4.8 miles; 13R, 3.7 miles.
If visual contact not established upon descent to authorized landing minimums within 2.5 miles after passing CRI VOR, at the intersection of the 295° radial of JFK VOR, or if landing not accomplished proceed direct to JFK VOR thence via JFK, R 077° to DPK VOR climbing to 3000′. Hold E, 1-minute left turns, Inbnd crs, 257°.
AIR CARRIER NOTE: Sliding scale not authorized.
%LDIN (lead-in light system) must be operational to execute this procedure. When visual reference established at 2.5 miles beyond CRI VOR, follow lead-in lights to Runway 13L or 13R. Do not descend below 500′ until runway threshold in sight.
**When directed by ATC, cross CRI VOR or JFK VOR, R 280° between 1000′ and 2000′.
MSA within 25 miles of facility: 000°–090°—2000′; 090°–270°—1600′; 270°–360°—2600′.

City, New York; State, N.Y.; Airport name, John F. Kennedy International; Elev., 12′; Fac. Class., T-VORW; Ident., CRI; Procedure No. VOR-13L/13R, Amdt. 5; Eff. date, 28 Mar. 68; Sup. Amdt. No. 4; Dated, 2 Apr. 66

2. By amending § 97.11 of Subpart B to delete low or medium frequency range (L/MF), automatic direction finding (ADF) and very high frequency omnirange (VOR) procedures as follows:

El Dorado, Ark.—Goodwin Field, VOR 1, Amdt. 4, 29 Oct. 1966 (established under Subpart C).

Smithfield, R.I.—North Central State, VOR 1, Orig., 28 Nov. 1964 (established under Subpart C).

3. By amending § 97.11 of Subpart B to cancel low or medium frequency range (L/MF), automatic direction finding (ADF) and very high frequency omnirange (VOR) procedures as follows:

Amarillo, Tex.—Amarillo AFB/Municipal, VOR 2, Amdt. 2, 7 Aug. 1965.

Amarillo, Tex.—Tradewind, VOR 1, Amdt. 4, 9 Apr. 1966.

4. By amending § 97.17 of Subpart B to establish instrument landing system (ILS) procedures as follows:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Niles Int	OM	Via OBK R 146° and E crs LOC.	3000	T-dn%	300-1	300-1	200-½
				C-dn	500-1	500-1	500-1½
				S-dn-27L*	400-1	400-1	400-1
Warren Int	ORD VOR	Direct	2500	A-dn	800-2	800-2	800-2
Lakewood Int	ORD VOR	Via OBK R 272° and ORD R 318°.	2500				
ORD VOR	OM	Direct	2500				
OBK VOR	ORD VOR	Direct	2500				
API VOR	ORD VOR	Direct	2500				

Radar available.
Procedure turn N side of crs, 088° Outbnd, 268° Inbnd, 2500′ within 10 miles.
Minimum altitude over facility on final approach crs, 2200′.
Crs and distance, facility to airport, 268°—4.2 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.2 miles of OM, turn left to 250° heading, climb to 1500′ then make climbing left turn to 3500′ and proceed to DPA VOR via R 085°.
NOTE: Back crs unusable. No glide slope. Inoperative table not applicable. OM named Wilson.
CAUTION: When conducting parallel approach parallel ILS Runways 27 L and R procedure must be used.
%RVR 2400′ authorized Runways 14L, 14R, 32L, 32R, and 27R. Takeoffs on Runway 32L when weather is below 1000-3, climb to 2000′ on runway heading prior to making left turn.
*Reduction not authorized for REIL.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-TSL; Procedure No. ILS Runway 27L, Amdt. Orig.; Eff. date, 28 Mar. 68 or upon commissioning of facility

Lawrence Int	Wilson OM	268°—3.55 miles	2200	T-dn	300-1	300-1	200-½
				C-dn	NA	NA	NA
				S-dn-27R*$	200-½	200-½	200-½
				S-dn-27L@	400-1	400-1	400-1
				A-dn-27R	600-2	600-2	600-2
				A-dn-27L	800-2	800-2	800-2

Radar required.
Procedure turn not authorized.
Crs and distance, OM to 27L, 268°; LOM to 27R, 268°.
Runway 27L: Minimum altitude at Lawrence Int Inbnd, 3200′ (2200′ when authorized by ATC), minimum altitude over OM, 2200′.
Runway 27R: Minimum altitude at glide slope interception Inbnd, 2200′. Altitude of glide slope and distance to approach end of runway at OM, 27R, 2130′—4.5 miles; 27L, no glide slope, 4.2 miles; at MM, 27R, 860′—0.6 mile, 27L, no MM.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished, Runway 27L: Turn left to 250° heading, climb to 1500′ then make left-climbing turn to 3500′ and proceed to DPA VOR via R 085°. Runway 27R: Turn right to 285° heading, climb to 1500′ then make right-climbing turn to 3500′ and proceed direct to OBK VOR.
NOTES: (1) Use of this procedure is mandatory when conducting a parallel ILS approach, and is authorized only when airborne 75 mc (or ADF), and Localizer receivers are operating simultaneously. A radar fix in lieu of Lawrence Int will be provided upon pilot's request. (2) When any required airborne receiver in note 1 is malfunctioning or a parallel approach is not desired, immediate notification of approach control is mandatory. (3) When advised that parallel operations are in progress, the pilot will check his authorization and restrictions for Runways 27 L and R, and be prepared to accept or reject an approach to either. (4) Back crs unusable Runways 27 L and R.
*RVR 2400′ authorized.
$400-¾ required when glide slope not utilized and 400-½ authorized with operative ALS except for 4-engine turbojets.
@Reduction not authorized for HIRL Runway 27L.
@No glide slope on Runway 27L.
@Inoperative table not applicable on Runway 27L.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-TSL and I-IAC; Procedure No. Parallel ILS Runways 27 L and R, Amdt. Orig.; Eff. date, 28 Mar. 68 or upon commissioning of I-TSL

5. By amending § 97.17 of Subpart B to amend instrument landing system (ILS) procedures as follows:

ILS STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
API VOR	York Int	Via API R 360°	2500	T-dn	300–1	300–1	200–½
Tiger Int	York Int	Direct	2500	C-dn	500–1	500–1	500–1½
DPA VOR	LOM	Direct	2500	S-dn-4#	400–1	400–1	400–1
ORD VOR	LOM	Direct	2500	A-dn	800–2	800–2	800–2
Niles Int	LOM	Direct	2500				
Bartlett Int	LOM	Direct	2500				
OBK VOR	LOM	Direct	2500				
York Int	LOM (final)	Direct	1700				

Radar available.
Procedure turn S side of crs, 218° Outbnd, 038° Inbnd, 2500′ within 10 miles.
Minimum altitude over LOM on final approach crs, 1700′.
Crs and distance, LOM to airport, 038°—3.6 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.6 miles of LOM, climb to 2500′ turn left and proceed to OBK VOR via OBK VOR, R 170°.
NOTES: (1) LOM designated Pine. (2) Final approach from holding pattern at LOM not authorized. Procedure turn required.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000-3, climb to 2000′ MSL on runway heading prior to making left turn.
#400–¾ authorized with operative SALS except for 4-engine turbojets.
MSA within 25 miles of HN LOM: 000°–090°—2500′; 090°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-HNA; Procedure No. LOC Runway 4, Amdt. 3; Eff. date, 28 Mar. 68; Sup. Amdt. No. ILS Runway 4, Amdt. 2; Dated, 20 Jan. 68

Lakewood Int	LOM (final)	Via OBK R 272° and NW crs OHA ILS.	2200	T-dn%	300–1	300–1	200–½
				C-dn	500–1	500–1	500–1½
				S-dn-14L#*	200–½	200–½	200–½
Niles Int	ORD VOR	Direct	3000	A-dn	600–2	600–2	600–2
ORD VOR	LOM	Direct	2500	Category II special authorization required: TDZ elevation, 652′. Decision heights—S-dn-14L, DH 150, RVR 1600′, 802′ MSL, RA 151′; S-dn-14L, DH 100, RVR 1200′, 752′ MSL, RA 104′.			
Warren Int	LOM	Direct	2500				
Deerfield Int	LOM	Direct	2500				
OBK VOR	LOM	Direct	2500				

Radar available.
Procedure turn W side of crs, 318° Outbnd, 138° Inbnd, 2500′ within 10 miles.
Minimum altitude at glide slope interception Inbnd, 2200′.
Altitude of glide slope and distance to approach end of runway at LOM, 2090′—5.2 miles; at MM, 864′—0.6 mile.
Distance Inner Marker to 14L, 1190′.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.2 miles of OM turn left to a heading of 120° and climb to 1500′, then make left-climbing turn to 3500′ and proceed to Evanston Int via ORD, R 075°.
Category II missed approach: Climb to 1500′, then make left-climbing turn to 3500′ and proceed to Evanston Int via ORD, R 075°, if contact with visual guidance system not established at DH. Supplementary charting information: Distance DH 150 to runway—2325′.
MSA within 25 miles of LOM: 000°–090°—2500′; 090°–180°—3000′; 180°–360°—2500′.
NOTE: Back crs unusable.
CAUTION: Takeoffs Runway 32L when weather is below 1000-3 climb to 2000′ MSL on runway heading prior to making left turn. When conducting a parallel approach, parallel ILS 14 R and L procedure must be used.
#500–¾ required when glide slope not utilized, 500–½ authorized with operative ALS except for 4-engine turbojets.
%RVR 2400′, authorized for takeoff on Runways 14L and 14R, and 32L and 32R, and 27R.
*RVR 2000′, 4-engine turbojets; RVR 1800′, other aircraft.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-OHA; Procedure No. ILS Runway 14L, Amdt. 14; Eff. date, 28 Mar. 68; Sup. Amdt. No. 13; Dated, 24 Feb. 68.

Lakewood Int	LOM (final)	Via OBK R 272° and NW crs ORD ILS.	2200	T-dn#	300–1	300–1	200–½
				C-dn	500–1	500–1	500–1½
				S-dn-14R%*	200–½	200–½	200–½
ORD VOR	LOM	Direct	2500	A-dn	600–2	600–2	600–2
Warren Int	LOM	Direct	2500				
Elgin Int	LOM	Direct	2500				
Niles Int	ORD VOR	Direct	3000				
Deerfield Int	LOM	Direct	2500				
OBK VOR	LOM	Direct	2500				

Radar available.
Procedure turn W side of crs, 318° Outbnd, 138° Inbnd, 2500′ within 10 miles.
Minimum altitude at glide slope interception Inbnd, 2200′.
Altitude of glide slope and distance to approach end of runway at OM, 2140′—5.3 miles; at MM, 861′—0.5 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.3 miles after passing LOM, turn right to a heading of 155° and climb to 1500′, then make a right-climbing to 3500′ and proceed to DPA VOR via R 085° or, when directed by ATC, turn right to heading of 155° and climb to 1500′ then make right-climbing turn to 2500′ and proceed to Elgin Int via ORD, R 271°.
CAUTION: When conducting a parallel approach, parallel ILS–14 R and L procedure must be used.
NOTES: (1) Runway 14R LOM named "ROMEO". (2) Back crs unusable.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000–3, climb to 2000′ MSL on runway heading prior to making left turn.
% 500–¾ required when glide slope not utilized and 500–½ authorized with operative ALS, except for 4-engine turbojets.
*2400′ RVR.
RVR 2400′, authorized Runways 14 L and R, 32 L and R, and 27R.
MSA within 25 miles of O R LOM: 000°–090°—2500′; 090°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-ORD; Procedure No. ILS Runway 14R, Amdt. 13; Eff. date, 28 Mar. 68; Sup. Amdt. No. 12; Dated, 20 Jan. 68

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
Meadows Int	LOM (final when glide slope not utilized).	138°—3.9 miles	2100	T-dn	300–1	300–1	200–½
				C-dn	NA	NA	NA
				S-dn–14 R and L#	200–½	200–½	200–½
				A-dn	600–2	600–2	600–2

Radar required.
Procedure turn not authorized.
Crs, LOM to Runway 14R, 138°; LOM to Runway 14L, 138°.
Runway 14R: Minimum altitude at glide slope interception Inbnd, $3200′ (2100′ when authorized by ATC).
Runway 14L: Minimum altitude at Meadows Int or glide slope interception Inbnd, $3200′ (2100′ when authorized by ATC).
Altitude of glide slope and distance to approach end of runway at LOM, 14R: 2140′—5.3 miles; 14L: 2090′—5.2 miles; at MM, 14R: 861′—0.5 mile; 14L: 864′—0.6 mile.
When advised by the controller or if visual contact not established upon descent to authorized landing minimums or if landing not accomplished: Runway 14R—Turn right to heading of 155° and climb to 1500′, then make right-climbing turn to 3500′ and proceed to DPA VOR via R 085°. Runway 14L—Turn left to heading of 120° and climb to 1500′, make left-climbing turn to 3500′ and proceed to Evanston Int via ORD, R 075°.
#Runway 14 L and R: 500–¾ required when glide slope not utilized; 500–½ authorized with operative ALS, except for 4-engine turbojets. 2400′ RVR.
$Meadows Int established where 3200′ altitude intercepts glide slope. When glide slope inoperative, begin descent at Meadows Int.
NOTES: (1) Use of this procedure is mandatory when conducting a parallel ILS approach, and is authorized only when airborne 75 mc (or ADF), and localizer receivers are operating simultaneously. A radar fix in lieu of Meadows intersection will be provided upon pilot's request. (2) When any required airborne receiver in note (1) is malfunctioning or a parallel approach is not desired, immediate notification of approach control is mandatory. (3) When advised that parallel operations are in progress, the pilot will check his authorization and restrictions for Runways 14 L and R, and be prepared to accept or reject an approach to either. (4) Back crs unusable Runways 14 L and R.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-ORD and I-OHA; Procedure No. Parallel ILS Runways 14 L and R, Amdt. 8; Eff. date, 28 Mar. 68; Sup. Amdt. No. 7; Dated, 20 Jan. 68

OBK VOR	Navy Int	Direct	2600	T-dn	300–1	300–1	200–½
Papi Int	Navy Int (final)	HNA ILS BC	2600	C-dn*	500–1	500–1	500–1½
Deerfield Int	Navy Int (final)	Via OBK R# 091° and HNA ILS BC.	2600	S-dn–22*#	400–1	400–1	400–1
				A-dn*	800–2	800–2	800–2

Radar available.
Procedure turn N side of crs, 038° Outbnd, 218° Inbnd, 2600′ within 10 miles of Navy Int.
Minimum altitude over Navy Int on final approach crs, 2600′; over Dan Int, 1900′.
Crs and distance, Navy Int to airport, 218°—6.2 miles; Dan Int to airport, 218°—3.9 miles.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 3.9 miles of DAN Int, climb to 3500′ and proceed to DPA VOR via front crs, 218° and DPA, R 085°.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000–3, climb to 2000′ MSL on runway heading prior to making left turn.
*Dual VOR receivers or radar required.
#Reduction not authorized for REIL.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-HNA; Procedure No. LOC (BC) Runway 22, Amdt. 2; Eff. date, 28 Mar. 68; Sup. Amdt. No. 1; Dated, 20 Jan. 68

Papi Int	LOM	Direct	2300	T-dn%	300–1	300–1	200–½
ORD VOR	LOM	Direct	2300	C-dn	500–1	500–1	500–1½
OBK VOR	LOM	Direct	3000	S-dn–27R#*	200–½	200–½	200–½
Lakewood Int	ORD VOR	Via OBK R 272° and ORD R 318°.	2500	A-dn	600–2	600–2	600–2
Niles Int	LOM	Direct	3000				
Warren Int	ORD VOR	Direct	2500				
Deerfield Int	LOM	Direct	2300				

Radar available.
Procedure turn N side E crs, 088° Outbnd, 268° Inbnd, 2300′ within 10 miles.
Minimum altitude at glide slope interception Inbnd, 2200′.
Altitude of glide slope and distance to approach end of runway at OM, 2130′—4.5 miles; at MM, 860′—0.6 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 4.5 miles after passing LOM, turn right to 285° heading, climb to 1500′, then make right-climbing turn to 3500′ and proceed to Lakewood Int via ORD VOR, R 310° and OBK VOR, R 272° or, as directed by ATC, turn right to 285° heading, climb to 1500′, then make climbing right turn to 3500′ and proceed direct OBK VOR.
NOTE: LOM named "Taft". Back crs unusable.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000–3, climb to 2000′ MSL on runway heading prior to making left turn.
CAUTION: When conducting a parallel approach—parallel ILS Runway 27 L and R procedure must be used.
%RVR 2400′ authorized Runways 14L, 14R, 32L, 32R, and 27R.
#RVR 2400′.
*400–¾ required when glide slope not utilized and 400–½ authorized with operative ALS except for 4-engine turbojets.
MSA within 25 miles of IA LOM: 000°–090°—2500′; 090°–180°—3000′; 180°–360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-IAC; Procedure No. ILS Runway 27R, Amdt. 9; Eff. date, 28 Mar. 68; Sup. Amdt. No. 8; Dated, 20 Jan. 68

ILS STANDARD INSTRUMENT APPROACH PROCEDURE—Continued

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
API VOR	ORD VOR	Direct	3500	T-dn	300-1	300-1	200-½
CGT VOR	Stack Int	Via CGT R 356° and SE crs RVG ILS.	3500	C-dn	500-1	500-1	500-1½
				S-dn-32L %, 32R	200-½	200-½	200-½
				A-dn	600-2	600-2	600-2
Niles Int	Stack Int	Via API R 088° and SE crs RVG ILS.	3500				
ORD VOR*	Stack Int	Direct	3500				
OBK VOR*	Stack Int	Direct	3500				
Stack Int	LOM (final)	318°—5 miles	2300				
Lakewood Int	ORD VOR	Via OBK R 272° and ORD VOR R 318°.	3500				

Radar available.
Procedure turn E side of crs, 138° Outbnd, 318° Inbnd, 3500′ within 10 miles of Stack Int.
Minimum altitude at glide slope interception Inbnd 2300′, over Stack Int, 3500′.
Crs and distance, LOM to airport, 318°—5.6 miles.
Altitude of glide slope and distance to approach end of runway at OM, 2180′—5.6 miles; at MM, 860′—0.6 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 5.6 miles after passing LOM, turn left to 300° heading, climb to 2000′, then make left-climbing turn to 3500′ and proceed direct to DPA VOR.
NOTES: (1) Dual VOR receivers or radar required. (2) 400-¾ required when glide slope not utilized and 400-½ authorized with operative ALS, except for 4-engine turbojets. (3) Runway 32L LOM named River Grove. (4) Caution—when conducting a parallel approach—parallel ILS 32 L and R procedure must be used. (5) All transition to Stack Int except as noted. (6) Back crs unusable.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000-3, climb to 2000′ MSL on runway heading prior to making left turn.
*Requires holding pattern entry at Stack Int during nonradar operation.
#RVR 2400′, authorized Runways 14 L and R, 32 L and R, and 27R.
%RVR 2400′.
MSA within 25 miles of RV LOM: 000°-180°—3000′; 180°-360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class., ILS; Ident., I-RVG; Procedure No. ILS Runway 32L, Amdt. 6; Eff. date, 28 Mar. 68; Sup. Amdt. No. 5; Dated, 20 Jan. 68

API VOR	ORD VOR	Direct	3500	T-dn@	300-1	300-1	200-½
OBK VOR#	Park Int	Direct	3500	C-dn	500-1	500-1	500-1½
CGT VOR	Park Int	Via CGT R 356° and SE crs IDN ILS.	3500	S-dn-32R*$	200-½	200-½	200-½
				A-dn	600-2	600-2	600-2
Niles Int	Park Int	Via API R 088° and SE crs IDN ILS.	3500				
ORD VOR#	Park Int	Direct	3500				
Park Int	LOM (final)	Direct	2300				
Lakewood Int	ORD VOR	Via OBK R 272° and ORD VOR, R 318°.	3500				

Radar available.
Procedure turn E side of crs, 138° Outbnd, 318° Inbnd, 3500′ within 10 miles of Park Int.
Minimum altitude over Park Int on final approach crs 3500′.
Crs and distance, OM to airport, 318°—6 miles.
Altitude of glide slope and distance to approach end of runway at OM, 2300′—6 miles; at MM, 855′—0.5 mile.
If visual contact not established upon descent to authorized landing minimums or if landing not accomplished within 6 miles after passing LOM, turn right to 335° heading, climb to 1500′, then make right-climbing turn to 3500′ and proceed to Evanston Int via ORD VOR, R 075°.
NOTES: (1) Dual VOR receivers or radar required. (2) Caution when conducting a parallel approach, parallel ILS Runways 32 L and R procedure must be used. (3) #Requires holding pattern entry at Park Int during nonradar operations. (4) All transitions to Park Int except as noted. (5) Back crs unusable.
CAUTION: Takeoffs on Runway 32L, when weather is below 1000-3, climb to 2000′ MSL on runway heading prior to making left turn.
*400-¾ required when glide slope not utilized and 400-½ authorized with operative ALS, except for 4-engine turbojets.
@RVR 2400′ authorized Runways 32 L and R, 14 L and R, and 27R.
$RVR 2400′.
MSA within 25 miles of ID LOM: 000°-180°—3000′; 180°-360°—2500′.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667; Fac. Class., ILS; Ident., I-IDN; Procedure No. ILS Runway 32R, Amdt. 4; Eff. date, 28 Mar. 68; Sup. Amdt. No. 3; Dated, 20 Jan. 68

Canal Int	LOM (final when glide slope not utilized).	318°—6.6 miles	2300	T-dn	300-1	300-1	200-½
				C-dn	NA	NA	NA
Congress Int	LOM (final when glide slope not utilized).	318°—3.05 miles	2300	S-dn-32L, 32R#@	200-½	200-½	200-½
				A-dn	600-2	600-2	600-2

Procedure turn not authorized. Radar required.
Crs, LOM to 32L—318°; LOM to 32R—318°.
Runway 32L: Minimum altitude at *Congress Int or glide slope interception Inbnd, 3000′.
Runway 32R: Minimum altitude at **Canal Int or glide slope interception Inbnd, 4000′.
Altitude of glide slope and distance to approach end of runway at OM, 32L—2180′—5.6 miles; 32R—2300′—6 miles.
Altitude of glide slope and distance to approach end of runway at MM: 32L—860′—0.6 mile; 32R—855′—0.5 mile.
When advised by controller or if visual contact not established upon descent to authorized landing minimums or if landing not accomplished: Runway 32L—Turn left to 300° heading, climb to 2000′, then make left-climbing turn to 3500′ and proceed direct to DPA VOR. Runway 32R—Turn right to 335° heading, climb to 1500′, then make right-climbing turn to 3500′ and proceed to Evanston Int via ORD, R 075°.
#Runways 32L and 32R: 400-¾ required when glide slope not utilized and 400-½ authorized with operative ALS, except for 4-engine turbojets.
@RVR 2400′.
*Congress Int established where 3000′ altitude intercepts glide slope. When glide slope inoperative, begin descent at Congress Int.
**Canal Int established where 4000′ altitude intercepts glide slope. When glide slope inoperative, begin descent at Canal Int.
NOTES: (1) Use of this procedure is mandatory when conducting a parallel ILS 32 L & R approach, and is authorized only when airborne 75 mc (or ADF) and localizer receiver are operating simultaneously. Radar fixes in lieu of Congress or Canal intersections will be provided on pilot's request. (2) When any required airborne receiver in note (1) is malfunctioning or a parallel approach is not desired, immediate notification of approach control is mandatory. (3) When advised that parallel operations are in progress, the pilot will check his authorization for runways 32 L and R and be prepared to accept or reject approach to either. (4) Back crs unusable runways 32 L and R.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare Internationa ; Elev., 667′; Fac. Class., ILS; Ident., I-RVG and I-DN: Procedure No. Parallel ILS Runways 32 L and R, Amdt. 4; Eff. date, 28 Mar. 68; Sup. Amdt. No. 3; Dated, 20 Jan. 68

6. By amending § 97.19 of Subpart B to amend radar procedures as follows:

RADAR STANDARD INSTRUMENT APPROACH PROCEDURE

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet, MSL. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles.

If a radar instrument approach is conducted at the below named airport, it shall be in accordance with the following instrument procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator of the Federal Aviation Agency. Initial approaches shall be made over specified routes. Minimum altitude(s) shall correspond with those established for en route operation in the particular area or as set forth below. Positive identification must be established with the radar controller. From initial contact with radar to final authorized landing minimums, the instructions of the radar controller are mandatory except when (A) visual contact is established on final approach at or before descent to the authorized landing minimums, or (B) at pilot's discretion if it appears desirable to discontinue the approach, except when the radar controller may direct otherwise prior to final approach, a missed approach shall be executed as provided below when (A) communication on final approach is lost for more than 5 seconds during a precision approach, or for more than 30 seconds during a surveillance approach; (B) directed by radar controller; (C) visual contact is not established upon descent to authorized landing minimums; or (D) if landing is not accomplished.

Transition				Ceiling and visibility minimums			
From—	To—	Course and distance	Minimum altitude (feet)	Condition	2-engine or less		More than 2-engine, more than 65 knots
					65 knots or less	More than 65 knots	
248°	180°	0-20 miles	***2000	T-dn*%	300–1	300–1	200–½
				Surveillance approach			
180°	248°	0-15 miles	***2000	C-dn-14 L and R, 32 L and R, 27R, 22**, 27L**, and 9R X.	500–1	500–1	500–1½
180°	248°	15-20 miles	***2300	C-dn-4	600–2	600–2	600–2
				S-dn-9R X** 32R@, 14 L and R@.	500–1	500–1	500–1
				S-dn-32L$,27R$, 22**, 27L X**.	400–1	400–1	400–1
				S-dn-4 X	600–2	600–2	600–2
				A-dn	800–2	800–2	800–2
				Precision approach			
				C-dn	500–1	500–1	500–1½
				S-dn-14 R and L#, 27R, 32 L and R.	200–½	200–½	200–½
				S-dn-22, 4	300–¾	300–¾	300–¾
				A-dn	600–2	600–2	600–2

All bearings are from radar site with sector azimuths progressing clockwise.

If visual contact not established upon descent to authorized landing minimums or if landing not accomplished:

Runway 4: Climb straight ahead to 3500′ and proceed to Evanston Int via ORD VOR, R 075 or, when directed by ATC, climb straight ahead to 2500′ and proceed to OBK VOR via R 170°.

Runway 9R: Climb to 3500′ and proceed to Evanston Int via ORD VOR, R 075°.

Runway 27L: Turn left to 250° heading, climb to 1500′ then make left-climbing turn to 3500′ and proceed to DPA VOR via R 085°.

Runway 27R: Turn right to 285° heading, climb to 1500′ then make right-climbing turn to 3500′ and proceed direct to OBK VOR.

Runway 22: Climb to 3500′ on a crs of 220° and proceed to DPA VOR via R 073° or, when directed by ATC, make left-climbing turn to 3500′ and proceed to Evanston Int via ORD VOR, R 075°.

Runway 14R: Turn right to heading 155°, climb to 1500′, then make right-climbing turn to 3500′ and proceed to DPA VOR via R 085° or, when directed by ATC, turn right to heading 155°, climb to 1500′, make climbing right turn to 3500′ and proceed to Elgin Int via ORD VOR, R 271°.

Runway 32R: Turn right to 335° heading, climb to 1500′, then make right-climbing turn to 3500′ and proceed to Evanston Int via ORD, R 075°.

Runway 32L: Turn left to 300° heading, climb to 2000′, then make climbing left turn to 3500′ and proceed direct to DPA VOR.

Runway 14L: Turn left to heading of 120° and climb to 1500′, make left-climbing turn to 3500′ and proceed to Evanston Int via ORD, R 075°.

CAUTION: 1460′ tower, 5.5 miles W, 1413′ tower, 4.9 miles W.

*Takeoffs on Runway 32L, when weather is below 1000-3, climb to 2000′ MSL on runway heading prior to making left turn.

**On ASR approach to Runway 22, do not descend below 1200′ until radar advises passing 3-mile Radar Fix from end of runway. On ASR approach to Runway 27L do not descend below 1300′ MSL until radar advises passing 2-mile fix from end of runway.

**On ASR approach to Runway 9R do not descend below 1700′ MSL until radar advises passing 4-mile fix from end of runway.

***Radar control will provide 1000′ vertical clearance within a 3-mile radius of towers 1187′, 15 miles NW; 1460′, 5.5 miles W; 1413′, 4.9 miles W; 1508′, 7.2 miles SW; 1185′, 4.8 miles SW; 1120′, 3.5 miles SW; 1504′, 14.2 miles SE; 1260′, 10 miles SSW; 1080′, 14.3 miles SSW; 1125′, 8 miles SW; 1549′, 13.9 miles SE; and 2049′, 13.9 miles SE.

#RVR 2400′ Runways 14R, 32 L and R, and 27R.

#Runway 14L, RVR 2000′, 4-engine turbojets; RVR 1800′, other aircraft when TDZL and RCLS are available.

%RVR 2400′ authorized Runways 14 L and R, 32 L and R, and 27R.

$Runway 27R: 400–½ authorized with operative ALS, except for 4-engine turbojets.

$Runways 32L and 27R: 400–¾ authorized with operative HIRL, except for 4-engine turbojets.

@Runways 14 L and R, and 32R: 500–¾ authorized with operative HIRL, except for 4-engine turbojets.

@Runways 14 L and R, and 32R: 500–½ authorized with operative ALS, except for 4-engine turbojets.

X Inoperative table for HIRL does not apply to Runway 27L and Runway 9R.

X Inoperative table for SALS does not apply to Runway 4.

City, Chicago; State, Ill.; Airport name, Chicago-O'Hare International; Elev., 667′; Fac. Class. and Ident., O'Hare Radar; Procedure No. Radar-1, Amdt. 17; Eff. date, 28 Mar. 68; Sup. Amdt. No. 1, Amdt. 16; Dated, 24 Feb. 68

7. By amending § 97.23 of Subpart C to establish very high frequency omnirange (VOR) and very high frequency-distance measuring equipment (VOR/DME) procedures as follows:

STANDARD INSTRUMENT APPROACH PROCEDURE—TYPE VOR

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL, except HAT, HAA, and RA. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles or hundreds of feet RVR.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator. Initial approach minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: 3.7 miles after passing ELD VORTAC.
El Dorado VORTAC, R 340° clockwise	El Dorado VORTAC, R 051° (NOPT).	10-mile Arc ELD, R 041° lead radial.	1800	Climb to 1800′ on ELD VORTAC, R 226° within 20 miles.
El Dorado VORTAC, R 139° counterclockwise.	El Dorado VORTAC, R 051° (NOPT).	10-mile Arc ELD, R 061° lead radial.	1800	Supplementary charting information: TDZ elevation, 250′.

Procedure turn N side of crs, 051° Outbnd, 231° Inbnd, 1600′ within 10 miles of ELD VORTAC.
FAF, ELD VORTAC. Final approach crs, 231°. Distance FAF to MAP, 3.7 miles.
Minimum altitude over ELD VORTAC, 1300′.
MSA: 000°–090°—1600′; 090°–180°—2500′; 180°–360°—1800′.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT		VIS	
S–22	660	1	410	660	1	410	660	1	410		NA	
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA			
C	700	1	423	740	1	463	740	1½	463		NA	
A	Standard.		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, El Dorado; State, Ark.; Airport name, Goodwin Field; Elev., 277′; Facility ELD; Procedure No. VOR Runway 22, Amdt. 5; Eff. date, 28 Mar. 68; Sup. Amdt. No. 1, Amdt. 4; Dated, 29 Oct. 66

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: 4.7 miles after passing Hunter Int (7-mile DME Fix).
				Make left-climbing turn to 2300′ proceed to Foster Int via the ORW VORTAC, R 057° and hold. Supplementary charting information: Hold at Foster Int SW, 1-minute left turns, 057° Inbnd.

Procedure turn E side of crs, 181° Outbnd, 001° Inbnd, 1900′ within 10 miles of PVD VORTAC.
FAF, Hunter Int. Final approach crs, 001°. Distance FAF to MAP, 4.7 miles.
Minimum altitude over PVD VORTAC, 1900′; over Hunter Int or 7-mile DME Fix, 1900′.
MSA: 000°–090°—2200′; 090°–180°—2100′; 180°–270°—1800′; 270°–360°—2100′.
NOTES: (1) Radar vectoring. (2) Use PVD altimeter setting.
*Alternate minimums not authorized.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA		VIS	
C	840	1	399	900	1	459	900	1½	459			
A	Not authorized		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, Smithfield; State, R.I.; Airport name, North Central State; Elev., 441′; Facility, PVD; Procedure No. VOR–1, Amdt. 1; Eff. date, 28 Mar. 68; Sup. Amdt. No. Orig.; Dated, 28 Nov. 64

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: 4.5 mile DME Fix.
El Dorado VORTAC	8-mile DME Fix, R 229°	Direct	2000	Climb to 2000′ direct ELD VORTAC and ELD VORTAC, R 027° within 15 miles.
El Dorado VORTAC, R 139° clockwise	El Dorado VORTAC, R 229° (NOPT).	12-mile Arc ELD, R 219° lead radial.	2000	Supplementary charting information: TDZ elevation, 259′.

Procedure turn S side of crs, 229° Outbnd, 049° Inbnd, 2000′ within 10 miles of 8-mile DME Fix.
Final approach crs, 049°.
Minimum altitude over 12-mile DME Fix, 2000′ (IAF); over 8-mile DME Fix, 1300′ (FAF).
MSA: 000°–090°—1600′; 090°–180°—2500′; 180°–360°—1800′.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT		VIS	
S-4	700	1	423	700	1	423	700	1	423			
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA			
C	700	1	423	740	1	463	740	1½	463			
A	Standard.		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, El Dorado; State, Ark.; Airport name, Goodwin Field; Elev., 277'; Facility, ELD; Procedure No. VOR/DME Runway 4, Amdt. Orig.; Eff. date, 28 Mar. 68

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: 4.7 miles after passing Phoenix Int./9-mile DME Fix.
				Climbing right turn to 2000' direct SYR VORTAC and hold. Supplementary charting information: Hold SE SYR VOR 1-minute right turns, 334° Inbnd.

Shuttle: SYR VORTAC holding fix, 334° Inbnd, 154° Outbnd, 2000' right turns.
FAF, Phoenix Int/9-mile DME Fix. Final approach crs, 336°. Distance FAF to MAP, 4.7 miles.
Minimum altitude over SYR VORTAC, 2000'; over Phoenix Int/9-mile DME Fix, 2000'.
MSA: 000°-090°—2500'; 090°-180°—3600'; 180°-270°—3100'; 270°-360°—1900'.
NOTES: (1) Radar vectoring. (2) Use Syracuse altimeter setting.
*Alternate minimums not authorized.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT		VIS	
S-33	840	1	371	840	1	371	840	1	371		NA	
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA			
C	880	1	411	920	1	451	920	1½	451		NA	
A	Not authorized.*		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, Fulton; State, N.Y.; Airport name, Fulton Municipal; Elev., 469'; Facility, SYR; Procedure No. VOR/DMA Runway 33, Amdt. Orig.; Eff. date, 28 Mar. 68

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: 27-mile DME Fix, R 160°.
SOP VORTAC	17-mile DME Fix, R 160°	Direct	2000	Climbing right turn to 2000' direct to 22-mile DME Fix, R 160° hold NE, 1-minute right turns. Supplementary charting information: Chart MAP from 27-mile DME Fix.

Procedure turn not authorized. Approach course (profile) starts at 17-mile DME Fix.
Final approach crs, 160°.
Minimum altitude over 17-mile DME Fix, 2000'; over 22-mile DME Fix 1100'
MSA: 000°-270°—1900'; 270°-360°—2500'.
NOTES: (1) Use FAY altimeter setting and weather. (2) Night operations authorized Runways 5-23 only.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA		VIS	
C	780	1	560	780	1¼	560	780	1½	560		NA	
A	Not authorized.		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, Maxton; State, N.C.; Airport name, Laurinburg-Maxton; Elev., 220'; Facility SOP; Procedure No. VOR/DME-1, Amdt. Orig.; Eff. date, 28 Mar. 68

STANDARD INSTRUMENT APPROACH PROCEDURE—TYPE VOR—Continued

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	Map: 23.3-mile DME Fix.
SOP VORTAC	8-mile DME Fix, R 060°	Direct	2000	Climb to 2000' right turn to 18-mile DME Fix, R 060°, hold SW, 1-minute right turns.

Procedure turn not authorized. Approach crs (profile) starts at 8-mile DME Fix.
Final approach crs, 060°.
Minimum altitude over 8-mile DME Fix, 2000'; over 18-mile DME Fix, 1100'.
MSA: 000°-270°—1900'; 270°-360°—2500'.
NOTE: Use FAY altimeter setting and weather.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAT	MDA	VIS	HAT		VIS			VIS	
S-3	1180	1	750	1180	1¼	750						
	MDA	VIS	HAA	MDA	VIS	HAA						
C	1180	1	750	1180	1¼	750						
A	Not authorized.		T 2-eng. or less—Standard.				T over 2-eng.					

City, Sanford; State, N.C.; Airport name, Sanford Municipal; Elev., 430'; Facility, SOP; Procedure No. VOR/DME Runway 3, Amdt. Orig.; Eff. date, 28 Mar. 68

8. By amending § 97.23 of Subpart C to amend very high frequency omnirange (VOR) and very high frequency-distance measuring equipment (VOR/DME) procedures as follows:

STANDARD INSTRUMENT APPROACH PROCEDURE—TYPE VOR

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL, except HAT, HAA, and RA. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles or hundreds of feet RVR.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator. Initial approach minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: 2.8 miles after passing PBI VORTAC.
R 358°, PBI VORTAC counterclockwise	R 275°, PBI VORTAC (NOPT)	10-mile DME Arc PBI, R 285° lead radial.	1600	Climb to 1600' on PBI VORTAC, R 095°.
R 181°, PBI VORTAC clockwise	R 275°, PBI VORTAC (NOPT)	10-mile DME Arc PBI, R 265° lead radial.	2000	
10-mile DME Fix, R 275°	Crowfoot Int/7-mile DME Fix	Direct	1600	
Crowfoot Int/7-mile DME Fix, R 275°	PBI VORTAC	Direct	800	

Procedure turn N side of crs, 275° Outbnd, 095° Inbnd, 1600' within 10 miles of PBI VORTAC.
FAF, PBI VORTAC. Final approach crs, 095°. Distance FAF to MAP, 2.8 miles.
Minimum altitude: Crowfoot Int, 1600'; PBI VORTAC, 800'.
MSA: 000°-090°—1700'; 090°-270°—2100'; 270°-360°—1700'.
*Sliding scale not authorized.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT
S-9*	400	¾	384	400	¾	384	400	¾	384	400	1	384
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA
C	460	1	441	480	1	461	480	1½	461	680	2	661
A	Standard.		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, West Palm Beach; State, Fla.; Airport name, Palm Beach International; Elev., 19'; Facility, PBI; Procedure No. VOR Runway 9, Amdt. 3; Eff. date, 28 Mar. 68; Sup. Amdt. No. 2; Dated, 10 Feb. 68

9. By amending § 97.27 of Subpart C to establish nondirectional beacon (automatic direction finder) (NDB/ADF) procedures as follows:

STANDARD INSTRUMENT APPROACH PROCEDURE—TYPE NDB (ADF)

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL, except HAT, HAA, and RA. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles or hundreds of feet RVR.
If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator. Initial approach minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: HTL NDB.
Lake City Int	HTL NDB	Direct	2900	Climb to 2900′ turn right and return to NDB. Supplementary charting information: See 67-CHI-165NR for sketch of location of NDB.

Procedure turn N side of crs, 085° Outbnd, 265° Inbnd, 2900′ within 10 miles of NDB.
Final approach crs, 265°.
Minimum altitude over NDB, 1940′.
MSA: 000°-090°—2800′; 090°-180°—2200′; 180°-270°—2600′; 270°-360°—2800′.

NOTE: Use Traverse City altimeter setting.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT		VIS	
S-27	1940	1	790	1940	1¼	790	1940	1½	790			
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA			
C	1940	1	790	1940	1¼	790	1940	1½	790			
A	Not authorized.		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, Houghton Lake; State, Mich.; Airport name, Roscommon County; Elev., 1150′; Facility, HTL; Procedure No. NDB(ADF) Runway 27, Amdt. Orig.; Eff. date, 28 Mar. 68 or upon commissioning of facility

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: SER NDB.
Nabb VOR	SER NDB	Direct	2500	Make left turn, climb to 2500′ on 160° crs and return to SER NDB.
Freetown Int	SER NDB	Direct	2500	
Scipio Int	SER NDB	Direct	2500	

Procedure turn E side of crs, 160° Outbnd, 340° Inbnd, 2500′ within 10 miles of SER NDB.
FAF, SER NDB. Final approach crs, 340°.
MSA: 000°-360°—2300′.

NOTE: Use Bakalar AFB altimeter setting, if unable, use Indianapolis altimeter setting and increase MDA 160′.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT
S-31	1180	1	604	1180	1	604	1180	1	604	1180	1¼	604
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA
C	1180	1	605	1180	1	605	1180	1½	605	1180	2	605
A	Not authorized.		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, Seymour; State, Ind.; Airport name, Freeman Field; Elev., 575′; Facility, SER; Procedure No. NDB(ADF) Runway 31, Amdt. Orig.; Eff. date, 28 Mar. 68

10. By amending § 97.29 of Subpart C to amend instrument landing system (ILS) procedures as follows:

STANDARD INSTRUMENT APPROACH PROCEDURE—TYPE ILS

Bearings, headings, courses and radials are magnetic. Elevations and altitudes are in feet MSL, except HAT, HAA, and RA. Ceilings are in feet above airport elevation. Distances are in nautical miles unless otherwise indicated, except visibilities which are in statute miles or hundreds of feet RVR.

If an instrument approach procedure of the above type is conducted at the below named airport, it shall be in accordance with the following instrument approach procedure, unless an approach is conducted in accordance with a different procedure for such airport authorized by the Administrator. Initial approach minimum altitudes shall correspond with those established for en route operation in the particular area or as set forth below.

Terminal routes				Missed approach
From	To	Via	Minimum altitudes (feet)	MAP: ILS DH 316', LOC 5.7 miles after passing LOM.
R 358, PBI VORTAC counter clockwise	PBI R 273°/LOC crs	10-mile ARC PBI, R 283° lead radial.	1600	Climb to 1600' on E crs of ILS LOC.
R 181°, PBI VORTAC clockwise	PBI R 273°/LOC crs	10-mile arc PBI, R 263° lead radial.	2000	
Willy Int	PB NDB/LOM	Direct	1600	
Morgan Int	PB NDB/LOM	Direct	1600	
Parkway Int	PB NDB/LOM	Direct	1600	
Andrews Int	PB NDB/LOM	Direct	2000	
Sunshine Int	PB NDB/LOM	Direct	2000	
Pompano Int	PB NDB/LOM	Direct	2000	
Shawnee Int	PB NDB/LOM (NOPT)	Direct	1600	

Procedure turn N side of crs, 273° Outbnd, 093° Inbnd, 1600' within 10 miles of PB NDB/LOM.
FAF, PB NDB/LOM. Final approach crs, 093°. Distance FAF to MAP, 5.7 miles.
Minimum glide slope interception altitude, 1600'. Glide slope altitude at OM, 1560'; MM, 217'.
Distance to runway threshold at OM, 5.7 miles; MM, 0.6 mile.
MSA within 25 miles of PB NDB/LOM: 000°–090°—1700'; 090°–270°—2100'; 270°–360°—1400'.
NOTE: Glide slope unusable below 150'.
*Inoperative table does not apply ALS Runway 9. Sliding scale not authorized.

DAY AND NIGHT MINIMUMS

Cond.	A			B			C			D		
	DH	VIS	HAT	DH	VIS	HAT	DH	VIS	HAT	DH	VIS	HAT
S-9*	316	¾	300	316	¾	300	316	¾	300	316	¾	300
LOC	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT	MDA	VIS	HAT
S-9*	440	¾	424	440	¾	424	440	¾	424	440	1	424
	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA	MDA	VIS	HAA
C	460	1	441	480	1	461	480	1¼	461	680	2	661
A	Standard.		T 2-eng. or less—Standard.				T over 2-eng.—Standard.					

City, West Palm Beach; State, Fla.; Airport name, Palm Beach International; Elev., 19'; Facility I-PBI: Procedure No. ILS Runway 9, Amdt. 9; Eff. date, 28 Mar. 68; Sup. Amdt. No. 8; Dated, 10 Feb. 68

These procedures shall become effective on the dates specified therein.

(Secs. 307(c), 313(a), 601, Federal Aviation Act of 1958; 49 U.S.C. 1348(c), 1354(a), 1421; 72 Stat. 749, 752, 775)

Issued in Washington, D.C., on February 20, 1968.

R. S. SLIFF,
Acting Director, Flight Standards Service.

[F.R. Doc. 68-2489; Filed, Mar. 7, 1968; 8:45 a.m.]

Title 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T.D. 68-72]

PART 32—TRADE FAIRS

Entry and Disposition of Articles Under Trade Fair Act of 1959

On October 25, 1967, notice of proposed rule making regarding revision of Part 32 of Title 19 of the Code of Federal Regulations was published in the FEDERAL REGISTER (32 F.R. 14768). Part 32 governs entry and disposition of articles under the Trade Fair Act of 1959. Its revision is part of the general revision of the Customs Regulations.

Interested persons were given 30 days in which to submit written comments, suggestions, or objections regarding the proposed revision. After consideration of all relevant matter presented, it was determined that several changes in the proposed revision were necessary. Therefore, in the revision adopted below:

Section 32.0 is changed by adding after the last sentence: "The entry of articles which may be admitted free of duty under other provisions of this chapter may be governed by those provisions rather than the regulations in this part."

Paragraph (a) of § 32.1 is changed by deleting the footnote reference and footnote 1, and by adding the citation of the Trade Fair Act: "(Secs. 2–7, 73 Stat. 18, 19; 19 U.S.C. 1751–1756.)"

Paragraph (b) of § 32.1 is changed by adding at the end of the paragraph: "(For regulations governing designation as a trade fair, see 15 CFR Part 364.)"

As part of the revision there is included a parallel reference table showing the relationship between the newly adopted sections and those which they supersede in 19 CFR Part 32.

The proposed revision of Part 32 is hereby adopted as follows:

Sec.
32.0 Scope.

Subpart A—General Provisions

32.1 Definitions.
32.2 Articles which may be entered for a fair.
32.3 Bond required.

Subpart B—Procedure for Importation

32.11 Entry.
32.12 Invoices.
32.13 Transfer to fair building.
32.14 Articles not to be immediately entered and delivered to a fair.
32.15 Tentative appraisement.

Subpart C—Requirements of Other Laws

32.21 Marking under the Tariff Act of 1930.
32.22 Compliance with internal revenue laws and Federal Alcohol Administration Act.

Sec.
32.23 Compliance with Plant Quarantine Act and Federal Food, Drug, and Cosmetic Act.
32.24 Merchandise subject to licensing.

Subpart D—Customs Supervision

32.31 Articles to be kept separate.
32.32 Detail of officers to protect the revenue.
32.33 Reimbursement by fair operator.

Subpart E—Disposition of Articles Entered for Fairs

32.41 Removal or disposition pursuant to regulation.
32.42 Disposition generally.
32.43 Entry under the customs laws.
32.44 Entry for another fair.
32.45 Merchandise from a foreign-trade zone.
32.46 Voluntary abandonment or destruction.
32.47 Mandatory abandonment.

AUTHORITY: The provisions of this Part 32 issued under R.S. 251, secs. 623, 624, 46 Stat. 759, as amended, secs. 2–7, 73 Stat. 18,-19; 19 U.S.C. 66, 1623, 1624, 1751–1756.

§ 32.0 Scope.

This part governs the entry of merchandise intended for exhibition or for use in constructing, installing or maintaining foreign exhibits at trade fairs which have been so designated by the Secretary of Commerce. It also contains provisions concerning customs supervision of the merchandise, and the disposition of the merchandise after the fair has closed. The entry of articles which may be admitted free of duty under other provisions of this chapter may be governed by those provisions rather than the regulations in this part.

Subpart A—General Provisions

§ 32.1 Definitions.

The following are general definitions for the purposes of Part 32:

(a) *The Act.* "The Act" means the Trade Fair Act of 1959. (Secs. 2–7, 73 Stat. 18, 19; 19 U.S.C. 1751–1756.)

(b) *Fair.* "Fair" means a fair, exhibition, or exposition designated by the Secretary of Commerce pursuant to the Trade Fair Act. (For regulations governing designation as a trade fair, see 15 CFR Part 364.)

(c) *Fair operator.* "Fair operator" means the party named by the Secretary of Commerce as the operator of the fair.

(d) *Port.* "Port" means the port at which the fair is to be held, or if the fair is not to be held within the limits of a port, the port nearest to the location of the fair which is in the same customs district as the fair.

(e) *Closing date.* "Closing date" means the date designated by the Secretary of Commerce as the date when the fair will close, including any extension granted by the Secretary of Commerce, or, if the fair closes earlier, the date on which the fair actually closes.

(f) *Articles for a fair.* "Articles for a fair" includes, but is not limited to:

(1) Actual exhibit items;

(2) Pamphlets, brochures, and explanatory material in reasonable quantities relating to foreign exhibits at a fair;

(3) Material for use in constructing, installing, or maintaining foreign exhibits at a fair.

§ 32.2 Articles which may be entered for a fair.

(a) *General.* Any article imported or brought into the United States may be entered under bond under the regulations of this part for the purpose of exhibition at a fair, or for use in contructing, installing, or maintaining foreign exhibits at a fair, if no duty or internal revenue tax has been paid, and the article is:

(1) In a foreign trade zone; or

(2) Covered by a customs exhibition bond provided for in Schedule 8, Part 5B, Tariff Schedules of the United States; or

(3) In continuous customs custody, including but not limited to articles:

(i) Imported or brought into the United States for the purpose of direct entry at a particular fair;

(ii) In customs bonded warehouses;

(iii) Unentered under the customs laws and held in general order pending entry or exportation;

(iv) On exhibition at another fair designated by the Secretary of Commerce.

(b) *Exception.* Articles which have been entered under Schedule 8, Part 5C, Tariff Schedules of the United States, may not be entered under the regulations of this part.

§ 32.3 Bond required.

(a) The fair operator shall furnish for the approval of the district director a bond in an amount to be determined by the district director. No other bond shall be required at the time of making entry for a fair.

(b) The bond shall be in the following form:

TRADE FAIR BOND

Know all men by these presents, that _____, of _____, as principal, and _____, of _____, and _____, of _____, as sureties, are held and firmly bound unto the United States of America in the sum of _____ dollars ($_____), for the payment of which we bind ourselves, our heirs, executors, administrators, successors, and assigns, jointly and severally, firmly by these presents.

Witness our hands and seals this _____ day of _____, 19__.

Whereas, purusant to the provisions of the Trade Fair Act of 1959, 73 Stat. 18; 19 U.S.C. 1751–1756, the Secretary of Commerce has approved an application by the principal hereon for the operation of a fair to be known as _____

_____

(Insert exact name of fair)

at _____; and

(City and State)

Whereas, pursuant to the foregoing Act, imported articles may be imported or brought into the United States without the payment of duties, taxes, fees, charges, or exactions, for purposes of exhibition at the designated fair, or for use in constructing, installing, or maintaining foreign exhibits at such fair, under such regulations as the Secretary of the Treasury shall prescribe;

Now, therefore, the condition of this obligation is such, that—

(1) If the above-bounden principal shall comply in all respects with the provisions of the foregoing Act and the regulations issued by the Secretary relating to the exhibition or use of any article imported or brought into the United States for the designated fair; and shall receive for exhibition or use at such fair only such articles as may be permitted by law and regulations to be deposited therein; and shall safely keep or use the same therein all in accordance with the purposes authorized by law, and shall not remove, nor suffer to be removed, any article from the fair premises without lawful permit and without the presence of the customs officer in charge;

(2) And if the above-bounden principal shall pay to the district director of customs, when demanded by him, all unpaid duties, taxes, fees, charges, or exactions found legally due in connection with all articles entered or brought into the United States for the fair under the provisions of the designated Act and charged against this bond; and if in respect of any of the articles released from customs custody shall redeliver or cause to be redelivered to the order of the district director of customs, upon proper demand made at any time, any and all articles found not to comply with the law and regulations governing their admission into the commerce of the United States, and shall, after proper notice, mark, label, clean, fumigate, destroy, export, and do any and all other things in relation to said articles that may be required to secure the protection of the revenue and compliance with the Trade Fair Act referred to in the recital clause of this obligation and with all applicable customs and related laws; it being expressly understood and agreed that the liability under this bond shall extend to all cases where any of the articles entered for exhibition or use are lost or stolen, whether or not the said loss or theft shall result from the fault of said principal;

(3) And if the above-bounden principal shall pay on demand to the district director of customs, the actual and necessary customs charges for labor, services, and other expenses in connection with the entry, examination, appraisement, release, or custody of the imported articles, together with the compensation of the customs officers and employees on duty at or assigned to the fair premises in connection with the accounting for, custody of, and supervision over, the articles entered pursuant to the designated Act, including overtime compensation of customs officers and employees assigned to duty at night or on Sunday or a holiday;

(4) And if the above-bounden principal, when an article is entered from the Fair for exportation, shall cause the said article to be actually exported from the United States and not relanded therein, and if proof of exportation from the United States be furnished to the said district director in the form and within the time required by law or regulations, or within any lawful extension of such time; or in lieu of exportation, if the said article shall be destroyed or abandoned within the period fixed by law, or, in default thereof, if the obligors shall pay to the district director the full amount of duties, taxes, fees, charges, and exactions which may be found legally due on the said articles;

(5) And if the said principal shall deliver to the district director of customs all the documents and evidence as may be required in connection with the entry of the articles at the designated fair, and in the form and within the time required by law or regulations, or any lawful extensions thereof, and shall comply with all other requirements of law and regulations;

Then this obligation shall be void; otherwise to remain in full force and effect.

Signed, sealed, and delivered in the presence of—

_____
(Name) (Address)
_____ _____ [SEAL]
(Name) (Address) (Principal)
_____
(Name) (Address)
_____ _____ [SEAL]
(Name) (Address) (Surety)
_____
(Name) (Address)
_____ _____ [SEAL]
(Name) (Address) (Surety)

CERTIFICATE AS TO CORPORATE PRINCIPAL

I, _____, certify that I am the _____(*)_____ of the corporation named as principal in the within bond; that _____, who signed the said bond on behalf of the principal, was then _____ of the said corporation; that I know his signature thereto is genuine; and that said bond was duly signed, sealed, and attested for and in behalf of said corporation by authority of its governing body.

_____ [SEAL]

*(May be executed by the secretary, assistant secretary, or other corporate officer.)

Subpart B—Procedure for Importation

§ 32.11 Entry.

(a) *Made in name of fair operator.* All entries of articles for a fair shall be made at the port in the name of the fair operator which shall be deemed for customs purposes the sole consignee of the merchandise entered under the Act and responsible to the Government for all duties and charges due the United States on account of such entries.

(b) *Merchandise arriving at port other than port of the fair.* Articles to be entered under this subpart which arrive at ports other than the port of the fair shall be entered for immediate transportation without appraisement to the latter port in the manner prescribed in Part 18 of this chapter.

(c) *Form of entry.* Articles shall be entered upon arrival at the port of the fair on a special form of entry to read substantially as follows:

ENTRY FOR EXHIBITION
Entry No. _____

Entry at the port of _____ of articles consigned or transferred to _____ (Fair operator) under _____ I.T. No. _____ ex S.S. _____ from _____ on the _____ day of _____ 19____, for exhibition purposes under the Trade Fair Act of 1959.

Mark	Number	Package and contents	Quantity	Invoice value

_____ (Fair operator)
By _____

(d) *Supersedes previous entry.* When entry for a fair is made under this part, such entry shall supersede any previous entry.

§ 32.12 Invoices.

Articles intended for a fair under the provisions of the Act and valued at over $500 are subject to the special customs invoice requirements if of a class for which such invoices are required under the Tariff Act of 1930, as amended, and the regulations in this chapter (see Part 8). The invoice shall be on customs Form 5515 and shall contain the information prescribed under section 481 of the Tariff Act of 1930. In all other cases the ordinary invoicing requirements apply.

§ 32.13 Transfer to fair building.

(a) *Immediate delivery.* The provisions governing immediate delivery in § 8.59 of this chapter are applicable to articles for a fair.

(b) *After entry.* Upon the entry being made, a permit may be issued by the district director for the transfer of the articles covered thereby to the buildings in which they are to be exhibited or used, or, in his discretion, to the public stores for examination and subsequent delivery to the buildings in which they are to be exhibited or used.

§ 32.14 Articles not to be immediately entered and delivered to a fair.

(a) *Placed in bonded warehouses.* If for any reason articles imported for a fair are not to be entered and delivered to a fair upon their arrival, the fair operator should request the district director, in writing, to cause such articles to be placed in a bonded warehouse under a "general order permit" at the risk and expense of the fair operator. If no request is made and the articles remain unentered after 5 days from the date of arrival, they will be placed in general order.

(b) *Entry within 1 year.* At any time within 1 year from the date such articles are imported or brought in, they may be entered under this part for a fair or entered under the general tariff law, or for exportation.

(c) *Abandonment.* If not entered within such period, they will be regarded as abandoned to the Government.

§ 32.15 Tentative appraisement.

All articles entered for a fair shall be tentatively appraised prior to exhibition or use.

Subpart C—Requirements of Other Laws

§ 32.21 Marking under the Tariff Act of 1930.

The marking requirements of the Tariff Act of 1930, as amended, and the regulations thereunder will not apply to articles for a fair, except when such articles are entered for consumption. When entered for consumption, such articles shall be released from customs custody only upon a full compliance with these marking requirements.

§ 32.22 Compliance with the internal revenue laws and Federal Alcohol Administration Act.

The packaging, marking, and labeling requirements of the internal-revenue laws, and of the Federal Alcohol Administration Act (27 U.S.C. 201 to 212), will not apply to articles entered under this part, but any article failing to comply with such requirements shall be conspicuously marked prior to exhibition "Not labeled or packaged as required by law—not for sale". When any such article is withdrawn for consumption, it shall be released from customs custody only upon a full compliance with such packaging, marking, and labeling requirements.

§ 32.23 Compliance with Plant Quarantine Act and Federal Food, Drug, and Cosmetic Act.

(a) *Plant Quarantine Act.* The entry of plant material subject to restriction under the Plant Quarantine Act of 1912, as amended (7 U.S.C. 151–164a, 167), shall not be permitted except under permits issued by the Plant Quarantine Division of the Agriculture Research Service, Department of Agriculture, and in accordance with the plant quarantine regulations.

(b) *Federal Food, Drug, and Cosmetic Act.* The entry of food products shall conform to the requirements of the Federal Food, Drug, and Cosmetic Act, as amended (21 U.S.C. 301 et seq.), and the regulations issued thereunder.

§ 32.24 Merchandise subject to licensing.

Merchandise, the importation of which is subject to the licensing regulations of any agency of the U.S. Government, may be entered for a fair only upon the presentation of the required license, or a waiver of such license.

Subpart D—Customs Supervision

§ 32.31 Articles to be kept separate.

Articles for exhibit at a fair shall be segregated from domestic articles and from imported articles entered under the provisions of the general customs laws and released from customs custody.

§ 32.32 Detail of officers to protect the revenue.

The district director shall detail an officer to act as his representative at the fair and shall station inside the buildings as many additional customs officers and employees as may be necessary to properly protect the revenue.

§ 32.33 Reimbursement by fair operator.

All actual and necessary charges for labor, services, and other expenses in connection with the entry, examination, appraisement, custody, abandonment, destruction, or release of articles entered under the regulations of this part, together with the necessary charges for salaries of customs officers and employees in connection with the accounting for, custody of, and supervision over, such articles, shall be reimbursed by the fair operator to the Gov-

ernment, payment to be made on demand to the district director for deposit to the appropriation from which paid.

Subpart E—Disposition of Articles Entered for Fairs

§ 32.41 Removal or disposition pursuant to regulation.

Articles for a fair entered under this part shall not be removed from the fair premises, or otherwise disposed of, except in accordance with this subpart.

§ 32.42 Disposition generally.

(a) *Kinds of disposition.* Any article entered for a fair under this part may be entered for consumption, for warehouse, or under any other provision of the customs laws, or for another fair, or may be transferred to other customs custody status or to a foreign trade zone, or abandoned to the Government, or destroyed under customs supervision, or exported, at any time before, or within 3 months after, the closing date of the fair.

(b) *Appraisement.* Upon entry under any provision of the customs laws, or at the expiration of 3 months after the closing date of the fair in the case of articles not previously entered or transferred, articles entered for fairs shall be appraised. Such appraisement shall be final in the absence of an appeal to reappraisement, as provided in section 501 of the Tariff Act of 1930, as amended.

(c) *Period for performance of certain acts.* In the case of any article entered under a provision of the customs laws, or for another fair, or transferred to other customs custody status, or to a foreign-trade zone, the period prescribed for the performance of any act required by the provision governing the status under which the article is entered, or to which it is transferred, shall be computed from the date of such entry or transfer.

§ 32.43 Entry under the customs laws.

(a) *Payment of duties and taxes.* Any applicable duties and internal revenue taxes on any article entered under any provision of the customs laws must be paid on such article in its condition and quantity, and at the rate in effect, at the time of such entry.

(b) *Person to make entry.* Entry of merchandise under the customs laws from a fair may be made in the name of any person duly authorized in writing by the fair operator to make such entry.

§ 32.44 Entry for another fair.

Articles entered for a fair which are to be entered for another fair under the provisions of this part shall be retained in continuous customs custody.

§ 32.45 Merchandise from a foreign-trade zone.

Articles entered for a fair from a foreign-trade zone status of "zone restricted merchandise" and afterwards entered for consumption from a fair are subject to the provisions of item 804.00, Tariff Schedules of the United States.

§ 32.46 Voluntary abandonment or destruction.

At any time before or within three months after the closing date of the fair any article entered for a fair may be abandoned to the Government or destroyed under customs supervision, upon compliance with § 15.4 of this chapter.

§ 32.47 Mandatory abandonment.

Any article entered for a fair, and not disposed of under the provisions of this subpart prior to the expiration of three months after the close of the fair shall be regarded as abandoned to the Government, and subject to sale or destruction. Proceeds of sale shall be disposed of in the manner provided in sections 491, 492, and 493, Tariff Act of 1930, as amended, and the regulations thereunder. Any duties or internal revenue taxes on such article shall be computed on the basis of its condition and quantity at the time it becomes subject to sale.

This revision shall become effective 30 days after publication in the FEDERAL REGISTER.

[SEAL] LESTER D. JOHNSON,
Commissioner of Customs.

Approved: February 29, 1968.

FRED B. SMITH,
General Counsel of the Treasury.

ANNEX TO REVISED PART 32

PARALLEL REFERENCE TABLE

(This table shows the relationship between the newly adopted sections and those which they supersede in 19 CFR Part 32.)

Present sections	*Superseded sections*
32.0	None.
32.1	32.1.
32.2	32.3(f).
32.3	32.2(d).
32.11(a)	32.3(a).
32.11(b)	32.3(b).
32.11(c)	32.3(c).
32.11(d)	32.3(f).
32.12	32.2(a).
32.13(a)	None.
32.13(b)	32.3(d).
32.14	32.3(e).
32.15	32.3(d).
32.21	32.2(b).
32.22	32.2(c).
32.23	32.4.
32.24	None.
32.31	32.3(d).
32.32	32.5(a).
32.33	32.5(b).
32.41	32.3(d).
32.42	32.6(a).
32.43(a)	None.
32.43(b)	32.3(a).
32.44	32.6(c).
32.45	32.6(d).
32.46	32.6(b).
32.47	32.6(e).

[F.R. Doc. 68-2877; Filed, Mar. 7, 1968; 8:47 a.m.]

Title 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Department of Health, Education, and Welfare

SUBCHAPTER B—FOOD AND FOOD PRODUCTS

PART 120—TOLERANCES AND EXEMPTIONS FROM TOLERANCES FOR PESTICIDE CHEMICALS IN OR ON RAW AGRICULTURAL COMMODITIES

S-(O,O-Diisopropyl Phosphorodithioate) of *N*-(2-Mercaptoethyl) Benzenesulfonamide

A petition (PP 7F0581) was filed with the Food and Drug Administration by Stauffer Chemical Co., Richmond, Calif. 94800, proposing the establishment of tolerances for residues of the herbicide *S-O,O*-diisopropyl phosphorodithioate of *N*-(2-mercaptoethyl) benzenesulfonamide in or on the raw agricultural commodities cottonseed, cucumbers, lettuce, melons, pumpkins, and summer squash at 0.1 part per million. The requested tolerance regarding pumpkins was inadvertently omitted from the notice of filing of the petition.

The Secretary of Agriculture has certified that this pesticide chemical is useful for the purposes for which the tolerances are being established.

Based on consideration given the data submitted in the petition, and other relevant material, the Commissioner of Food and Drugs concludes that the tolerances established by this order will protect the public health. Therefore, by virtue of the authority vested in the Secretary of Health, Education, and Welfare by the Federal Food, Drug, and Cosmetic Act (sec. 408(d)(2), 68 Stat. 512; 21 U.S.C. 346a(d)(2)) and delegated by him to the Commissioner (21 CFR 2.120), Part 120 is amended as follows:

1. Section 120.3(e)(5) is amended by alphabetically inserting in the list of cholinesterase-inhibiting pesticides two new items, as follows:

§ 120.3 Tolerances for related pesticide chemicals.

* * * * *

(e) * * *

(5) * * *

S-(*O,O*-Diisopropyl phosphorodithioate) of *N*-(2-mercaptoethyl) benzenesulfonamide.

S-(*O,O*-Diisopropyl phosphorothioate) of *N*-(2-mercaptoethyl) benzenesulfonamide.

* * * * *

2. The following new section is added to Subpart C:

§ 120.241 *S*-(*O,O*-Diisopropyl phosphorodithioate) of *N*-(2-mercaptoethyl) benzenesulfonamide; tolerances for residues.

Tolerances are established for negligible residues of the herbicide *S*-(*O,O*-

diisopropyl phosphorodithioate) of *N*-(2-mercaptoethyl) benzenesulfonamide including its oxygen analog *S*-(*O*,*O*-diisopropyl phosphorothioate) of *N*-(2-mercaptoethyl) benzenesulfonamide in or on the raw agricultural commodities cottonseed, cucumbers, lettuce, melons, pumpkins, and summer squash at 0.1 part per million.

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C. 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 408(d)(2), 68 Stat. 512; 21 U.S.C. 346a(d)(2))

Dated: February 29, 1968.

J. K. KIRK,
Associate Commissioner for Compliance.

[F.R. Doc. 68-2891; Filed, Mar. 7, 1968; 8:48 a.m.]

PART 121—FOOD ADDITIVES

Subpart F—Food Additives Resulting From Contact With Containers or Equipment and Food Additives Otherwise Affecting Food

MINERAL OIL

The Commissioner of Food and Drugs, having evaluated the data in a petition (FAP 1B0373) filed by Textile Bag Manufacturers Association, 518 Davis Street, Evanston, Ill. 60201, and other relevant material, has concluded that the food additive regulations should be amended to provide for the use of mineral oil in the processing of jute fiber employed in the production of textile bags that contact food. Therefore, pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1)), and under the authority delegated to the Commissioner by the Secretary of Health, Education, and Welfare (21 CFR 2.120), Part 121 is amended:

1. By adding to § 121.2535 a new paragraph (f), as follows:

§ 121.2535 **Textiles and textile fibers.**

* * * * *

(f) The provisions of this section are not applicable to jute fibers used as prescribed by § 121.2589(d)(2).

2. By adding to § 121.2589 a new paragraph (d), as follows:

§ 121.2589 **Mineral oil.**

* * * * *

(d) Mineral oil identified in subparagraph (1) of this paragraph may be used as provided in subparagraph (2) of this paragraph.

(1) The mineral oil consists of virgin petroleum distillates refined to meet the following specifications:

(i) Distillation endpoint at 760 millimeters pressure not to exceed 700° F., with a maximum residue not to exceed 2 percent, as determined by ASTM Method D 86–IP 123.

(ii) Ultraviolet absorbance limits as follows as determined by the method described in subparagraph (3) of this paragraph.

Wavelength (mμ):	*Maximum absorbance per centimeter optical pathlength*
280–299	2.3
300–319	1.2
320–359	0.8
360–400	0.3

(iii) Pyrene content not to exceed a maximum of 25 parts per million as determined by the method described in subparagraph (3) of this paragraph.

(2) The mineral oil may be used only in the processing of jute fiber employed in the production of textile bags intended for use in contact with the following types of food: Dry grains and dry seeds (for example, beans, peas, rice, and lentils); whole root crop vegetables of the types identified in § 120.34(f) of this chapter; unshelled nuts (including peanuts); and dry animal feed. The finished processed jute fiber shall contain no more than 6 percent by weight of residual mineral oil.

(3) The analytical method for determining ultraviolet absorbance limits and pyrene content is as follows:

I. *Apparatus.* A. Assorted beakers, separatory funnels fitted with tetrafluoroethylene polymer stopcocks, and graduated cylinders.

B. Volumetric flasks, 200-milliliter.

C. A chromatographic column made from nominal 1.3 centimeters outside diameter x 75 centimeters glass tubing tapered at one end and joined to a 2-millimeter-bore tetrafluoroethylene polymer stopcock. The opposite end is flanged and joined to a female 24/40 standard taper fitting. This provides for accommodating the 500-milliliter reservoir described in item E below.

D. A chromatographic column made from nominal 1.7 centimeters outside diameter x 115 centimeters glass tubing tapered at one end and joined to a 2-millimeter-bore tetrafluoroethylene polymer stopcock. The opposite end is flanged and joined to a 2.5 centimeters outside diameter x 9.0 centimeters glass tube having a female 24/40 standard taper fitting. This provides for accommodating the 500-milliliter reservoir described in item E below.

E. A 500-milliliter reservoir having a 24/40 standard taper male fitting at bottom and a suitable ball joint at the top for connecting to the nitrogen supply. The female fitting of the chromatographic columns described in item C and D above and the male fitting of the reservoir described in this item E should both be equipped with glass hooks.

(NOTE: Rubber stoppers are not to be used. Stopcock grease is not to be used on ground-glass joints in this method.)

F. A spectrophotometer equipped to automatically record absorbance of liquid samples in 1-centimeter pathlength cells in the spectral region of 288–400 mμ with a spectral slit width of 2 mμ or less. At an absorbance level of about 0.4, absorbance measurements shall be repeatable within ±0.01 and accurate within ±0.05. Wavelength measurements shall be repeatable with ±0.2 mμ and accurate within± 1.0 mμ Instrument operating conditions are selected to realize this performance under dynamic (automatic) recording operations. Accuracy of absorbance measurements are determined at 290, 345, and 400 mμ, using potassium chromate as the reference standard. (National Bureau of Standards Circular 484, Spectrophotometry, U.S. Department of Commerce, 1949).

G. Two fused quartz cells having pathlengths of 1.00±0.005 centimeter or better.

II. *Purity of reagents and materials.* Reagent-grade chemicals shall be used in all tests. It is further specified that each chemical shall be tested for purity in accordance with the instruction given under "Reagents and Materials" in III below. In addition, a blank run by the procedure shall be made on each purified lot of reagents and materials. Unless otherwise indicated, references to water shall be understood to mean distilled water.

III. *Reagents and materials*—A. *Organic solvents.* All solvents used throughout the procedure shall meet the specifications and tests described in this section III. The isooctane, benzene, cyclohexane, nitromethane, and *n*-hexadecane designated shall pass the following test: To the specified quantity of solvent in a 150-milliliter beaker, add 1 milliliter of purified *n*-hexadecane and evaporate on the steam bath under a stream of nitrogen. Discontinue evaporation when not over 1 milliliter of residue remains (to the residue from benzene and nitromethane add a 10-milliliter portion of purified isooctane, reevaporate, and repeat once to insure complete removal of solvent). Dissolve the 1 milliliter of *n*-hexadecane residue in isooctane and make to 10-milliliter volume. Determine the absorbance in 1.0-centimeter pathlength cells compared to water as reference. The absorbance of the solution of solvent residue shall not exceed 0.05 between 280 and 400 mμ.

1. *Isooctane (2,2,4-trimethylpentane).* Use 240 milliliters for the above test. Purify, if necessary, by passage through a column of activated silica gel.

2. *Benzene.* Use 200 milliliters for the above test. Purify, if necessary, by distillation or otherwise.

3. *Cyclohexane.* Use 70 milliliters for the above test. Purify, if necessary, by distillation, silica gel percolation, or otherwise.

4. *Nitromethane.* Use 125 milliliters for the above test. Purify, if necessary, by distillation or otherwise.

5. *n-Hexadecane.* Determine the absorbance on this solvent directly. Purify, if necessary, by silica gel percolation or otherwise.

B. *Other materials*—1. *Pyrene standard reference.* Pyrene, reagent grade, melting point range 150–152° C. (Organic Chemical 3627, Eastman Kodak Co., Rochester, N.Y., or equivalent). The standard reference absorbance is the absorbance at 334 millimicrons of a standard reference solution of pyrene containing a concentration of 1.0 milligram per liter in purified isooctane measured against isooctane of the same spectral purity in 1.0-centimeter cells. (This absorbance will be approximately 0.28.)

2. *Chrysene solution.* Prepare a solution at a concentration of 5.0 milligrams per liter by dissolving 5.0 milligrams of chrysene in purified isooctane in a 1-liter volumetric flask. Adjust to volume with isooctane.

3. *Nitrogen gas.* Water pumped or equivalent purity, cylinder with regulator, and valve control flow at 5 p.s.i.

4. *Silica gel.* 100–200 mesh (Davison Chemical, Baltimore, Md., Grade 923, or equivalent), purified and activated by the following procedure: Place about 1 kilogram of silica gel in a large column and wash with contaminant-free benzene until a 200-milliliter sample of the benzene coming off the column will pass the ultraviolet absorption test for benzene. This test is performed as stipulated under "Organic solvents" in A under III above. When the silica gel has been sufficiently cleaned, activate the gel before use by placing the 1-kilogram batch in a shallow container in a layer no greater than 1 inch in depth and heating in an oven (Caution! Explosion Hazard) at 130° C. for 16 hours, and store in a vacuum desiccator. Reheating about once a week is necessary if the silica gel is repeatedly removed from the desiccator.

5. *Aluminum oxide (Aluminum Co. of America, Grade F–20, or equivalent grade).* 80–200 mesh, purified and activated by the following procedure: Place about 1 kilogram of aluminum oxide in a large column and wash with contaminant-free benzene until a 200-milliliter sample of the benzene coming off the column will pass the ultraviolet absorption test for benzene. This test is performed as stipulated under "Organic solvents" in A under III above. (Caution! Remove Benzene From Adsorbent Under Vacuum To Minimize Explosion Hazard in Subsequent Heating!) When the aluminum oxide has been sufficiently cleaned and freed of solvent, activate it before use by placing the 1-kilogram batch in a shallow container in a layer no greater than 1 inch in depth. Heat in an oven at 130° C. for 16 hours. Upon removal from heat, store at atmospheric pressure over 80 percent (by weight) sulfuric acid in a desiccator for at least 36 hours before use. This gives aluminum oxide with between 6 to 9.5 percent volatiles. This is determined by heating a weighed sample of the prepared aluminum oxide at 2,000° F. for 2 hours and then quickly reweighing. To insure the proper adsorptive properties of the aluminum oxide, perform the following test:

a. Weigh 50 grams ±1 gram of the activated aluminum oxide and pack into the chromatographic column (1.3 centimeters x 75 centimeters) described under "Apparatus" in C under I above. Use glass wool at the column exit to prevent the aluminum oxide from passing through the column.

b. Place a 250-milliliter graduated cylinder under the column to measure the amount of eluate coming from the column.

c. Prewet the aluminum oxide by passing 40 milliliters of isooctane through the column. Adjust the nitrogen pressure so that the rate of descent of the isooctane coming off the column is between 1.5 to 2.5 milliliters per minute.

d. Just prior to the last of the isooctane reaching the top of the aluminum oxide bed, add 10 milliliters of the isooctane solution containing 5.0 milligrams of chrysene per liter.

e. Continue percolation until the isooctane is just above the aluminum oxide. Then add 200 milliliters of a mixture of benzene and isooctane (33⅓ percent benzene and 66⅔ percent isooctane by volume) to the reservoir and continue percolation.

f. Continue percolation, collecting the eluates (40 milliliters of the prewet solution, 10 milliliters of the sample solution, and 200 milliliters of the gradient solution) in the 250-milliliter graduated cylinder until the level of the gradient solution is just above the aluminum oxide. Add 200 milliliters of the eluting solution of benzene and isooctane (90 percent benzene and 10 percent isooctane by volume) to the column and continue collecting until a total of 250 milliliters of solution has been obtained. This may be discarded. Now begin to collect the final eluate.

g. Place a 100-milliliter graduated cylinder under the column and continue the percolation until a 100-milliliter eluate has been obtained.

h. Measure the amount of chrysene in this 100-milliliter fraction by ultraviolet analysis. If the aluminum oxide is satisfactory, more than 80 percent of the original amount of chrysene should be found in this fraction. (NOTE: If the amount of chrysene recovered is less than 80 percent, the original batch of aluminum oxide should be sieved between 100–160 mesh. Activation and testing of this sieved batch should indicate a satisfactory aluminum oxide for use.)

IV. *Sampling.* Precautions must be taken to insure that an uncontaminated sample of the mineral oil is obtained since ultraviolet absorption is very sensitive to small amounts of extraneous material contaminating the sample through careless handling.

V. *Procedure.* A. *Blank.* Before proceeding with the analysis of a sample, determine the absorbance of the solvent residues by carrying out the procedure without a sample.

B. *Sample.* 1. Weigh out 20.0 grams ±0.1 gram of the mineral oil into a beaker and transfer to a 250-milliliter separatory funnel fitted with a tetrafluoroethylene polymer stopcock, using enough cyclohexane (25 milliliters) to give a final total volume of 50 milliliters (mineral oil plus cyclohexane).

2. Add 25 milliliters of nitromethane saturated with cyclohexane and shake by hand vigorously for 3 minutes. Recover the lower nitromethane layer in a 150-milliliter beaker containing 1 milliliter of *n*-hexadecane and evaporate on the steam bath under nitrogen. Repeat the extraction four more times, recovering each extract in the 150-milliliter beaker. Exercise care not to fill the beaker to such a capacity that solvent losses may occur. Evaporate the combined nitromethane extracts to 1 milliliter of *n*-hexadecane residue containing the nitromethane-soluble mineral oil extractives. (NOTE: Complete removal of the nitromethane is essential. This can be assured by two successive additions of 5 milliliters of isooctane and reevaporation.)

3. Remove the beaker from the steam bath and allow to cool.

4. Weigh 50 grams ±1 gram of activated aluminum oxide and pack into the chromatographic column (1.3 centimeters x 75 centimeters) described under "Apparatus" in C under I above. (NOTE: A small plug of glass wool is placed at the column exit to prevent the aluminum oxide from passing through the column. After adding aluminum oxide, tap the column lightly to remove air voids. All percolations using aluminum oxide are performed under nitrogen pressure. The 500-milliliter reservoir described under "Apparatus" in E under I above is to be used to hold the elution solvents.)

5. Prewet the column by adding 40 milliliters of isooctane to the column. Adjust nitrogen pressure so that rate of descent of the isooctane coming off the column is 2.0 to 3.0 milliliters per minute. Be careful to maintain the level of solvent in the reservoir to prevent air from entering the aluminum oxide bed. New or additional solvent is added just before the last portion of the previous solvent enters the bed. To minimize possible photo-oxidation effects, the following procedures (steps 6 through 18) shall be carried out in subdued light.

6. Before the last of the isooctane reaches the top of the aluminum oxide bed, release the nitrogen pressure and turn off the stopcock on the column. Transfer the *n*-hexadecane residue from the 150-milliliter beaker from procedure step 3 above onto the column, using several washes of isooctane (total volume of washes should be no greater than 10–15 milliliters).

7. Open the stopcock and continue percolation until the isooctane is about 1 centimeter above the top of the aluminum oxide bed. Add 200 milliliters of isooctane to the reservoir, and continue the percolation at the specified rate.

8. Just before the isooctane surface reaches the top of the aluminum oxide bed, add 200 milliliters of a mixture of benzene and isooctane (33⅓ percent benzene and 66⅔ percent isooctane by volume) to the reservoir, and continue the percolation.

9. Just before the surface of this mixture reaches the top of the aluminum oxide bed, release the nitrogen pressure, turn off the stopcock, and discard all the elution solvents collected up to this point.

10. Add to the reservoir 300 milliliters of a mixture of benzene and isooctane (90 percent benzene and 10 percent isooctane by volume), place a 25-milliliter graduated cylinder under the column, continue the percolation until 20 milliliters of eluate has been collected, and then discard the eluate.

11. At this point, place a clean 250-milliliter Erlenmeyer flask under the column. Continue the percolation and collect all the remaining eluate.

NOTE: Allow the column to drain completely. An increase in the nitrogen pressure may be necessary as the last of the solvent comes off the column.)

12. Place 1 milliliter of *n*-hexadecane into a 150-milliliter beaker. Place this onto a steam bath under a nitrogen stream and transfer in small portions the eluate from step 11. Wash out the Erlenmeyer flask with small amounts of benzene and transfer to the evaporation beaker. Evaporate until only 1 milliliter of hexadecane residue remains. (NOTE: Complete removal of the benzene is essential. This can be assured by two successive additions of 5 milliliters of isooctane and reevaporation.)

13. Remove the beaker from the steam bath and cool.

14. Place a sample of 113.5 grams activated 100- 200-mesh silica gel in a 500-milliliter glass-stoppered Erlenmeyer flask. Add to the silica gel 46.2 grams (41 milliliters) of nitromethane. Stopper and shake the flask vigorously until no lumps of silica gel are observed and then shake occasionally during a period of 1 hour. The resultant nitromethane-treated silica gel is 29 weight-percent nitromethane and 71 weight-percent silica gel.

15. Place a small plug of glass wool in the tapered end of the 1.7 centimeters outside diameter x 115 centimeters column, described under "Apparatus" in D of I above, adjacent to the stopcock to prevent silica gel from passing through the stopcock. Pack the nitromethane-treated silica gel into the column, tapping lightly. The resultant silica gel bed should be about 95 centimeters in depth. Place into a flask 170 milliliters of isooctane saturated with nitromethane.

16. Place a 100-milliliter graduated cylinder under the column and transfer the residue from the beaker in procedure step 13 above with several washes of the 170 milliliters of isooctane, saturated with nitromethane, onto the top of the column. (Total volume of washes should be no greater than 10 to 15 milliliters.) Permit isooctane solution to enter the silica gel bed until the liquid level is at the top level. Place the remaining amount of the 170 milliliters of isooctane, saturated with nitromethane, in the reservoir above the bed for percolation through the silica gel. Apply nitrogen pressure to the top of the column, adjusting the pressure so that the isooctane is collected at the rate of

2.5 to 3.5 milliliters per minute, and percolate isooctane through the bed until a quantity of 75.0 milliliters of eluate is collected. Discard the 75 milliliters of eluate. Turn off the stopcock and add 250 milliliters of benzene to the reservoir above the bed. Use a 400-milliliter beaker to collect the remaining eluate.

17. Open the stopcock, renew the pressure, and percolate the remaining isooctane and benzene through the column eluting the remaining aromatics. Transfer the eluate in small portions from the 400 milliliter beaker to a 150-milliliter beaker containing 1 milliliter of *n*-hexadecane and evaporate on the steam bath under nitrogen. Rinse the 400-milliliter beaker well with small portions of isooctane to obtain a complete transfer.

(NOTE: Complete removal of the nitromethane and benzene is essential. This can be assured by successive additions of 5 milliliters of isooctane and reevaporation.)

18. Transfer the residue with several washes of isooctane into a 200-milliliter volumetric flask. Add isooctane to mark.

19. Record the spectrum of the sample solution in a 1-centimeter cell compared to isooctane from 270 to 400 mμ. After making necessary corrections in the spectrum for cell differences and for the blank absorbance, record the maximum absorbance in each of the wavelength intervals (mμ), 280–299, 300–319, 320–359, 360–400.

a. If the spectrum then shows no discernible peak corresponding to the absorbance maximum of the pyrene reference standard solution at 334 mμ, the maximum absorbances in the respective wavelength intervals recorded shall not exceed those prescribed in paragraph (d)(1)(ii) of this section.

b. If such a peak is evident in the spectrum of the sample solution, and the spectrum as a whole is not incompatible with that of a pyrene contaminant yielding such a peak of the observed absorbance, calculate the concentration of pyrene that would yield this peak (334 mμ) by the base-line technique described in ASTM Method E–169–60T. Correct each of the maximum absorbances in the respective specified wavelength intervals by subtracting the absorbance due to pyrene, determined as follows:

$$\text{Absorbance due to pyrene} = \frac{Cp \times Sa}{Sp},$$

Where:

Cp = Calculated concentration of pyrene in sample solution;
Sp = Concentration of pyrene reference standard solution in same units of concentration;
Sa = Absorbance of pyrene reference standard solution at wavelength of maximum absorbance of sample solution in the respective specified wavelength intervals.

Also calculate the pyrene content of the oil sample in parts per million as follows:

$$\text{Pyrene content (p.p.m.)} = \frac{200/1000 \times C}{20/1000} = 10C,$$

Where:

C = Calculated concentration of pyrene in in milligrams per liter of sample solution.

c. The pyrene content so determined shall not exceed 25 p.p.m. The maximum absorbances corrected for pyrene content as described in this step 19 for each of the specified wavelength intervals shall not exceed the limits prescribed in paragraph (d)(1)(ii) of this section.

d. If the spectrum as a whole of the sample solution is in any respect clearly incompatible with the presence of pyrene as the source of the peak at 334 mμ, then the maximum absorbances in the respective wavelength intervals without correction for any assumed pyrene content shall not exceed the limits prescribed in paragraph (d)(1)(ii) of this section.

Any person who will be adversely affected by the foregoing order may at any time within 30 days from the date of its publication in the FEDERAL REGISTER file with the Hearing Clerk, Department of Health, Education, and Welfare, Room 5440, 330 Independence Avenue SW., Washington, D.C. 20201, written objections thereto, preferably in quintuplicate. Objections shall show wherein the person filing will be adversely affected by the order and specify with particularity the provisions of the order deemed objectionable and the grounds for the objections. If a hearing is requested, the objections must state the issues for the hearing. A hearing will be granted if the objections are supported by grounds legally sufficient to justify the relief sought. Objections may be accompanied by a memorandum or brief in support thereof.

Effective date. This order shall become effective on the date of its publication in the FEDERAL REGISTER.

(Sec. 409(c)(1), 72 Stat. 1786; 21 U.S.C. 348(c)(1))

Dated: February 28, 1968.

J. K. KIRK,
Associate Commissioner for Compliance.

[F.R. Doc. 68–2892; Filed, Mar. 7, 1968; 8:48 a.m.]

Title 29—LABOR

Chapter XIV—Equal Employment Opportunity Commission

PART 1600—EMPLOYEE RESPONSIBILITIES AND CONDUCT

The Civil Service Commission has published in 32 F.R. 8281 its amendments to Title 5, Part 735 of the Code of Federal Regulations, entitled Employee Responsibilities and Conduct. To conform its own regulations on Employee Responsibilities and Conduct, the EECO is hereby revising Part 1600 of its Regulations, Title 29 Code of Federal Regulations.

The three principle substantive changes in the revised Part 1600 are to reduce the number of employees who must file statements of employment and financial interest, to proscribe non-Government reimbursement of expenses to employees traveling on official EEOC business, and to indicate the circumstances under which a voluntary gift to an official superior may be allowed. The sections within Part 1600 have also been completely renumbered.

The Commission is revising and reissuing the entire Part 1600 as amended so that it will be available as a single document. This revision was approved by the Civil Service Commission on February 28, 1968, and is effective upon publication in the FEDERAL REGISTER. Accordingly, the EEOC hereby revises and reissues Part 1600 of its Regulations (29 CFR Part 1600) effective March 5, 1968, as follows:

Subpart A—General

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1600.735–101 Purpose and policy.
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Subpart B—Limitations on Employee Conduct and Responsibilities

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1600.735–204 Financial interests.
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Subpart C—Conduct and Responsibilities of Special Government Employees

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1600.735–401 Employees required to submit statements.
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1600.735–403 Reviews of statement of employment and financial interests.
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1600.735–408 Confidentiality of employees' statements.
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Subpart A—General

§ 1600.735–101 Purpose and policy.

(a) *Purpose.* The purpose of this part is to implement Executive Order 11222, May 8, 1965 (30 CFR 6469) and Part 735 of the Civil Service Commission Regulations adopted pursuant thereto (5 CFR Part 735) by defining standards of conduct and related procedures for employees and special Government employees of the EEOC.

(b) *Policy.* The maintenance of high standards of ethical conduct by Government employees and special Government employees is essential to assure the proper performance of the Government's business and the maintenance of confidence and respect of the citizens in their Government. No public officer can lawfully engage in business activities which are incompatible with the duties of his office.

§ 1600.735–102 Definitions.

(a) "Agency" means the Equal Employment Opportunity Commission.

(b) "Employee" means an officer or employee of the Equal Employment Opportunity Commission, but does not include a special Government employee.

(c) "Executive order" means Executive Order 11222 of May 8, 1965.

(d) "Person" means an individual, corporation, company association, firm,

partnership, society, joint stock company, or any other organization or institution.

(e) "Special Government employee" means a temporary employee, with or without compensation, appointed to perform for not to exceed 130 days during any period of 365 consecutive days duties on either a full-time or intermittent basis. Such employees are generally consultants or experts.

§ 1600.735–103 Interpretations and counseling.

The General Counsel shall provide any needed counsel and assistance to all EEOC employees concerning the policy and procedures contained in this part. Field Office Directors shall serve as deputy counselors in their jurisdictions, referring any controversial problems of interpretation to the General Counsel.

§ 1600.735–104 Disciplinary and other remedial action.

An employee or special Government employee of the agency who violates any of the regulations in this part may be disciplined. The disciplinary action may be in addition to any penalty prescribed by law for the violation. In addition to or in lieu of disciplinary action, remedial action to end conflicts or appearance of conflicts of interest may include but is not limited to:

(a) Changes in assigned duties;

(b) Divestment by the employee or special Government employee of his conflicting interest; or

(c) Disqualification for a particular assignment.

§ 1600.735–105 Appeal.

Any employee or group of employees who disagree with the provisions of this part have the right to request a review of their complaint through the Employees' Grievance Procedure, Administrative Order II–12.

Subpart B—Limitations on Conduct and Responsibilities of Employees

§ 1600.735–201 Proscribed actions.

An employee shall avoid any action, whether or not specifically prohibited by this part which might result in, or create the appearance of:

(a) Using public office for private gain;

(b) Giving preferential treatment to any person;

(c) Impeding Government efficiency or economy;

(d) Losing complete independence or impartiality;

(e) Making a Government decision outside official channels; or

(f) Affecting adversely the confidence of the public in the integrity of the Government.

§ 1600.735–202 Gifts, entertainment, and favors.

(a) *General limitations.* Employees shall not solicit or accept, directly or indirectly, any gift, gratuity, favor, entertainment, loan, or any other thing of monetary value, from a person who:

(1) Has, or is seeking to obtain, contractual or other business or financial relations with this agency;

(2) Conducts operations or activities that are regulated by this agency;

(3) Has interests that may be substantially affected by the performance or nonperformance of his official duty.

(b) *Exceptions.* Section 1600.735–202 (a) does not preclude:

(1) Acceptance of a gift, gratuity, favor, entertainment, loan, payment of expenses, fee, compensation, or other things of monetary value incident to obvious family or personal relationships (such as those between the employee and the parents, children, or spouse of the employee) when the circumstances make it clear that it is the family relationship rather than the business of the persons concerned which are the motivating factors;

(2) Acceptance of food and refreshments of nominal value on infrequent occasions in the ordinary course of a luncheon or dinner meeting or other meeting or on an inspection tour where an employee may properly be in attendance;

(3) Acceptance of loans from banks or other financial institutions on customary terms to finance proper and usual activities of employees such as home mortgage loans;

(4) Acceptance of unsolicited advertising or promotional material, such as pens, pencils, note pads, calendars, and other items of nominal intrinsic value, and

(5) Receipt of bona fide reimbursement, unless prohibited by law, for expenses for travel and such other necessary subsistence as is compatible with this part for which no Government payment or reimbursement is made. However, an employee may not be reimbursed, and payment may not be made on his behalf, for excessive personal living expenses, gifts, entertainment, or other personal benefits, or for travel on official business proscribed by Decision B–128527 of the Comptroller General dated March 7, 1967.

(c) *Gifts to superiors.* An employee shall not solicit contributions from another employee for a gift to an employee in a superior official position. An employee in a superior official position shall not accept a gift presented as a contribution from employees receiving less salary than himself. An employee shall not make a donation as a gift to an employee in a superior official position (5 U.S.C. 7351). However, this does not prohibit a voluntary gift of nominal value or donation in a nominal amount made on a special occasion; i.e., marriage, illness, or retirement.

(d) *Gifts from foreign governments.* An employee shall not accept a gift, present, decoration, or other thing from a foreign government unless authorized by Congress as provided by the Constitution and in Public Law 89–673, 5 U.S.C. 7342.

§ 1600.735–203 Outside employment and other activity.

(a) *General limitations.* An employee shall not engage in outside employment or other activity not compatible with the full and proper discharge of the duties and responsibilities of his Government employment. Incompatible activities include but are not limited to:

1. Acceptance of a fee, compensation, gift, payment of expense, or any other thing of monetary value in circumstances in which acceptance may result in, or create the appearance of, conflicts of interest; or

2. Outside employment which tends to impair the mental or physical capacity to perform his Government duties and responsibilities in an acceptable manner.

(3) Receipt by an employee of any salary or anything of monetary value from a private source as compensation for his services to the Government (18 U.S.C. 209).

(b) *Teaching, lecturing and writing.* Employees are encouraged to engage in teaching, lecturing, and writing that is not prohibited by law, Executive order, or Civil Service Commission regulations. However, an employee shall not, either for or without compensation, engage in teaching, lecturing, or writing that is dependent on information obtained as a result of his Government employment, except when that information has been made available to the general public or will be made available on request, or when the Chairman gives written authorization for the use of nonpublic information on the basis that the use is in the public interest. A Commissioner shall not receive compensation or anything of monetary value for any consultation, lecture, discussion, writing, or appearance the subject matter of which is devoted substantially to the responsibilities, programs, or operations of the Commission, or which draws substantially on official data or ideas which have not become part of the body of public information.

(c) *State or local government employment.* An employee shall not engage in outside employment under a State or local government, except as may be authorized in 5 CFR Part 734.

(d) *Exceptions.* Section 1600.735–203 does not preclude:

(1) Participation in the activities of national or state political parties not proscribed by law.

(2) Participation in the affairs of, or acceptance of an award for, a meritorious public contribution or achievement given by a charitable, religious, professional, social, fraternal, nonprofit educational and recreational, public service, or civil organization.

3. Outside employment permitted under this part, including payments or reimbursements under § 1600.735–202 (b) (5).

(e) *Procedure.* An employee who engages in outside employment shall obtain his supervisor's approval in advance and shall inform the Personnel Division by memorandum.

§ 600.735–204 Financial interests.

An Employee shall not:

1. Have a direct or indirect financial interest that conflicts substantially, or appears to conflict substantially, with his

Government duties and responsibilities; or

2. Engage in, directly or indirectly, a financial transaction as a result of, or primarily relying on, information obtained through his Government employment.

This does not preclude an employee from having a financial interest or engaging in financial transactions to the same extent as a private citizen not employed by the Government so long as it is not prohibited by law, the Executive order, or these regulations.

§ 1600.735–205 Other standards of conduct.

(a) *Use of Government property.* An employee shall not directly or indirectly use, or allow the use of, Government property of any kind, including property leased to the Government, for other than officially approved activities. An employee has a positive duty to protect and conserve Government property, including equipment, supplies, and other property entrusted or issued to him.

(b) *Misuse of information.* For the purpose of furthering a private interest, an employee shall not, except as provided in § 1600.735–203(b), directly or indirectly use, or allow the use of, official information obtained through or in connection with his Government employment which has not been made available to the general public.

(c) *Indebtedness.* An employee shall pay each just financial obligation in a proper and timely manner, especially one imposed by law such as Federal, State, or local taxes. A "just financial obligation" means one acknowledged by the employee, or reduced to judgment by a court, and "in a proper and timely manner" means in a manner which the agency determines does not, under the circumstances, reflect adversely on the Government as his employer. In the event of dispute between an employee and an alleged creditor, the agency is not required to determine the validity or amount of his disputed debt.

(d) *Gambling, betting, and lotteries.* An employee shall not participate, while on Government-owned or leased property or while on duty for the Government, in any gambling activity including the operation of a gambling device, in conducting a lottery or pool, in a game for money or property, or in selling or purchasing a numbers slip or ticket.

(e) *General conduct prejudicial to the Government.* An employee shall not engage in criminal, infamous, dishonest, immoral, or notoriously disgraceful conduct, or other conduct prejudicial to the Government.

(f) *Miscellaneous statutory provisions.* Each employee shall acquaint himself with each statute that relates to his ethical and other conduct as an employee of the Government. Attention is specifically directed to the following statutory provisions:

(1) House Concurrent Resolution 175, 85th Congress, 2d session, 72 Stat. B12, the "Code of Ethics for Government Service".

(2) Chapter 11 of Title 18, United States Code, relating to bribery, graft, and conflicts of interest, as appropriate to the employees concerned.

(3) The prohibition against lobbying with appropriated funds (18 U.S.C. 1913).

(4) The prohibitions against disloyalty and striking (5 U.S.C. 7311, 18 U.S.C. 1918).

(5) The prohibition against the employment of a member of a Communist organization (50 U.S.C. 784).

(6) The prohibitions against (1) the disclosure of classified information (18 U.S.C. 798, 50 U.S.C. 783); and (2) the disclosure of confidential information (18 U.S.C. 1905).

(7) The provision relating to the habitual use of intoxicants to excess (5 U.S.C. 7352).

(8) The prohibition against the misuse of a Government vehicle (31 U.S.C. 638a(c)).

(9) The prohibition against the misuse of the franking privilege (18 U.S.C. 1719).

(10) The prohibition against the use of deceit in an examination or personnel action in connection with Government employment (18 U.S.C. 1917).

(11) The prohibition against fraud or false statements in a Government matter (18 U.S.C. 1001).

(12) The prohibition against mutilating or destroying a public record (18 U.S.C. 2071).

(13) The prohibition against counterfeiting and forging transportation requests (18 U.S.C. 508).

(14) The prohibitions against (1) embezzlement of Government money or property (18 U.S.C. 641), (2) failing to account for public money (18 U.S.C. 643), and (3) embezzlement of the money or property of another person in the possession of an employee by reason of his employment (18 U.S.C. 654).

(15) The prohibition against unauthorized use of documents relating to claims from or by the Government (18 U.S.C. 285).

(16) The prohibitions against political activities—in subchapter III of chapter 73 of Title 5, United States Code, and 18 U.S.C. 602, 603, 607, and 608.

(17) The prohibition against an employee acting as an agent of a foreign principal registered under the Foreign Agents Registration Act (18 U.S.C. 219).

Subpart C—Conduct and Responsibilities of Special Government Employees

§ 1600.735–301 Limitations.

Special Government employees shall be subject to the same standards of conduct proscribed in Subpart B above for other employees, except § 1600.735–203 (a) (3), plus the following:

(a) *Use of Government employment.* A special Government employee shall not use his Government employment for a purpose that is, or gives the appearance of being, motivated by the desire for private gain for himself or another person, particularly one with whom he has family, business, or financial ties.

(b) *Use of inside information.* A special Government employee shall not use inside information obtained as a result of his Government employment for private gain for himself or another person either by direct action on his part or by counsel, recommendation, or suggestion to another person, particularly one with whom he has family, business, or financial ties. For the purpose of this section "inside information" means information obtained under Government authority which has not become part of the body of public information. Such employees may teach, lecture, or write in a manner not inconsistent with § 1600.735–203(b) above.

(c) *Coercion.* A special Government employee shall not use his Government employment to coerce, or give the appearance of coercing, a person to provide financial benefit to himself or to another person, particularly one with whom he has family, business, or financial ties.

(d) *Gifts, entertainment, and favors.* A special Government employee, while so employed or in connection with his employment, shall not receive or solicit from a person having business with his agency anything of value as a gift, gratuity, loan, entertainment, or favor for himself or another person, particularly one with whom he has family, business, or financial ties.

(e) *Miscellaneous statutory provisions.* Special Government employees are responsible for a knowledge of statutory obligations as outlined in § 1600.735–205(f).

Subpart D—Statement of Employment and Financial Interests

§ 1600.735–401 Employees required to submit statements.

(a) The following categories of employees are determined by the EEOC, subject to the right of appeal under § 1600.735–105, to be within the scope of 5 CFR 735–403, 735–404 and therefore they shall submit Statements of Employment and Financial Interests:

(1) Employees paid at a level of the Executive Schedule in Subchapter II of Chapter 53 of Title 5 United States Code, except the members of the Commission who report under section 401 of Executive Order 11222.

(2) Employees in Grade GS–16 or above of the General Schedule in 5 U.S.C. 5332.

(3) Employees in the Office of Liaison engaged in grant or reimbursement activities classified at GS–13 or above of the General Schedule.

(4) Employees in the Office of Administration engaged in contracting or procurement activities who are classified at GS–13 or above of the General Schedule unless otherwise indicated, i.e., Director of Administration, Chief of Administrative Services, Contract Specialists, and Contract Specialist GS–12.

(b) Each special Government employee shall submit a Statement of Employment and Financial Interests showing all other employment and such financial interests as the agency determines are relevant in the light of the

duties he is to perform, except when this requirement is waived under 5 CFR 735.412(c).

§ 1600.735–402 Time and place for submission of employee statement.

Statement of Employment and Financial Interests shall be submitted by employees covered by § 1600.735–401 within 60 days after issuance of this part for employees on the rolls at that time and for new employees within 30 days of their entrance on duty. Special Government employees will complete duplicate copies of the forms in appendix A at the time of entrance on duty. All other employees required to file Statements of Employment and Financial Interests will complete duplicate copies of the form in appendix B. The completed original of these forms will be sent to the Director of Personnel in a sealed envelope marked on the outside "Confidential Statement Enclosed." The duplicate copy will be retained by the employee. The Personnel Division shall retain files of the Statements of Employment and Financial Interests.

§ 1600.735–403 Review of statement of employment and financial interests.

The Director of Personnel shall review these statements for the purpose of disclosing any conflict of interest or apparent conflict of interest. If such conflict between the interests of an employee or special Government employee and the performance of his services for the Government are found, they shall be brought to the attention of the employee or special Government employee and he shall be granted the opportunity to explain the conflict and attempt to resolve it. If the indicated conflict cannot be resolved, the Director of Personnel should submit a written report with the recommendation for appropriate remedial action to the Chairman through the General Counsel.

§ 1600.735–404 Supplementary statements.

Changes in, or additions to, the information contained in an employee's Statement of Employment and Financial Interests shall be reported in a supplementary statement as of June 30 each year. If no changes or additions occur, a negative report is required. Notwithstanding the filing of the annual report required by this section, each employee shall at all times avoid acquiring a financial interest that could result, or taking an action that would result, in a violation of the conflicts of interest provisions of 18 U.S.C. 208 or this part.

§ 1600.735–405 Interests of employees' relatives.

The interest of a spouse, minor child, or other member of an employee's immediate household is considered to be an interest of the employee. For the purpose of this section, "member of an employee's immediate household" means those blood relations who are residents of the employee's household.

§ 1600.735–406 Information not known by employees.

If any information required to be included on a statement of employment and financial interests or supplementary statement, including holdings placed in trust, is not known to the employee but is known to another person, the employee shall request that other person to submit information in his behalf.

§ 1600.735–407 Information not required.

This subpart does not require an employee to submit on a statement of employment and financial interests or supplementary statement any information relating to the employee's connection with, or interest in a professional society or a charitable, religious, social, fraternal, recreational public service, civil, or political organization or a similar organization not conducted as a business enterprise. For the purpose of this section, educational and other institutions doing research and development or related work involving grants of money from or contracts with the Government are deemed "business enterprises" and are required to be included in an employee's statement of employment and financial interests.

§ 1600.735–408 Confidentiality of employees' statements.

The agency shall hold each Statement of Employment and Financial Interests, and each supplementary statement, in confidence. The Director of Personnel or other employee authorized to review or retain a statement are responsible for maintaining them in confidence and shall not allow access to, or allow information to be disclosed from, a statement except to carry out the purpose of this part. The agency may not disclose information from a statement except as the Civil Service Commission or the Chairman, EEOC, may determine for good cause shown.

§ 1600.735–409 Effect of employees' statements on other requirements.

The Statements of Employment and Financial Interests and supplementary statements are in addition to, and not in substitution for, or in derogation of, any similar requirement imposed by law, order, or regulation. The submission of a statement or supplementary statement by an employee does not permit him or any other person to participate in a matter in which his or the other person's participation is prohibited by law, order, or regulation.

Dated: March 5, 1968.

CLIFFORD L. ALEXANDER, Jr.,
Chairman.

[F.R. Doc. 68–2901; Filed, Mar. 7, 1968; 8:49 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter II—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 4377]

[AA–603]

ALASKA

Partial Revocation of Public Land Order No. 2546 of November 22, 1961

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Public Land Order No. 2546 of November 22, 1961, withdrawing lands for use of the Forest Service, Department of Agriculture, as administrative sites, is hereby revoked so far as it affects the following described lands:

AUKE BAY AREA

Auke Bay Administrative Site, lot 1, U.S. Survey No. 3819.
Containing 0.73 acre.

2. Until 10 a.m., on June 3, 1968, the State of Alaska shall have a preferred right to select the lands as provided by section 6(g) of the Alaska Statehood Act of July 7, 1958 (72 Stat. 399), and the regulations in 43 CFR 2222.9. After that time the lands shall be open to the operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m., on June 3, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Anchorage, Alaska.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MARCH 4, 1968.

[F.R. Doc. 68–2865; Filed, Mar. 7, 1968; 8:46 a.m.]

[Public Land Order 4378]

[Arizona 903]

ARIZONA

Withdrawal for National Forest Recreation Areas

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the

following described national forest lands are hereby withdrawn from appropriation under the mining laws (Title 30 U.S.C., Ch. 2), in aid of programs of the Department of Agriculture:

GILA AND SALT RIVER MERIDIAN

SITGREAVES NATIONAL FOREST

Woods Canyon Lake Recreation Area

T. 11 N., R. 13 E.,
Sec. 23, NE¼NE¼, W½NE¼, W½SE¼NE¼, NW¼NE¼SE¼, S½NE¼SE¼, E½NW¼SE¼, and those portions of the E½SW¼SE¼ and SE¼SE¼ in the Sitgreaves National Forest;
Sec. 24, NE¼NW¼, E½W½NW¼, E½W½SW¼, and SW¼SW¼SW¼;
Sec. 25, W½NW¼, that portion within the Sitgreaves National Forest;
Sec. 26, NE¼NE¼, that portion within the Sitgreaves National Forest.

Willow Springs Lake Recreation Area

T. 11 N., R. 14 E.,
Sec. 19, S½SE¼;
Sec. 20, S½SW¼, and SW¼SE¼;
Sec. 28, W½W½;
Sec. 29;
Sec. 30, E½;
Sec. 31, N½NE¼;
Sec. 32, N½N½;
Sec. 33, NW¼NW¼.

Canyon Point Campground and Recreation Area

T. 11 N., R. 14 E.,
Sec. 22, SE¼NE¼, and E½SE¼;
Sec. 23, SW¼NW¼, W½SW¼, and SE¼SW¼;
Sec. 26, SW¼NE¼, N½NW¼, SE¼NW¼, E½SW¼, W½SE¼, and that portion of the SE¼SE¼, within the Sitgreaves National Forest;
Sec. 27, NE¼NE¼;
Sec. 35, N½NE¼, SE¼NE¼, NE¼NW¼ (those portions within the Sitgreaves National Forest).

Black Canyon Lake Recreation Area

T. 11 N., R. 15 E.,
Sec. 13, W½SW¼, SE¼SW¼, and SW¼SE¼;
Sec. 14, E½SE¼;
Sec. 23, NE¼, and N½SE¼;
Sec. 24, lot 2, part of lot 3 (within what would be the NW¼SE¼), part of HES 190 (within what would be the NW¼SE¼), W½NE¼, NW¼, and N½SW¼.

The areas described aggregate approximately 3,675 acres.

2. The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permit or governing the disposal of their mineral or vegetative resources other than under the mining laws.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MARCH 4, 1968.

[F.R. Doc. 68-2861; Filed, Mar. 7, 1968; 8:45 a.m.]

[Public Land Order 4374]

[Riverside 26]

CALIFORNIA

Elimination of Lands From the Havasu Lake National Wildlife Refuge

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Executive Order No. 8647 of January 22, 1941, establishing the Havasu Lake National Wildlife Refuge, is hereby revoked so far as it affects the following described lands:

SAN BERNARDINO MERIDIAN

T. 7 N., R. 24 E.,
Sec. 5, lots 2, 3, part lot 4 (all that part within the refuge boundary);
Sec. 8, part lot 1 (that part north of the Atchison, Topeka and Santa Fe Railway), NW¼NE¼ (that part north of the Atchison, Topeka and Santa Fe Railway).

The areas described, including both public and nonpublic lands, aggregate approximately 76.05 acres. The public domain lands in the area are withdrawn for reclamation purposes.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MARCH 4, 1968.

[F.R. Doc. 68-2862; Filed, Mar. 7, 1968; 8:46 a.m.]

[Public Land Order 4372]

[Sacramento 076228; 837]

CALIFORNIA

Withdrawal for National Forest Administrative Site and Campground

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Subject to valid existing rights, the following described national forest lands are hereby withdrawn from appropriation under the mining laws (30 U.S.C., Ch. 2), but not from leasing under the mineral leasing laws, in aid of programs of the Department of Agriculture:

[Sacramento 076228]

MOUNT DIABLO MERIDIAN

TRINITY NATIONAL FOREST

Rush Creek Campground

T. 34 N., R. 9 W.,
Sec. 9, SW¼SW¼NE¼SW¼, NW¼NW¼SW¼, N½SW¼NW¼SW¼, SW¼NE¼NW¼SW¼, SE¼NW¼SW¼, E½NE¼SE¼SW¼, SW¼NE¼SE¼SW¼, NW¼SE¼SW¼, N½SW¼SW¼SW¼, SE¼SW¼SE¼SW¼, and SE¼SE¼SW¼.

The areas described aggregate approximately 65 acres in Trinity County.

[Sacramento 837]

MOUNT DIABLO MERIDIAN

STANISLAUS NATIONAL FOREST

Mi-Wok Administrative Site

T. 3 N., R. 16 E.,
Sec. 35, SW¼SE¼.

The area described contains 40 acres in Tuolumne County.

2. The withdrawal made by this order does not alter the applicability of those public land laws governing the use of the national forest lands under lease, license, or permit, or governing the disposal of their mineral or vegetative resources other than under the mining laws.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MARCH 4, 1968.

[F.R. Doc. 68-2860; Filed, Mar. 7, 1968; 8:45 a.m.]

[Public Land Order 4375]

[Utah 0146012]

UTAH

Revocation of Air Navigation Site Withdrawal

By virtue of the authority contained in section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. The departmental order of May 28, 1948, withdrawing the following described public lands as Air Navigation Site Withdrawal No. 249, is hereby revoked.

SALT LAKE MERIDIAN

T. 20 S., R. 8 W.,
Sec. 1, S½NE¼NE¼SW¼, and N½SE¼NE¼SW¼.

The areas described aggregate approximately 10 acres in Millard County.

2. At 10 a.m., on April 9, 1968, the lands shall be open to operation of the public land laws generally, subject to valid existing rights, the provisions of existing withdrawals, the requirements of applicable law, and the provisions of existing orders of classification. All valid applications received at or prior to 10 a.m., on April 9, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The lands will be open to location under the United States mining laws at 10 a.m., on April 9, 1968. They have been open to applications and offers under the mineral leasing laws.

The State of Utah has waived the preference right of application granted to certain states by R.S. 2276, as amended (43 U.S.C. 852).

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah 84111.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MARCH 4, 1968.

[F.R. Doc. 68-2863; Filed, Mar. 7, 1968; 8:46 a.m.]

[Public Land Order 4376]

[Utah 828]

UTAH

Partial Revocation of Executive Order No. 8652; Correction of Public Land Order No. 4317

By virtue of the authority vested in the President and pursuant to Executive

Order No. 10355 of May 26, 1952 (17 F.R. 4831), it is ordered as follows:

1. Executive Order No. 8652 of January 28, 1941, which reserved the public lands within described areas in Utah for use of the Department of the Air Force as an aerial bombing and gunnery range, is hereby revoked so far as it affects the following described public lands:

SALT LAKE MERIDIAN

T. 1 S., R. 19 W.,
Secs. 9, 10, and 11;
Sec. 15, N½;
Sec. 17, N½NE¼, SW¼NE¼; NW¼;
Sec. 18, lots 1 and 2.

The areas described aggregate approximately 2,627 acres.

2. Until 10 a.m., on September 2, 1968, the State of Utah shall have a preferred right of application to select the lands as provided by R.S. 2276 as amended (43 U.S.C. 852). After that time the lands shall be open to the operation of the public land laws generally, including the mining laws, subject to valid existing rights, the provisions of existing withdrawals, and the requirements of applicable law. All valid applications received at or prior to 10 a.m., on September 2, 1968, shall be considered as simultaneously filed at that time. Those received thereafter shall be considered in the order of filing.

3. The lands have been open to applications and offers under the mineral leasing laws.

4. Public Land Order No. 4317 of October 31, 1967, so far as it describes the areas released thereby as aggregating 11,378 acres, is corrected to read 8,751 acres.

Inquiries should be addressed to the Manager, Land Office, Bureau of Land Management, Salt Lake City, Utah.

HARRY R. ANDERSON,
Assistant Secretary of the Interior.

MARCH 4, 1968.

[F.R. Doc. 68-2864; Filed, Mar. 7, 1968; 8:46 a.m.]

Proposed Rule Making

DEPARTMENT OF AGRICULTURE

Consumer and Marketing Service

[7 CFR Part 52]

CANNED SPINACH

Standards for Grades [1]

Notice is hereby given that the U.S. Department of Agriculture is considering the revision of the U.S. Standards for Grades of Canned Spinach (7 CFR 52.1901–52.1911) pursuant to the authority contained in the Agricultural Marketing Act of 1946 (sec. 203, 60 Stat. 1087, as amended; 7 U.S.C. 1622). This revision, if made effective, will be the fourth issue by the Department of grade standards for this product.

During the period of March 1, 1966, to January 1, 1968, two notices of proposed rule making were published in the FEDERAL REGISTER (31 F.R. 3253 and 32 F.R. 6848) regarding the proposed revision of the grade standards for this product. The proposal set forth herein is the third proposal to revise the USDA grade standards which have been in effect since May 1950.

All persons who desire to submit written data, views, or arguments for consideration in connection with the proposal should file the same in duplicate, not later than January 1, 1969, with the Hearing Clerk, U.S. Department of Agriculture, Room 112, Administration Building, Washington, D.C. 20250. All written submission made pursuant to this notice will be available for public inspection at the office of the Hearing Clerk during regular business hours (7 CFR 1.27(b)).

Statement of considerations leading to the revised proposal. A proposed revision of the grade standards for canned spinach was published in the FEDERAL REGISTER of March 1, 1966, upon industry request. A second proposal, which contained certain changes from the first proposal, was published in the FEDERAL REGISTER of May 4, 1967. Those two notices proposed changes from the current standards to include:

(1) A new concept in standards based on the statistical attributes principle;

(2) Objective definitions for the styles of "Cut Leaf" or "Sliced" and "Chopped";

(3) Separate allowances applicable to the style of chopped;

(4) Specific allowances for stem material;

(5) The nomenclature for the grades currently designated as Grade C (Standard) would be changed to Grade B (Extra Standard).

This revised proposal incorporates a few changes from the previous proposals, many of which are editorial or corrections for omissions in the second notice of certain types of defects. Some of the proposed changes (other than editorial) were suggested by the Standards Committee of the Canners League of California. Other changes are proposed on the Department's own initiative. The major proposed changes include:

(1) Deletion of the proposed sampling plan in its entirety. (In lieu thereof, sampling plans in the "Regulations Governing Inspection of Processed Fruits, Vegetables, and Related Products" 7 CFR 52.1–52.87 would be used);

(2) Adjustment of the sample unit size for No. 2½ and No. 10 containers to make the ratio of the total sample weight to lot weight more comparable to other container sizes;

(3) Separate tolerances for the No. 2½ and No. 10 containers to statistically compensate for the adjusted sample unit size and total sample weight;

(4) A procedure for ascertaining compliance with stem requirements;

(5) Classification of damage for the style of "Cut Leaf" as minor, major, and severe. (Damage for this style was classified only as minor in the previous proposal);

(6) An increase in the aggregate length of weeds and grass for the different defect classifications in chopped style;

(7) A modification of the acceptance criteria to delete the requirement pertaining to the order of production.

No other basic changes are included in this revised proposal.

The proposed revision is as follows:

PRODUCT DESCRIPTION, STYLES, GRADES

Sec.
52.1901 Product description.
52.1902 Styles of canned spinach.
52.1903 Grades of canned spinach.

DEFINITIONS OF TERMS AND SYMBOLS

52.1904 Definitions of terms and symbols.

FILL OF CONTAINER

52.1905 Recommended fill of container.

RECOMMENDED DRAINED WEIGHTS

52.1906 Recommended drained weights.

FACTORS OF QUALITY

52.1907 Factors of quality.
52.1908 Sample unit size.

PRODUCT CHARACTERISTICS

52.1909 Classification of defects.

TOLERANCES FOR GRADE COMPLIANCE

52.1910 Tolerances for stem material.
52.1911 Tolerances for color, character, damage, harmless extraneous material.

ASCERTAINING PERCENTAGE OF STEM MATERIAL

Sec.
52.1912 Method for ascertaining percentage of stem material.

LOT ACCEPTANCE

52.1913 Lot acceptance for drained weights.
52.1914 Lot acceptance for quality.

SCORE SHEET

52.1915 Score sheet for canned spinach.

AUTHORITY: The provisions of this subpart issued under secs. 202–208, 60 Stat. 1087 et seq., as amended; 7 U.S.C. 1621–1627.

PRODUCT DESCRIPTION, STYLES, GRADES

§ 52.1901 Product description.

"Canned Spinach", as defined in the definitions and standards of identity for canned vegetables (21 CFR 51.990) issued pursuant to the Federal Food, Drug, and Cosmetic Act, means the product properly prepared from the succulent leaves of the spinach plant and is packed with the addition of water in hermetically sealed containers and sufficiently processed by heat to prevent spoilage. Citric acid or a vinegar may be added in a quantity not more than sufficient to permit effective processing by heat without discoloration or other impairment of the product. One or more of the optional seasoning ingredients specified in the aforesaid standards of identity may be added.

§ 52.1902 Styles of canned spinach.

(a) "Whole leaf" spinach consists substantially of the leaf and adjoining portion of the stem.

(b) "Cut leaf" or "Sliced" spinach consists of the leaf and adjoining portion of stem that has been cut predominantly into large pieces approximately ¾ inch or more in the longest dimension or cut predominantly into approximate strips.

(c) "Chopped" spinach consists of the leaf and adjoining portion of stem that has been cut predominantly into small pieces less than approximately ¾ inch in the longest dimension.

§ 52.1903 Grades of canned spinach.

(a) "U.S. Grade A" (or "U.S. Fancy") is the quality of canned spinach that has a good flavor and odor and has an attractive appearance and eating quality as to (1) color, (2) character, (3) stem material, (4) damage, and (5) harmless extraneous material, within the limitations set forth in this subpart.

(b) "U.S. Grade B" (or "U.S. Extra Standard") is the quality of canned spinach that has a good flavor and odor and has a reasonably attractive appearance and eating quality as to (1) color, (2) character, (3) stem material, (4) damage, and (5) harmless extraneous material, within the limitations set forth in this subpart.

[1] Compliance with the provisions of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act or with applicable state laws and regulations.

(c) "Substandard" is the quality of canned spinach that fails to meet the requirements for "U.S. Grade B."

DEFINITIONS OF TERMS AND SYMBOLS

§ 52.1904 Definitions of terms and symbols.

(a) *Terms.*

Defect	Any specifically defined variation from a particular requirement.
Deviant	A sample unit that exceeds an upper limit (such as for stem material or various defect classifications) or fails to meet a lower limit (such as drained weights).
Sample	Any number of sample units to be used for inspection of a lot.
Sample Unit	The entire contents of a container, a portion of the contents of a container, or a combination of the contents of two or more containers as specified to be used for inspection.
Sample Average Value	The numerical value calculated by dividing the total number of applicable defects in a sample by the total number of sample units in that sample.

(b) *Symbols.*

$\bar{X}_d$	Minimum sample average drained weight.
LL	Lower limit for individual drained weights.
UL	Upper limit is the value which represents the maximum amount of stem material or the maximum number of defects a sample unit may have for a grade classification.

FILL OF CONTAINER

§ 52.1905 Recommended fill of container.

The recommended fill of container is not incorporated in the grades of the finished product since fill of container, as such, is not a factor of quality for the purpose of these grades. The recommended fill of container for canned spinach is the maximum amount of spinach that can be sealed in a container and processed by heat without impairment of quality. It is recommended that the product and packing medium occupy not less than 90 percent of the water capacity of the container.

RECOMMENDED DRAINED WEIGHTS

§ 52.1906 Recommended drained weights.

(a) *General.* The recommended drained weight values in Table I of this subpart are not incorporated in the grades of the finished product, since drained weight, as such, is not a factor of quality for the purpose of these grades.

(b) *Method for ascertaining drained weight.* (1) The drained weight of canned spinach is determined when the product is at approximately room temperature (68° F.) The contents of the container is emptied upon a dry, previously weighed, U.S. Standard No. 8 circular sieve of proper diameter containing 8 meshes to the inch (0.0937 inch, ±3 percent, square openings). With the sieve flat on the tray, the container of spinach is placed open end down in the sieve in an upright position. The container is lifted off the spinach without spreading the spinach out on the sieve. The spinach is allowed to drain for exactly two minutes. The weight of the spinach and sieve minus the weight of the dry sieve is the drained weight of the spinach.

(2) A sieve 8 inches in diameter is used for the equivalent of a No. 3 size can (404 x 700) and smaller and a sieve 12 inches in diameter is used for containers larger than the equivalent of a No. 3 size can.

TABLE I

RECOMMENDED MINIMUM DRAINED WEIGHTS FOR CANNED SPINACH

Container designation (metal, unless otherwise stated)	Container size overall dimensions		Capacity weight H_2O at 68° F.	Minimum drained weight	
	Diameter	Height			
	Inches	*Inches*	*Avoirdupois ounces*	*Avoirdupois ounces*	
				LL	$\bar{X}_d$
8Z Tall	2 1/16	3 1/16	8.65	4.8	5.2
No. 1 Picnic	2 1/16	4	10.90	6.3	6.8
No. 300	3	4 7/16	15.20	8.6	9.1
No. 1 Tall	3 1/16	4 11/16	16.60	9.4	10.0
No. 303	3 3/16	4 9/16	16.85	9.6	10.2
No. 303 Glass			17.70	9.4	10.0
No. 2	3 7/16	4 9/16	20.50	11.9	12.6
No. 2 1/2	4 1/16	4 11/16	29.75	17.6	18.6
No. 2 1/2 Glass			29.50	15.8	16.6
No. 10	6 3/16	7	109.45	54.7	58.4

FACTORS OF QUALITY

§ 52.1907 Factors of quality.

The grade of a lot of canned spinach is based on requirements for product characteristics with respect to the following quality factors.

(a) Flavor and odor.
(b) Color.
(c) Character.
(d) Stem material.
(e) Damage.
(f) Harmless extraneous material.

§ 52.1908 Sample unit size.

(a) Compliance with the factors of flavor and odor, color, and character may be determined on: (1) The contents of an entire container, or (2) a representative subsample from containers yielding more than 10 ounces of drained weight.

(b) Compliance with requirements for harmless extraneous material other than plant material is determined on the contents of an entire container.

(c) Compliance with requirements for the factors of stem material, damage, and extraneous plant material shall be determined on subsamples as specified on Table II of this subpart.

TABLE II

SAMPLE UNIT SIZE

Style	Containers smaller than No. 2 1/2	No. 2 1/2 Containers	No. 10 Containers
	Drained spinach	*Drained spinach*	*Drained spinach*
Whole leaf:			
Cut leaf	10 ounces	15 ounces	30 ounces.
Chopped	2 ounces	3 ounces	6 ounces.

PRODUCT CHARACTERISTICS

§ 52.1909 Classification of defects.

(a) *General.* Scoreable defects in the factors of color, character, extraneous plant material, other extraneous material, and damaged spinach are outlined in Tables III, IV, and V.

(b) *Extraneous plant material.* Extraneous plant material includes root crowns and root stubs of the spinach plant and harmless grass and weeds of various kinds and texture.

(c) *Other extraneous material.* Other extraneous material includes grit, sand, silt, or other earthy material.

(d) *Damage.* Damage includes discoloration or other similar injury on a leaf or stem or portion thereof which damage affects, materially affects, or seriously affects the appearance of eating quality of the portion of spinach and/or entire product.

(e) *Degrees of defect classes.* Defects are classified as to minor, major, or severe. Each "X" mark in Tables III, IV, and V represents "one (1) defect".

TABLE III

WHOLE LEAF; CUT LEAF; CHOPPED STYLES

Quality factors	Defects	Minor	Major	Severe
Color	Color appearance is—			
	Adversely affected to a degree that is noticeable		X	
	Adversely affected to a degree that is objectionable			X
Character	Appearance or eating quality, due to a mushy texture, disintegration, ragged cutting, or shredded leaves and shredded stems or portions, thereof, as applicable for the style, is—			
	Adversely, but not seriously, affected		X	
	Seriously affected			X
Extraneous plant material.	Root crown:			
	Any significant portion of the solid area of the plant between the root and attached leaves.		X	
	Root stub:			
	Any portion of the root whether or not leaves are attached			X
Other extraneous material.	Grit, sand, silt, or other earthy material:			
	A trace that no more than slightly affects appearance or eating quality.		X	
	Presence materially affects appearance or eating quality			X

TABLE IV

Quality factors	Defects	Minor	Major	Severe	Defects	Minor	Major	Severe
	Whole leaf; cut leaf styles				*Chopped style*			
Extraneous plant material.	Grass and Weeds:				Grass and Weeds:			
	(Aggregate measurement)				(Aggregate measurement)			
	(1) Green, fine, tender string-like blades and stems:				(1) Green, fine, tender string-like blades and stems:			
	3 inches or less	X			¾ inch or less	X		
	More than 3 inches but not more than 8 inches		X		More than ¾ inch but not more than 2 inches		X	
	More than 8 inches			X	More than 2 inches			X
	(2) Green and coarse:				(2) Green and coarse:			
	½ inch or less	X			¾ inch or less		X	
	More than ½ inch but not more than 2 inches		X		More than ¾ inch			X
	More than 2 inches			X				
	(3) Other than green—of any texture or kind:				(3) Other than green—of any texture or kind:			
	½ inch or less		X		Any amount			X
	More than ½ inch			X				
	Seed Head:				Seed Head—Pieces affect appearance or eating quality—			
	Longer than 1 inch or objectionable regardless of size		X		More than slightly but not materially	X		
					Materially		X	
					Seriously			X

TABLE V

Quality factors	Defects	Minor	Major	Severe	Defects	Minor	Major	Severe
	Whole leaf; cut leaf Styles				*Chopped Style*			
Damage	Discoloration or other injury: (affecting the appearance or eating quality):				Discoloration or other injury: (affecting the appearance or eating quality):			
	Less than 1 square inch that more than slightly but not materially affects	X			Any area that materially affects	X		
	Less than 1 square inch that materially affects		X					
	1 square inch or more but less than 4 square inches that affects to any degree		X					
	More than 4 square inches that affects to any degree			X				

TOLERANCES FOR GRADE COMPLIANCE

§ 52.1910 Tolerances for stem material.

Stem material is that portion of the spinach plant below the point of attachment to the leaf. Allowances for stem material for the respective grade are shown in Table VI, based on the method for ascertaining the amount of stem material outlined in this subpart (see § 52.1912).

TABLE VI

TOLERANCES FOR STEM MATERIAL (ALL STYLES)

Grade classification	*Upper limit (UL) for the sample unit*
U.S. Grade A	25 percent by weight.
U.S. Grade B	30 percent by weight.

§ 52.1911 Tolerances for color, character, damage, harmless extraneous material.

TABLE VII(a)

WHOLE LEAF; CUT LEAF STYLES

For container sizes:
Less than No. 2½ (Sample size—10 ozs.).

Grade classification	Defect classification	Number of defects permitted in a sample unit		Sample average value
		Upper limit (UL)	Maximum allowed for deviants	
U.S. grade A	Severe	1	2	0.25
	Major	4	6	1.50
	Total [2]	8	11	4.0
U.S. grade B	Severe	2	3	0.50
	Major	8	11	4.0
	Total [2]	18	23	12.0

[2] "Total"—the sum of Severe, Major, and Minor defects.

TABLE VII(b)

WHOLE LEAF; CUT LEAF STYLES

For container size:
No. 2½ (Sample size—15 ozs.):

Grade classification	Defect classification	Number of defects permitted in a sample unit		Sample average value
		Upper limit (UL)	Maximum allowed for deviants	
U.S. Grade A	Severe	1	3	0.375
	Major	5	8	2.25
	Total [2]	10	14	6.0
U.S. Grade B	Severe	2	4	0.75
	Major	10	14	6.0
	Total [2]	26	32	18.0

TABLE VII(c)

WHOLE LEAF; CUT LEAF STYLES

For container size:
No. 10 (Sample size—30 ozs.):

Grade classification	Defect classification	Number of defects permitted in a sample unit		Sample average value
		Upper limit (UL)	Maximum allowed for deviants	
U.S. Grade A	Severe	2	4	0.75
	Major	8	12	4.5
	Total [2]	18	23	12.0
U.S. Grade B	Severe	4	6	1.5
	Major	18	23	12.0
	Total [2]	47	55	36.0

[2] "Total"—the sum of Severe, Major, and Minor defects.

TABLE VIII (a)

CHOPPED STYLE

For container sizes:
Less than No. 2½ (Sample size—2 ozs.):

Grade classification	Defect classification	Number of defects permitted in a sample unit		Sample average value
		Upper limit (UL)	Maximum allowed for deviants	
U.S. Grade A	Severe	1	2	0.25
	Major	4	6	1.50
	Minor (grass and weeds)	4	7	2.0
	Total [3]	22	27	15.0
U.S. Grade B	Severe	2	3	0.50
	Major	8	11	4.0
	Minor (grass and weeds)	10	14	6.0
	Total [3]	51	59	40.0

TABLE VIII (b)

CHOPPED STYLE

For container size:
No. 2½ (Sample size—3 ozs.):

Grade classification	Defect classification	Number of defects permitted in a sample unit		Sample average value
		Upper limit (UL)	Maximum allowed for deviants	
U.S. Grade A	Severe	1	3	0.375
	Major	5	8	2.25
	Minor (grass and weeds)	6	9	3.0
	Total [3]	31	38	22.5
U.S. Grade B	Severe	2	4	0.75
	Major	10	14	6.0
	Minor (grass and weeds)	14	19	9.0
	Total [3]	74	85	60.0

[3] "Total"—the sum of Severe, Major, and Minor defects.

TABLE VIII(c)

CHOPPED STYLE

For container size:
No. 10 (Sample size—6 ozs.):

Grade classification	Defect classification	Number of defects permitted in a sample unit		Sample average value
		Upper limit (UL)	Maximum allowed for deviants	
U.S. Grade A	Severe	2	4	0.75
	Major	8	12	4.5
	Minor (grass and weeds)	10	14	6.0
	Total [3]	57	66	45.0
U.S. Grade B	Severe	4	6	1.50
	Major	18	23	12.0
	Minor (grass and weeds)	26	32	18.0
	Total [3]	140	153	120.0

[3] "Total"—the sum of Severe, Major, and Minor defects.

ASCERTAINING PERCENTAGE OF STEM MATERIAL

§ 52.1912 Method for ascertaining percentage of stem material.

(a) *Method for separation*—(1) *Whole leaf; cut leaf styles.* (i) Have available two dry, previously weighed U.S. Standard No. 8 circular sieves containing 8 meshes to the inch (0.0937, ±3 percent, square openings), not to exceed 8 inches in diameter.

(ii) Place the sample unit of spinach in water in a deep grading tray. With gentle agitation, separate the leaves. Remove the individual leaves from the water and cut the attached stem off just below the last point of attachment of leaf material.

(iii) Place the stem material on one sieve and the leaf material on another sieve. Remove all detached stems and pieces of stem and detached leaves and pieces of leaves from the water and place on their respective screen.

(2) *Chopped style.* Place the sample unit, approximately one ounce at a time, in water in a deep grading tray. Remove

the loose stem material and place on a dry sieve as mentioned under paragraph (a)(1) of this section. Pour the remaining leaf material on another sieve. Repeat until the stem material has been removed from the entire sample unit.

(b) *Drained weight of separated material.* (1) Allow the leaf material and stem material to drain for two minutes from the time the separation has been completed.

(2) Weigh separately: (i) The screen and leaf material, and (ii) the screen and stem material. The weight of the screen and leaf material minus the weight of the screen is the weight of the leaf material. The weight of the screen and stem material minus the weight of the screen is the weight of stem material.

(c) *Calculations.* The percent of stem material is the weight of drained stem material divided by the sum of the weights of drained stem material and drained leaf material.

$$\frac{\text{Weight of stem material}}{\text{Weight of stem material plus weight of leaf material}} = \text{Percent of stem material}$$

LOT ACCEPTANCE

§ 52.1913 Lot acceptance for drained weights.

A lot of canned spinach is considered as meeting the minimum drained weights when the following criteria are met:

(a) The average of the drained weights from all the containers in the sample meets the average drained weight in Table I of this subpart (designated as X_d); and

(b) The number of deviants for drained weight do not exceed the applicable acceptance number specified in the single sampling plan in the Regulations Governing Inspection of Processed Fruits, Vegetables, and Related Products (§§ 52.1–52.87).

§ 52.1914 Lot acceptance for quality.

A lot of canned spinach shall be considered as meeting the quality requirements for the applicable grade when the following criteria are met:

(a) *Flavor and odor.* All sample units meet the requirements for flavor and odor.

(b) *Stem material.* (1) The number of sample units which exceed the upper limits (UL) for stem material as applicable for the grade (deviants), specified in Table VI, does not exceed the acceptance number specified for the sample size in the Single Sampling Plan of the Regulations Governing Inspection of Processed Fruits, Vegetables, and Related Products (§§ 52.1–52.87).

(2) Deviants for stem material are permitted in addition to the deviants allowed for other quality factors.

(c) *Color, character, damage, harmless extraneous material.* (1) The number of sample units which exceed the upper limit (UL) for these defects for the applicable grade (deviants), specified in Tables VII(a), VII(b), VII(c), VIII(a), VIII(b), and VIII(c), does not exceed the acceptance number specified for the sample size in the Single Sampling Plan of the Regulations Governing Inspection of Processed Fruits, Vegetables, and Related Products (§§ 52.1–52.87); and

(2) The sample average values for the various defect classifications specified in Tables VII(a), VII(b), VII(c), VIII(a), VIII(b), and VIII(c) are not exceeded.

(3) No sampling unit exceeds the maximum number of defects allowed for deviants.

SCORE SHEET

§ 52.1915 Score sheet for canned spinach.

No., size, kind of container
Label statements
Container mark or identification — Cans / Glass / Cases
Net weight (ounces)
Vacuum (inches)
Drained weight (ounces) — Average

Style

Quality factors	Defects: Sample unit Minor	Sample unit Major	Sample unit Severe	Sample unit Minor	Sample unit Major	Sample unit Severe	Sample average value
Color							
Character							
Damage							
Harmless extraneous material							Minor / Major / Severe
Total (each classification)							
Total — Minor / Major / Severe							
Stem material — A—UL=25 percent / B—UL=30 percent			%			%	
Flavor and odor — Good							
Flavor and odor — Objectionable							

Dated: March 4, 1968.

G. R. GRANGE,
Deputy Administrator,
Marketing Services.

[F.R. Doc. 68-2843; Filed, Mar. 7, 1968; 8:45 a.m.]

DEPARTMENT OF TRANSPORTATION

Hazardous Materials Regulations Board

[49 CFR Parts 173, 178]

[Docket No. HM-3; Notice No. 68-2]

EXPLOSIVES AND OTHER DANGEROUS ARTICLES

Notice of Proposed Rule Making

Correction

In F.R. Doc. 68-2226 appearing at page 3382 in the issue of Tuesday, February 27, 1968, the following changes should be made:

1. The heading for § 173.33 should read "Cargo tank use authorization."

2. The second entry in the second column opposite "Molybdenum" in the tabular material of § 178.60-4(b) should read: "Over 0.20 to 0.40 inclusive".

3. In § 178.63-5, the figure following "phosphorus" should read "0.045".

4. In § 178.66-5, the figure following "phosphorus" should read "0.045".

CIVIL AERONAUTICS BOARD

[14 CFR Parts 207, 208, 212, 214, 221, 295]

[Docket No. 18096; EDR-108B]

CHARTER TRANSPORTATION

Rates and Tariffs; Termination of Rule Making Proceeding

MARCH 5, 1968.

The Board in 32 F.R. 387 and by circulation of EDR-108, dated January 6, 1967, gave notice that it had under consideration amendments to Parts 207, 208, 212, 214, 221, and 295. These amendments would require that all charter contracts be entered into only pursuant to rates already on file with the Board and that any rate for the performance of charter flights remain applicable for 30 days. They would also prevent tariff increases from affecting prior charter contracts. Interested persons were invited to participate in the rule making proceeding.

Written comments were filed by 13 foreign and U.S. carriers: Air France, American Flyers, Caledonian, Capitol, Delta, Flying Tiger, KLM, Pan American, Saturn, TIA, TWA, United, and World. The carriers' positions varied from total opposition to complete support.

Based on the comments filed, the Board has concluded that it is not appropriate at this time to adopt the proposed amendments.

Accordingly, the Board hereby terminates the rule making proceeding in Docket 18096.

(Secs. 204(a), 401, 402, 403, 404, 411, Federal Aviation Act of 1958, as amended, 72 Stat. 743, 754, 757, 758, 760, 769; 49 U.S.C. 1324, 1371, 1372, 1373, 1374, 1381)

By the Civil Aeronautics Board.

[SEAL] HAROLD R. SANDERSON, *Secretary.*

[F.R. Doc. 68-2887; Filed, Mar. 7, 1968; 8:48 a.m.]

Notices

DEPARTMENT OF STATE

Office of the Secretary

[Public Notice 287]

SYRIAN ARAB REPUBLIC

Removal of Restriction on Travel to, in, or Through

Public Notice 270 is amended to remove the restriction on travel by U.S. citizens to, in, or through the Syrian Arab Republic.

Dated: February 28, 1968.

For the Secretary of State.

IDAR RIMESTAD,
Deputy Under Secretary for Administration.

[F.R. Doc. 68-2873; Filed, Mar. 7, 1968; 8:47 a.m.]

POST OFFICE DEPARTMENT

CITIZENS' STAMP ADVISORY COMMITTEE

Notice of Appointment and Duties

The following is an excerpt from Headquarters Circular No. 68-8 signed by the Postmaster General on February 28, 1968, relative to the above subject, and it rescinds Headquarters Circular No. 67-6 published in the FEDERAL REGISTER on March 8, 1967 (32 F.R. 3838):

I. *Purpose.* To appoint a Post Office Department Citizens' Stamp Advisory Committee. This Committee will make available to the Post Office Department breadth of judgment and depth of experience in numerous areas of competence which influence the subject matter, character and beauty of postage stamps.

II. *Appointments to Committee.* The following are hereby appointed to continue to serve as members of the Post Office Department Citizens' Stamp Advisory Committee at the pleasure of the Postmaster General for a term not to exceed 1 year:

Reuben K. Barrick, Arlington, Va. (Bureau of Engraving and Printing).
Stevan Dohanos, Westport, Conn.
Belmont Farley, Clifton, Va.
Roger Kent, San Francisco, Calif.
Dr. Elsie M. Lewis, Washington, D.C.
David Lidman, New York, N.Y.
Dr. James J. Matejka, Jr., Chicago, Ill.
Roger L. Stevens, Washington, D.C. (Special Assistant to the President on the Arts).
Norman Todhunter, Mill Valley, Calif.
John Walker, Washington, D.C. (National Gallery of Art).
Kurt Wiener, Washington, D.C.

III. *Compensation and Travel Allowances.* A. Members of the Post Office Department Stamp Advisory Committee, in addition to such other reimbursable expenses as are authorized under the Standardized Government Travel Regulations, as amended, shall be allowed reimbursement for travel expenses and per diem at the rate of $16 a day in lieu of subsistence, when traveling in connection with their duties as members of the Post Office Department Stamp Advisory Committee. They shall be granted an allowance of 9 cents per mile for necessary official use of privately owned automobiles or airplanes when traveling in connection with their duties as members of such Committee. Approval of advantage to the Government, as required by law, shall be made either by the Postmaster General, the Deputy Postmaster General, or the Special Assistant to the Postmaster General.

Members of the Committee who are appointed from private life shall also each receive compensation of $48 per day when engaged in duties as members of the Committee, including travel time to and from their homes or regular places of business.

B. No member of the Committee will receive personal benefit from payment from stamp designing.

IV. *Meetings of Committee.* The Committee shall meet upon the request of the Postmaster General. Meetings shall be conducted in conformity with the regulations prescribed by Executive Order 11007 dated February 26, 1962.

* * * * *

(5 U.S.C. 301, 39 U.S.C. 501)

TIMOTHY J. MAY,
General Counsel.

MARCH 4, 1968.

[F.R. Doc. 68-2869; Filed, Mar. 7, 1968; 8:46 a.m.]

DEPARTMENT OF THE INTERIOR

National Park Service

[Order No. 3]

HARPERS FERRY NATIONAL HISTORICAL PARK ADMINISTRATIVE OFFICERS AND CENTER DIRECTOR

Delegation of Authority Regarding Execution of Contracts and Purchase Orders, for Supplies, Equipment, or Services

SECTION 1. *Administrative Officer.* The Administrative Officer, Harpers Ferry National Historical Park, may execute, approve, and administer contracts not in excess of $10,000 for supplies, equipment, or services in conformity with applicable regulations and statutory authority and subject to the availability of funds. This authority may be exercised by the Administrative Officer in behalf of any unit under the administration of Harpers Ferry National Historical Park.

SEC. 2. *Center Director, Harpers Ferry Job Corps Conservation Center.* The Center Director of Harpers Ferry Job Corps Conservation Center may issue purchase orders not in excess of $2,500 for supplies, equipment, or services in conformity with applicable regulations and statutory authority and subject to the availability of appropriations. This authority may be exercised by the Harpers Ferry Job Corps Conservation Center Director in behalf of the Harpers Ferry Job Corps Conservation Center.

SEC. 3. *Administrative Officer, Harpers Ferry Job Corps Conservation Center.* The Administrative Officer of Harpers Ferry Job Corps Conservation Center may issue purchase orders not in excess of $2,500 for supplies, equipment, or services in conformity with applicable regulations and statutory authority and subject to the availability of appropriations. This authority may be exercised by the Harpers Ferry Job Corps Conservation Center Administrative Officer in behalf of the Harpers Ferry Job Corps Conservation Center.

SEC. 4. This order supersedes Order No. 2 and Amendment No. 1, thereto, issued March 25, 1963, and November 10, 1965, respectively.

(National Park Service Order No. 34 (31 F.R. 4255), as amended; 39 Stat. 535, 16 U.S.C., sec. 2; Northeast Region Order No. 5 (31 F.R. 8135), as amended)

Dated: February 21, 1968.

BENJAMIN H. DAVIS,
Superintendent, Harpers Ferry National Historical Park.

[F.R. Doc. 68-2866; Filed, Mar. 7, 1968; 8:46 a.m.]

Office of the Secretary

[Order No. 2508, Amdt. No. 74]

COMMISSIONER OF INDIAN AFFAIRS

Delegation of Authority With Respect to Administration of Timber Sales on Certain Submarginal Lands

Section 16 of Order 2508, as amended, is further amended by the addition of a new paragraph to read as follows:

SEC. 16. *Forestry* * * *

(f) (1) The performance of the functions enumerated in Executive Order 7868, dated April 15, 1938, which transferred to the Secretary of the Interior jurisdiction over certain lands acquired pursuant to the following acts:

Title II of the National Industrial Recovery Act of June 16, 1933 (48 Stat. 200).

Emergency Relief Appropriation Act of April 8, 1935 (49 Stat. 115).

Section 55, Title I of the Act of August 24, 1935 (49 Stat. 750, 781).

(2) In the performance of the functions delegated in (1) above, the regulations with respect to the disposal of timber on Indian trust lands, in 25 CFR 141, shall govern, where applicable, the disposal of timber on these Government lands. All receipts from sales of timber under this authority shall be deposited in the U.S. Treasury, Account 142229, "Sale of Timber, Wildlife and Other Natural Land Products, not otherwise classified." These receipts shall not be subject to the administrative deduction authorized from receipts for sale of Indian-owned timber by the Act of February 14, 1920, as amended (25 CFR 141.18).

STEWART L. UDALL,
Secretary of the Interior.

FEBRUARY 29, 1968.

[F.R. Doc. 68-2867; Filed, Mar. 7, 1968; 8:46 a.m.]

DEPARTMENT OF AGRICULTURE

Agricultural Stabilization and Conservation Service

[Amdt. 1]

ORGANIZATION, FUNCTIONS, AND DELEGATIONS OF AUTHORITY

The Statement of Organization, Functions, and Delegations of Authority, 33 F.R. 542, published January 16, 1968 is amended as follows:

Paragraph II.A.g is amended to include the Data Management Division and now reads:

g. Deputy Administrator, Management:
(1) Administrative Services Division.
(2) Budget Division.
(3) Data Management Division.
(4) Fiscal Division.
(5) Information Division.
(6) Operations Analysis Staff.
(7) Personnel Management Division.
(8) Kansas City Data Processing Center, Kansas City, Mo.
(9) New Orleans Data Processing Center, New Orleans, La.
(10) Management Field Office, Kansas City, Mo.

Footnote 1 is changed to read:

[1] See Paragraph III.A.7.e for reporting line with respect to policy-making authority.

Paragraph III.A.5.c is amended to include coordinating and related responsibilities for aerial photographic work in the Department, and now reads:

c. *Aerial Photography Division.* The Aerial Photography Division is responsible for formulating and administering overall plans and policies for procuring, processing, and using aerial photography for determining farm operation compliance with programs and for the sale of aerial photographs to other Government agencies and to individuals. It is responsible for coordinating and preventing duplication of aerial photographic work of the Department; for providing a Chairman for the Photography Sales Committee of the Department; and representing the Department on the Interagency Committee on Sales Prices of Aerial Photographic Reproduction.

Paragraph III.A.5.c(1) remains unchanged.

Paragraph III.A.7 is amended to include the functions of the Data Management Division. Subparagraphs c, d, e, f, g, h, and i are changed to read: d, e, f, g, h, i, and j.

A new subparagraph c is added as follows:

c. *Data Management Division.* The Data Management Division formulates and administers a central data management system consisting of information in numeric, graphic or narrative form, required by ASCS divisions and offices in the administration of ASCS and CCC programs for which they are responsible; provides for gathering, storing, retrieving and presenting data accurately and promptly as needed for planning, implementing, and documenting programs, and for disseminating uniform data for executive, legislative, and public information use.

Paragraph VI.A is amended to include the Director, Data Management Division, by inserting between the words "Director, Budget Division" and the words "Director, Fiscal Division" the following words: "Director, Data Management Division."

Signed at Washington, D.C., this 1st day of March 1968.

E. A. JAENKE,
Acting Administrator, Agricultural Stabilization and Conservation Service.

Approved: March 5, 1968.

ORVILLE L. FREEMAN,
Secretary of Agriculture.

[F.R. Doc. 68-2875; Filed, Mar. 7, 1968; 8:47 a.m.]

Commodity Credit Corporation

GRAINS AND SIMILARLY HANDLED COMMODITIES

Notice of Final Date for Redemption of Warehouse-Storage Loans Made Under 1967 Price Support Programs [1]

Unless demand is made earlier by CCC, warehouse-storage loans under 1967 price support programs on the commodities listed in the table below mature and are due and payable on the dates indicated. Unless on or before the final date for repayment specified below such loans are repaid or the producer notifies the ASCS county office in writing that the funds have been placed in the mail, title to the unredeemed collateral shall immediately vest in CCC without a sale thereof on the date next succeeding the final date for repayment specified below. This notice applies to all such unredeemed collateral pledged to CCC under warehouse-storage loans. CCC shall have no obligation to pay for any market value which the unredeemed collateral may have in excess of the loan indebtedness; i.e., the unpaid amount of the note plus interest and charges. Nothing herein shall preclude making payment to a producer of any amount by which the settlement value of the pledged commodity may exceed the principal amount of the loan. The settlement value as used herein is the price support value of the pledged commodity determined on the basis of the weight, grade and other quality factors shown on the warehouse receipts or accompanying documents in accordance with the applicable support rate provided in the program regulations. Notwithstanding the foregoing provisions, if the producer has made a fraudulent representation in obtaining the loan or in settlement or deliveries under the loan, the producer shall remain personally liable for the amounts specified in the Warehouse Storage Note and Security Agreement and in the price support program regulations.

Amounts due the producer will be paid to the producer by the appropriate ASCS county office.

	Maturity date	Final date for repayment
	1968	1968
Barley: [1]		
In Alaska, Idaho, Minnesota, Montana, North Dakota, Oregon, South Dakota, Washington, Wisconsin, and Wyoming	May 31	May 31
In all other States	Apr. 30	Apr. 30
Corn: [1]		
In all States	July 31	July 31
Dry edible beans:		
In all States	Apr. 30	Apr. 30
Flaxseed:		
In Minnesota, Montana, North Dakota, South Dakota, and Wisconsin	May 31	May 31
In all other States	Apr. 30	Apr. 30
Grain sorghum: [1]		
In Oklahoma and Texas	June 30	July 1
In all other States	July 31	July 31
Honey:		
In all States	Mar. 31 [2]	Apr. 1
Oats: [1]		
In Alaska, Idaho, Maine, Michigan, Minnesota, Montana, North Dakota, Oregon, South Dakota, Washington, Wisconsin, and Wyoming	May 31	May 31
In all other States	Apr. 30	Apr. 30
Rice:		
In all States	...do...	Do.
Rye:		
In all States	...do...	Do.
Soybeans: [1]		
In all States	July 31	July 31
Wheat: [1]		
In Idaho, Minnesota, Montana, North Dakota, Oregon, Washington, and Wyoming	May 31	May 31
In all other States	Apr. 30	Apr. 30

[1] This notice does not apply to loans on barley, corn, grain sorghum, oats, soybeans, and wheat with respect to which producers, prior to the above maturity dates, have given written notice to the ASCS county office through which they obtained such loans that they wish to have such maturity dates extended.

[2] Maturity date for loans may be extended at the producer's request to Apr. 30, 1968; if extended, the final date for redemption is Apr. 30, 1968.

(Secs. 4 and 5, 62 Stat. 1070, as amended; secs. 101, 105, 107, 301, 401, 405, 63 Stat. 1051, as amended; 15 U.S.C. 714 b and c; 7 U.S.C. 1441, 1447, 1421, 1425)

Effective date: Upon publication in the FEDERAL REGISTER.

Signed at Washington, D.C., on February 29, 1968.

E. A. JAENKE,
Acting Executive Vice President, Commodity Credit Corporation.

[F.R. Doc. 68-2842; Filed, Mar. 7, 1968; 8:45 a.m.]

DEPARTMENT OF COMMERCE

Business and Defense Services Administration

UNIVERSITY OF ALABAMA MEDICAL CENTER

Notice of Applications for Duty-Free Entry of Scientific Articles

The following are notices of the receipt of applications for duty-free entry of scientific articles pursuant to section 6(c) of the Educational, Scientific, and Cultural Materials Importation Act of 1966 (Public Law 89-651; 80 Stat. 897). Interested persons may present their views with respect to the question of whether an instrument or apparatus of equivalent scientific value for the purposes for which the article is intended to be used is being manufactured in the United States. Such comments must be filed in triplicate with the Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration, Washington, D.C. 20230, within 20 calendar days after date on which this notice of application is published in the FEDERAL REGISTER.

Regulations issued under cited Act, published in the February 4, 1967, issue of the FEDERAL REGISTER, prescribe the requirements applicable to comments.

A copy of each application is on file, and may be examined during ordinary Commerce Department business hours at the Office of Scientific and Technical Equipment, Department of Commerce, Room 5123, Washington, D.C.

A copy of each comment filed with the Director of the Office of Scientific and Technical Equipment must also be mailed or delivered to the applicant, or its authorized agent, if any, to whose application the comment pertains; and the comment filed with the Director must certify that such copy has been mailed or delivered to the applicant.

Docket No. 68-00388-33-46040. Applicant: University of Alabama Medical Center, 1919 Seventh Avenue, South Birmingham, Ala. 35233. Article: Electron microscope, Model EM 300. Manufacturer: Philips Electronic Instruments, The Netherlands. Intended use of article: The article will be used for various research projects which include basic studies on cutaneous infections and skin cancer. Application received by Commissioner of Customs: February 19, 1968.

Docket No. 68-00390-33-46040. Applicant: University of California at Los Angeles, 405 Hilgard Avenue, Los Angeles, Calif. 90024. Article: Electron microscope, Model EM 300 and decontamination device. Manufacturer: Philips Electronics, The Netherlands. Intended use of article: The article will be used in the study of the ultrastructure and antigenic nature of arboviruses; the study of the histology, pathophysiology and immunology of the viral hemorrhagic fevers; and the study of the cellular entry, eclipse phase and replication of certain arboviruses in arthropod and helminth vectors and hosts and in the pathogenesis of specific arbovirus diseases. Application received by Commissioner of Customs: February 19, 1968.

Docket No. 68-00391-88-79700. Applicant: U.S. Department of the Interior, Geological Survey, 18th and F Streets NW., Washington, D.C. 20242. Article: Analytical stereoplotter, Model AP/C. Manufacturer: Ottico Meccanica Italiano, S.P.A., Italy. Intended use of article: The article will be used mainly for investigations of exotic type imagery from earth-orbital, lunar, and planetary missions. Application received by Commissioner of Customs: February 19, 1968.

Docket No. 68-00392-33-43420. Applicant: University of Oregon, Department of Psychology, Eugene, Oreg. 97403. Article: Micromanipulator and accessories. Manufacturer: La Precision Cinematographique, France. Intended use of article: The article will be used for positioning microelectrodes inside single neurons in ganglia of Aplysia and at predetermined stereotaxic coordinates in the brains of small animals. Application received by Commissioner of Customs: February 19, 1968.

Docket No. 68-00393-33-46040. Applicant: University of Puerto Rico, School of Medicine, San Juan, P.R. 00905. Article: Electron microscope, Model HU-11E. Manufacturer: Hitachi, Ltd., Japan. Intended use of article: The article will be used primarily on research in neurobiology. Application received by Commissioner of Customs: February 19, 1968.

CHARLEY M. DENTON,
Director, Office of Scientific and Technical Equipment, Business and Defense Services Administration.

[F.R. Doc. 68-2850; Filed, Mar. 7, 1968; 8:45 a.m.]

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Food and Drug Administration

FORT DODGE LABORATORIES

Notice of Filing of Petition for Food Additives

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(b)(5), 72 Stat. 1786; 21 U.S.C. 348(b)(5)), notice is given that a petition has been filed by Fort Dodge Laboratories, Division of American Home Products Corp., Fort Dodge, Iowa 50502, proposing the issuance of a food additive regulation to provide for the safe use of a combination drug containing trichlorfon (dimethyl (2,2,2-trichloro-1-hydroxyethyl) phosphonate) and atropine in dimethyl sulfoxide containing 0.5 percent chlorobutanol as a preservative, as an injectable anthelmintic for swine up to 60 days old. The drug is not to be used within 21 days of slaughter.

Dated: March 1, 1968.

J. K. KIRK,
Associate Commissioner for Compliance.

[F.R. Doc. 68-2893; Filed, Mar. 7, 1968; 8:48 a.m.]

DR. MAYFIELD LABORATORIES

Notice of Filing of Petition for Food Additive Cobalt Arsenate

Pursuant to the provisions of the Federal Food, Drug, and Cosmetic Act (sec. 409(b)(5), 72 Stat. 1786; 21 U.S.C. 348(b)(5)), notice is given that a petition has been filed by Dr. Mayfield Laboratories, 1209 South Main Street, Charles City, Iowa 50616, proposing the issuance of a food additive regulation to provide for the safe use in chicken feed of cobalt arsenate for the removal of large round worms (Ascaridia) in chickens.

Dated: February 28, 1968.

J. K. KIRK,
Associate Commissioner for Compliance.

[F.R. Doc. 68-2894; Filed, Mar. 7, 1968; 8:49 a.m.]

Office of the Secretary

OFFICE OF LEGISLATIVE AND GOVERNMENTAL SERVICES

Statement of Organization, Functions, and Delegations of Authority

Part 10 (Food and Drug Administration) of the Statement of Organization, Functions, and Delegations of Authority for the Department of Health, Education, and Welfare (32 F.R. 10006-7) is hereby amended as follows:

In section 10-B Organization and Functions, the statement for the Office of Legislative and Governmental Services is revised as follows:

Office of Legislative and Governmental Services. Advises the Commissioner concerning legislative and other needs necessary to develop effective Federal-State cooperative programs. Provides a focal point of headquarters-field liaison, program development, and information concerning State food and drug consumer protection programs and FDA operating relationships with the States. Provides assistance in the analysis of State legislative needs and develops or coordinates the development of model legislation and regulations. Coordinates analyses of FDA legislative needs and the development of FDA legislative proposals and prepares FDA position papers for the approval of the Commissioner. Maintains liaison with the Congress concerning food and drug legislative proposals and provides assistance in making modifications and interpretations as appropriate. Develops the FDA position on proposed legislation

which may affect FDA programs and initiates action to resolve major differences of opinion. Coordinates FDA's responses to Congressional inquiries and requests for reports, as appropriate, and to inquiries from State and local government officials. Coordinates pertinent activities and acts as liaison with the Office of the Assistant Secretary for Legislation, DHEW.

Dated: March 4, 1968.

DONALD F. SIMPSON,
Assistant Secretary for Administration.

[F.R. Doc. 68-2896; Filed, Mar. 7, 1968; 8:49 a.m.]

PUBLIC HEALTH SERVICE

Statement of Organization and Functions and Delegations of Authority

Part 4 (Public Health Service) of the Statement of Organization and Functions and Delegations of Authority for the Department of Health, Education, and Welfare (32 F.R. 9739 et seq., July 4, 1967), as amended, is hereby amended as follows:

With regard to section 4-C, *Delegations of Authority*—Paragraph (17) under the heading *Specific Delegations* is amended to read:

(17) The functions vested in the Secretary under the Clean Air Act, as amended (Public Law 90-148, 42 U.S.C. 1857 et seq.), relating to air pollution control.

With regard to section 4-D, *Reservation of Authority*—Delete paragraph (h).

WILBUR J. COHEN,
Acting Secretary, Department of Health, Education, and Welfare.

FEBRUARY 29, 1968.

[F.R. Doc. 68-2895; Filed, Mar. 7, 1968; 8:49 a.m.]

ATOMIC ENERGY COMMISSION

[Docket No. 50-24]

GENERAL ELECTRIC CO.

Notice of Issuance of Amended Facility License

Notice is hereby given that the Atomic Energy Commission has issued Amendment No. 11, effective as of the date of issuance, to Facility License No. CX-4. The license formerly authorized General Electric Co. (GE) to possess and operate the Thermal Critical Assembly (TCA) facility in Alameda County, Calif. On August 4, 1967, the Commission issued Amendment No. 10 to License No. CX-4 (32 F.R. 11812) which authorized GE to partially dismantle the TCA and to possess the dismantled facility and the source, special nuclear and byproduct materials located in Building 105 of the Critical Experiment Facility (CEF) of GE's Vallecitos Nuclear Center in Alameda County, Calif.

Amendment No. 11, as set forth below, authorizes GE to further dismantle the TCA facility and to possess and store the dismantled facility components in the CEF cell in accordance with the application for license amendment dated January 8, 1968. The amendment also extends the license expiration date from March 29, 1968, to March 29, 1970.

In its application for amendment, GE stated that (1) the TCA facility has been partially dismantled in accordance with established procedures, (2) all TCA facility components and areas formerly used in connection with its operation have been surveyed and found to be free of any detectable contamination, and (3) all source, special nuclear, and byproduct materials formerly possessed under the amended license have been transferred to authorized recipients. Inasmuch as the TCA facility components and areas associated with its operation have been surveyed and found to be free of any detectable radioactivity and GE no longer possesses any radioactive materials in the CEF areas, we have concluded that the further dismantling, possession and storage of the TCA facility components does not involve significant hazards considerations different from those previously evaluated and that there is reasonable assurance that the health and safety of the public will not be endangered.

Within fifteen (15) days from the date of publication of this notice in the FEDERAL REGISTER, the applicant may file a request for a hearing, and any person whose interest may be affected by the issuance of the amended facility license may file a petition for leave to intervene. A request for a hearing and petitions to intervene shall be filed in accordance with the provisions of the Commission's rules of practice, 10 CFR, Part 2. If a request for a hearing or a petition for leave to intervene is filed within the time prescribed in this notice, a notice of hearing or an appropriate order will be issued.

For further details with respect to this proposed issuance, see the application for amendment dated January 8, 1968, and supplement thereto dated February 21, 1968.

Dated at Bethesda, Md., this 29th day of February 1968.

For the Atomic Energy Commission.

DONALD J. SKOVHOLT,
Assistant Director for Reactor Operations, Division of Reactor Licensing.

THERMAL CRITICAL ASSEMBLY FACILITY LICENSE AMENDMENT

[License No. CX-4, Amendment No. 11]

The Atomic Energy Commission ("the Commission") having found that:

A. The application dated January 8, 1968, and supplement thereto dated February 21, 1968, for license amendment comply with the requirements of the Atomic Energy Act of 1954, as amended, and the Commission's regulations set forth in Title 10, Chapter 1, CFR;

B. There is reasonable assurance that the Thermal Critical Assembly facility can be further dismantled, and the components possessed and stored at the designated location in accordance with the procedures set forth in the application for license amendment without endangering the health and safety of the public;

C. The General Electric Co. is technically and financially qualified to engage in the activities authorized by this license, as amended, in accordance with the rules and regulations of the Commission;

D. The General Electric Co. has furnished proof of financial protection to satisfy the requirements of subsection 170a of the Act and 10 CFR Part 140;

E. The issuance of the license amendment and the licensee's dismantling, possessing and storing the Thermal Critical Assembly facility components in the cell of the Critical Experiment Facility Building will not be inimical to the common defense and security or to the health and safety of the public; and

F. Prior public notice of proposed issuance of this amendment is not required since the amendment does not involve significant hazards considerations different from those previously evaluated;

License No. CX-4, as amended, is hereby amended in its entirety to read as follows:

1. This license applies to the Thermal Critical Assembly (TCA) facility and its components identified as tanks, superstructure, moderator dump tank, console, and instrument rack which are owned by the General Electric Co. (GE) and located in the cell of the Critical Experiment Facility, Building 105, of the GE Vallecitos Nuclear Center in Alameda County, Calif., and described in the application for amendment dated January 8, 1968.

2. Subject to the conditions and requirements incorporated herein, the Commission hereby licenses GE, pursuant to section 104c of the Act and Title 10, Chapter 1, CFR, Part 50, "Licensing of Production and Utilization Facilities", to further dismantle the TCA and to possess and store the TCA facility components described in paragraph 1 above in accordance with procedures set forth in the application for amendment.

3. This license shall be deemed to contain and be subject to the conditions specified in Part 20 and § 50.54 of Part 50 of the Commission's regulations, and is subject to all applicable provisions of the Act and the rules, regulations, and orders of the Commission now or hereafter in effect; and is subject to the additional conditions specified below:

A. GE shall not reassemble the TCA without prior written approval of the Commission.

B. GE shall not remove the stored components from their place of storage without prior approval of the Commission.

C. GE shall not dispose of the TCA facility components except in accordance with the provisions of 10 CFR Part 20 or with specific prior approval of the Commission.

D. *Records*—In addition to those required by applicable AEC regulations, including § 20.401 of 10 CFR Part 20, GE shall keep records of inspections of the deactivated facility including the results of surveys of radioactivity levels.

E. *Reports*—In addition to those required by applicable AEC regulations, GE shall submit a report of any indication or occurrence of a possible unsafe condition relating to the facility or to the public. For each occurrence GE shall promptly notify, by telephone or telegraph, the Director of the appropriate AEC Regional Compliance Office listed in appendix D of 10 CFR Part 20 and shall submit within 10 days a report in writing to the Director, Division of Reactor Licensing.

4. This license is effective as of the date of issuance and shall expire at midnight, March 29, 1970.

Date of Issuance: February 29, 1968.

For the Atomic Energy Commission.

DONALD J. SKOVHOLT,
Assistant Director for Reactor Operations, Division of Reactor Licensing.

[F.R. Doc. 68-2849; Filed, Mar. 7, 1968; 8:45 a.m.]

CIVIL AERONAUTICS BOARD

[Docket No. 19247, 16576; Order No. E-26465]

CORDOVA AIRLINES, INC.

Order To Show Cause Regarding Amendment of Certificate of Public Convenience and Necessity and Exemption

Adopted by the Civil Aeronautics Board at its office in Washington, D.C., on the 5th day of March, 1968.

On November 13, 1967, Cordova Airlines, Inc., filed an application, Docket 19247, requesting amendment of its certificate for Route 124 to permit it to operate between Yakutat and Juneau, Alaska. The carrier simultaneously applied for an extension of its Yakutat-Juneau exemption [1] and for an order to show cause.[2]

In support of its request for authority, Alaska states that it provides most of the service and carries most of the traffic at Yakutat; that its existing two-stop restriction on Anchorage-Juneau flights would be more burdensome without Yakutat authority since the only alternative stop, Cape Yakataga, generates less than 10 percent as much traffic as does Yakutat; and that the Board in the Pacific Northwest-Alaska Air Service Case (Order E-21955, March 29, 1965), intended to certificate Cordova at Yakutat.

No objections have been received to Alaska's request.

Upon consideration of Alaska's application and all the relevant facts, we tentatively find and conclude that the public convenience and necessity require the amendment of Alaska's certificate of public convenience and necessity for Route 124 in such a manner as to grant Alaska's application, Docket 19247.

By Order E-23217, February 10, 1966, the Board granted an exemption for a 2-year period expiring February 10, 1968, permitting the carrier to serve the Yakutat-Juneau routing. The carrier has been providing such service on a regular basis. Rather than continuing the exemption, we deem it more appropriate at this time to consider certification of Alaska between those points.

Alaska is presently required to make two stops between Anchorage and Juneau by virtue of the restriction imposed in the Pacific Northwest-Alaska Case. If Alaska were not authorized to serve Yakutat it would have to stop at Cape Yakataga on Anchorage-Juneau flights to satisfy the two-stop requirement. Cape Yakataga is a low traffic generating point and Alaska would be enabled to increase its revenues by approximately $73,000 if it serves Yakutat rather than Cape Yakataga. Since no additional direct expenses would be incurred, subsidy need should be reduced.

We tentatively find and conclude that Alaska's application will result in significant public benefits. The carrier has been successfully serving the route under its exemption authority. In fact, as of September 30, 1967, it was providing 70 percent of the scheduled departures at Yakutat and serving 69 percent of Yakutat-originating passengers. Discontinuance of such service would clearly inconvenience the traveling public. In addition, the fact that community interests supported the carrier's application for Yakutat authority in the Cordova Airlines, Inc. Temporary Points Service Investigation, Docket 16325, is further indicative of the public benefits of Alaska's Yakutat service.

Since Alaska is already the major participant in Yakutat markets, an award to it of the requested authority will have a minimal adverse effect on other carriers. Although Alaska's particiation in Yakutat markets has grown to more than double that of Western, its schedules also double Western's and, in any case, Western has not objected to Alaska's application for exemption or certificate authority.

In granting interested persons the opportunity to show why our tentative findings and conclusions should not be adopted, we expect such persons to direct their objections, if any, to specific markets and to support such objections with detailed answers, specifically setting forth the tentative findings and conclusions to which objection is taken. Such objection should be accompanied by arguments of fact or law and should be supported by legal precedent or detailed economic analysis.

Accordingly, it is ordered, That:

1. All interested persons are directed to show cause why the Board should not issue an order making final the tentative findings and conclusions stated herein and amending Alaska's certificate of public convenience and necessity for Route 124 so as to authorize service between Yakutat and Juneau; [3]

2. Any interested persons having objection to the issuance of an order making final the proposed findings and conclusions and certificate amendments shall, within 20 days after service of a copy of this order, file with the Board and serve upon all persons made parties to this proceeding a statement of objections together with a summary of testimony, statistical data and other evidence expected to be relied upon to support the stated objections;

3. If timely and properly supported objections are filed, full consideration will be accorded the matters or issues raised by the objections before further action is taken by the Board; [4]

4. In the event no objections are filed, all further procedural steps will be deemed to have been waived, and the case will be submitted to the Board for final action; and

5. A copy of this order shall be served upon Western Air Lines, Inc. and Alaska Airlines, Inc., who are hereby made parties to this case.

This order will be published in the FEDERAL REGISTER.

By the Civil Aeronautics Board.

[SEAL] HAROLD R. SANDERSON,
Secretary.

[F.R. Doc. 68-2888; Filed, Mar. 7, 1968; 8:48 a.m.]

[Docket No. 18650; Order No. E-26458]

INTERNATIONAL AIR TRANSPORT ASSOCIATION

Order Regarding Specific Commodity Rates

Issued under delegated authority March 4, 1968.

An agreement has been filed with the Board pursuant to section 412(a) of the Federal Aviation Act of 1958 (the Act) and Part 261 of the Board's economic regulations, between various air carriers, foreign air carriers, and other carriers, embodied in the resolutions of the Traffic Conference 1 of the International Air Transport Association (IATA), and

[1] In Docket 16576, Cordova requested an extension of its existing exemption pending our action on its application for certificate authority.

The exemption authority will continue in effect under 5 U.S.C. § 558 (formerly section 9(b) of the Administrative Procedure Act) pending final determination of its application for renewal.

[2] Cordova Airlines, Inc., was merged into Alaska Airlines, Inc. (Alaska), effective Feb. 1, 1968. We are advised by counsel for Alaska that Alaska desires to prosecute the applications and supports and endorses all the allegations set forth herein. Consequently, we will treat the application as if filed in the first instance by Alaska.

[3] Since the proceeding in which the Board granted Cordova certificate authority to provide service between Yakutat and points to the west (Order E-25688, Sept. 15, 1967), contained no issue of converting into certificate authority the carrier's Yakutat-Juneau temporary exemption authority, the Board provided that the Yakutat-west certificate authority shall continue only so long as Cordova holds authority to serve between Yakutat and Juneau. In view of our action herein, we propose to make the Yakutat-west authority of indefinite duration and to delete the related condition (5) from Cordova's certificate.

[4] All motions and/or petitions for reconsideration shall be filed within the period allowed for filing objections and no further such motions, requests or petitions for reconsideration of this order will be entertained.

adopted pursuant to the provisions of Resolution 590 dealing with specific commodity rates.

The agreement, adopted pursuant to unprotested notices to the carriers and promulgated in an IATA letter dated February 27, 1968, names an additional rate under an existing commodity description as set forth below. The rate proposed reflects a significant reduction from the general cargo rate.

Commodity Item 9910—Furniture and Furniture Parts, 30 cents per kg., minimum weight 45 kgs., Mexico City to Chicago.

Pursuant to authority duly delegated by the Board in the Board's regulations, 14 CFR 385.14, it is not found that the subject agreement is adverse to the public interest or in violation of the Act, provided that approval thereof is conditioned as hereinafter ordered.

Accordingly, it is ordered, That:

Agreement CAB 19654, R–73, be approved, provided approval shall not constitute approval of the specific commodity description contained therein for purposes of tariff publication.

Persons entitled to petition the Board for review of this order, pursuant to the Board's regulations, 14 CFR 385.50, may file such petitions within 10 days after the date of service of this order.

This order shall be effective and become the action of the Civil Aeronautics Board upon expiration of the above period, unless within such period a petition for review thereof is filed, or the Board gives notice that it will review this order on its own motion.

This order will be published in the FEDERAL REGISTER.

[SEAL] HAROLD R. SANDERSON,
Secretary.

[F.R. Doc. 68–2889; Filed, Mar. 7, 1968; 8:48 a.m.]

[Docket No. 19570]

MARTIN'S LUCHTVERVOER MAATSCHAPPIJ N. V.

Notice of Hearing

Notice is hereby given, pursuant to the provisions of the Federal Aviation Act of 1958, as amended, that hearing on the above-entitled application is assigned to be held on March 14, 1968, at 10 a.m. e.s.t., in Room 211, Universal Building, 1825 Connecticut Avenue NW., Washington, D.C., before Examiner E. Robert Seaver.

Dated at Washington, D.C., March 4, 1968.

[SEAL] THOMAS L. WRENN,
Chief Examiner.

[F.R. Doc. 68–2890; Filed, Mar. 7, 1968; 8:48 a.m.]

FEDERAL MARITIME COMMISSION

AMERICAN MAIL LINE, LTD., AND SANG SAKA P.T.

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 609; or may inspect agreements at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter) and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

Mr. W. R. Purnell, District Manager, American Mail Line, 601 California Street, Suite 610, San Francisco, Calif. 94108.

Agreement No. 9702, between American Mail Line, Ltd. (AML), and Sang Saka P.T. (Sang Saka) establishes a through billing arrangement from ports of call of AML in Alaska, Washington, Oregon, and California, to ports of call of Sang Saka in Indonesia with transshipment at Singapore or ports in Malaysia in accordance with terms and conditions set forth in the agreement.

Dated: March 5, 1968.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68–2879; Filed, Mar. 7, 1968; 8:47 a.m.]

CITY OF OAKLAND AND SEA-LAND SERVICE, INC.

Notice of Agreement Filed for Approval

Notice is hereby given that the following agreement has been filed with the Commission for approval pursuant to section 15 of the Shipping Act, 1916, as amended (39 Stat. 733, 75 Stat. 763, 46 U.S.C. 814).

Interested parties may inspect and obtain a copy of the agreement at the Washington office of the Federal Maritime Commission, 1321 H Street NW., Room 609; or may inspect agreements at the offices of the District Managers, New York, N.Y., New Orleans, La., and San Francisco, Calif. Comments with reference to an agreement including a request for hearing, if desired, may be submitted to the Secretary, Federal Maritime Commission, Washington, D.C. 20573, within 20 days after publication of this notice in the FEDERAL REGISTER. A copy of any such statement should also be forwarded to the party filing the agreement (as indicated hereinafter), and the comments should indicate that this has been done.

Notice of agreement filed for approval by:

J. Kerwin Rooney, Port Attorney, Port of Oakland, 66 Jack London Square, Oakland, Calif. 94607.

Agreement No. T–1768–3 between the city of Oakland (California) and Sea-Land Services, Inc., modifies the basic agreement between the parties which provides for the lease of certain marine terminal property at Oakland, Calif. The purpose of the modification is to provide for a change in the insurance provisions covering port-owned cranes on the assigned premises.

Dated: March 5, 1968.

By order of the Federal Maritime Commission.

THOMAS LISI,
Secretary.

[F.R. Doc. 68–2880; Filed, Mar. 7, 1968; 8:47 a.m.]

[Docket No. 68–8]

DISPOSITION OF CONTAINER MARINE LINES

Rescheduling of Oral Argument

Disposition of container marine lines through intermodal container freight tariffs Nos. 1 and 2, FMC Nos. 1 and 2.

Oral argument in this proceeding, currently scheduled for March 19, 1968, is hereby rescheduled to be heard March 20, 1968, beginning at 9:30 a.m., in Room 114, 1321 H Street NW., Washington, D.C.

Interested persons are requested to notify the Secretary on or before March 11, 1968, as to the amount of time desired for argument.

By the Commission.

[SEAL] FRANCIS C. HURNEY,
Assistant Secretary.

[F.R. Doc. 68–2881; Filed, Mar. 7, 1968; 8:47 a.m.]

FEDERAL POWER COMMISSION

[Docket Nos. RI68-470 etc.]

READING AND BATES OFFSHORE DRILLING CO. ET AL.

Order Accepting Contract Agreement, Providing for Hearings on and Suspension of Proposed Changes in Rates, and Allowing Rate Changes To Become Effective Subject to Refund [1]

FEBRUARY 29, 1968.

The above-named Respondents have tendered for filing proposed changes in presently effective rate schedules for sales of natural gas subject to the jurisdiction of the Commission. The proposed changes, which constitute increased rates and charges, are designated as follows:

Docket No.	Respondent	Rate schedule No.	Supplement No.	Purchaser and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until—	Cents per Mcf: Rate in effect	Cents per Mcf: Proposed increased rate	Rate in effect subject to refund in Docket Nos.
RI68-470	Reading & Bates Offshore Drilling Co. (Operator) et al., 1100 Philtower Bldg., Tulsa, Okla. 74103.	1	[2] 4	Oklahoma Natural Gas Gathering Corp.,[3] & National Fuels Corp. (Ringwood Field, Major County, Okla.) (Oklahoma "Other" Area).	$2,751	1-31-68	[4] 1-31-68	[5] 2-1-68	11.0	[6] [7] 12.0	
RI68-471	Pan American Petroleum Corp., Post Office Box 1410, Fort Worth, Tex. 76101.	100	[8] 2	Phillips Petroleum Co.[9] (Panhandle Field, Gray County, Tex.) (RR. District No. 10).	----------	2-2-68	[14] 3-4-68	(Accepted)	----------	----------	
		100	3		2,030	2-2-68	[14] 3-4-68	[5] 3-5-68	4.5	[7] [11] [12] 9.0	
RI68-472	Afroma Oil & Gas Co., Inc., Post Office Box 387, Corpus Christi, Tex. 78403.	4	1	Banquete Gas Co., a division of Crestmont Oil & Gas Co.[13] (Spartan-Odem Field, San Patricio County, Tex.) (RR. District No. 4).	2,824	2-2-68	[14] 3-4-68	[5] 3-5-68	9.0	[6] [7] 10.0	

[2] Applicable only to Fyffe Unit No. 1 added by Supplement No. 3.
[3] Oklahoma Natural classed as a pipeline company in its certificate (CI61-1408) for resale of gas to Cities Service at an initial rate of 17 cents. Oklahoma Natural's related increase to 18.5 cents has been approved. However, Oklahoma Natural must flow through any refunds made by its suppliers.
[4] The stated effective date is the date of filing.
[5] The suspension period is limited to 1 day.
[6] Periodic rate increase.
[7] Pressure base is 14.65 p.s.i.a.
[8] Contract agreement dated Dec. 5, 1967, provides for a 9-cent price from date of agreement and increasing 1 cent every 5 years thereafter; provides that contract may be terminated after 20 years from date of agreement or any anniversary date thereafter.
[9] Phillips processes the gas through its Gray Plant and resells the gas under its Rate Schedule No. 262 to Northern Natural Gas Co. at a rate of 18.93 cents subject to refund in Docket No. RI60-226.
[10] Footnote [10] not used.
[11] Renegotiated rate increase.
[12] Subject to a 0.4466-cent deduction for sour gas.
[13] Buyer resells gas involved to United Gas Pipeline Co. under Buyer's FPC Gas Rate Schedule No. 2 at a presently effective rate of 13.1664 cents. Buyer's next periodic increase to 15 cents is due on Mar. 9, 1969.
[14] The stated effective date is the first day after expiration of the statutory notice.

Afroma Oil & Gas Co., Inc. (Afroma), requests that its proposed rate increase be permitted to become effective on March 1, 1968. Good cause has not been shown for waiving the 30-day notice requirement provided in section 4(d) of the Natural Gas Act to permit an earlier effective date for Afroma's rate filing and such request is denied.

Reading and Bates Offshore Drilling Co. (Operator) et al. (Reading), proposes a periodic increase in rate from 11 cents to 12 cents per Mcf for a wellhead sale of gas to Oklahoma Natural Gas Gathering Corp.[2] (Oklahoma Natural) and Natural Fuels Corp. from the Ringwood field, Major County, Okla. (Oklahoma "Other" Area) with respect to acreage added by Supplement No. 3 to its FPC Gas Rate Schedule No. 1. The area ceiling for increased rates is 11 cents per Mcf. Although Reading was contractually due a rate of 12 cents at the time of the additional dedication, it was willing to accept a certificate rate of 11 cents to be consistent with other certificate authorizations in the Ringwood Area. Reading was issued a permanent certificate for the additional acreage in Docket No. CI64-1262 on March 21, 1967. Reading requests that should the Commission suspend its proposed rate increase that the suspension period with respect thereto be limited to 1 day. Reading's proposed 12 cents per Mcf rate exceeds the area increased rate ceiling of 11 cents per Mcf for the Oklahoma "Other" Area as announced in the Commission's Statement of General Policy No. 61-1, as amended, and should be suspended. Consistent with prior Commission action on filings in the Ringwood Area, we believe that it would be in the public interest to waive the 30-day notice requirement provided in section 4(d) of the Natural Gas Act to permit an effective date of January 31, 1968, the date of filing, for Reading's proposed rate increase, and to limit to 1 day the suspension period ordered herein for such rate filing.

Pan American Petroleum Corp. (Pan American) proposes a renegotiated rate increase from 4.5 cents to 9 cents per Mcf for a wellhead sale of gas to Phillips Petroleum Co. (Phillips), which gathers and processes the gas and resells the residue gas to Northern Natural Gas Co. at a rate of 18.93 cents, which is in effect subject to refund in Docket No. RI60-226. Pan American's proposed increase is not related to a corresponding increase in rate by Phillips. Although Pan American's proposed rate does not exceed the area increased rate ceiling of 11 cents per Mcf for Texas Railroad District No. 10 as announced in the Commission's statement of general policy No. 61-1, as amended, it should be suspended because such ceiling is applicable to Phillips' resale rate, not to Pan American's. In view of the fact that the resale rate of Phillips is suspended in Docket No. RI60-226, we conclude that a 1-day suspension from March 4, 1968, the expiration date of the statutory notice, is appropriate with respect to Pan American's rate filing.

Afroma Oil & Gas Co., Inc. (Afroma), proposes a periodic increase from 9 cents to 10 cents per Mcf for gas sold to Banquete Gas Co., a division of Crestmont Oil & Gas Co. (Banquete). Banquete gathers the subject gas, together with other gas produced in this area, and resells such gas to United Gas Pipe Line Co. under its FPC Gas Rate Schedule No. 2 at a presently effective initial rate of 13.1664 cents. Banquete is contractually due a 2-cent periodic increase on March 9, 1969, which, if filed for, would be suspended as exceeding the applicable area increased ceiling. Neither Afroma nor Banquete's contracts provide for further increases. Although Afroma's pro-

[1] Does not consolidate for hearing or dispose of the several matters herein.
[2] By order issued Nov. 3, 1966, in Docket No. RP66-19, an increase by Oklahoma Natural from 17 cents to 18.5 cents designed to compensate only for an increase in the cost of purchased gas was accepted for filing and allowed to become effective June 1, 1966, without obligation to refund, except that Oklahoma Natural is required to flow through any refunds received from its producer-suppliers and to reduce its rate to reflect any rate reductions of such suppliers.

posed rate increase to 10 cents per Mcf does not exceed the area increased rate ceiling of 14 cents per Mcf for Texas Railroad District No. 4 as announced in the Commission's statement of general policy No. 61–1, as amended, it should be suspended because such ceiling is applicable to Banquete's resale rate, not to Afroma's rate. In view of the fact that Banquete's 2 cents increase would be suspended, if filed for, we conclude that Afroma's proposed rate increase should be suspended for 1 day from March 4, 1968, the date of expiration of the statutory notice.

Concurrently with the filing of its proposed rate increase, Pan American submitted a contract agreement dated December 5, 1967, designated as Supplement No. 2 to its FPC Gas Rate Schedule No. 100, which provides the basis for its proposed rate increase. We believe that it would be in the public interest to accept for filing Pan American's proposed contract agreement to become effective on March 4, 1968, the expiration date of the statutory notice, but not the proposed rate contained therein which is suspended as hereinafter ordered.

The proposed changed rates and charges may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds:

(1) Good cause has been shown for accepting for filing Pan American's proposed contract amendment dated December 5, 1967, designated as Supplement No. 2 to Pan American's FPC Gas Rate Schedule No. 100, and for permitting such supplement to become effective on March 4, 1968, the expiration date of the statutory notice.

(2) It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon hearings concerning the lawfulness of the proposed changes and that the above-designated supplements be suspended and the use thereof deferred as hereinafter ordered (except for the supplement set forth in paragraph (1) above).

The Commission orders:

(A) Pan American's contract agreement dated December 5, 1968, designated as Supplement No. 2 to Pan American's FPC Gas Rate Schedule No. 100, is accepted for filing and permitted to become effective on March 4, 1968, the date of expiration of the statutory notice.

(B) Pursuant to the authority of the Natural Gas Act, particularly sections 4 and 15 thereof, the Commission's rules of practice and procedure, and the regulations under the Natural Gas Act (18 CFR Ch. I), public hearings shall be held upon dates to be fixed by notices from the Secretary concerning the lawfulness of the proposed increased rates and charges contained in the above-designated supplements (except the supplement set forth in paragraph (A) above).

(C) Pending hearings and decisions thereon, the rate supplements herein are suspended and their use deferred until the date shown in the "Date Suspended Until" column, and thereafter until made effective as prescribed by the Natural Gas Act: *Provided, however,* That the supplements to the rate schedules filed by Respondents, as set forth herein, shall become effective subject to refund on the date and in the manner herein prescribed if within 20 days from the date of the issuance of this order Respondents shall each execute and file under its above-designated docket number with the Secretary of the Commission its agreement and undertaking to comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder, accompanied by a certificate showing service of copies thereof upon all purchasers under the rate schedule involved. Unless Respondents are advised to the contrary within 15 days after the filing of their respective agreements and undertakings, such agreements and undertakings shall be deemed to have been accepted.

(D) Until otherwise ordered by the Commission, neither the supplements, nor the rate schedules sought to be altered, shall be changed until disposition of these proceedings or expiration of the suspension period.

(E) Notices of intervention or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 and 1.37(f)) on or before April 15, 1968.

By the Commission.

[SEAL] GORDON M. GRANT, *Secretary.*

[F.R. Doc. 68–2791; Filed, Mar. 7, 1968; 8:45 a.m.]

[Docket No. G–6660 etc.]

SUN OIL CO. ET AL.

Notice of Applications for Certificates, Abandonment of Service and Petitions To Amend Certificates [1]

FEBRUARY 29, 1968.

Take notice that each of the Applicants listed herein has filed an application or petition pursuant to section 7 of the Natural Gas Act for authorization to sell natural gas in interstate commerce or to abandon service heretofore authorized as described herein, all as more fully described in the respective applications and amendments which are on file with the Commission and open to public inspection.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before March 22, 1968.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on all applications in which no protest or petition to intervene is filed within the time required herein if the Commission on its own review of the matter believes that a grant of the certificates or the authorization for the proposed abandonment is required by the public convenience and necessity. Where a protest or petition for leave to intervene is timely filed, or where the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given: *Provided, however,* That pursuant to 18 CFR 2.56, as amended, all permanent certificates of public convenience and necessity granting applications, filed after July 1, 1967, without further notice, will contain a condition precluding any filing of an increased rate at a price in excess of that designated for the particular area of production for the period prescribed therein unless at the time of filing of protests or petitions to intervene the Applicant indicates in writing that it is unwilling to accept such a condition. In the event Applicant is unwilling to accept such condition the application will be set for formal hearing.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicants to appear or be represented at the hearing.

GORDON M. GRANT, *Secretary.*

[1] This notice does not provide for consolidation for hearing of the several matters covered herein, nor should it be so construed.

Docket No. and date filed	Applicant	Purchaser, field, and location	Price per Mcf	Pressure base
G–6660 D 2–8–68 [1]	Sun Oil Co., 1608 Walnut St., Philadelphia, Pa. 19103.	El Paso Natural Gas Co., Langlie-Mattix Field, Lea County, N. Mex.	Assigned	-------
G–8087 D 2–19–68	Texaco, Inc., Post Office Box 52332, Houston, Tex. 77052.	Colorado Interstate Gas Co., Keyes Field, Cimarron and Texas Counties, Okla.	Uneconomical	-------
G–14950 D 2–23–68	Gulf Oil Corp., Post Office Box 1589, Tulsa, Okla. 74102.	Transwestern Pipeline Co., Worsham Field, Reeves County, Tex.	Uneconomical	-------
G–16499 E 2–2–68	Petroleum Associates, Inc. (successor to El Paso Products Co.), Commercial Bank Tower, Midland, Tex. 79701.	El Paso Natural Gas Co., Jameson North (Strawn Sand) Field, Nolan County, Tex.	[2] 17.0	14.65
G–18235 C 2–21–68	Cities Service Oil Co. (Operator) et al., Cities Service Bldg., Bartlesville, Okla. 74003.	Transwestern Pipeline Co., acreage in Hemphill County, Tex.	17.0	14.65

Filing code: A—Initial service.
B—Abandonment.
C—Amendment to add acreage.
D—Amendment to delete acreage.
E—Succession.
F—Partial succession.

See footnotes at end of table.

Docket No. and date filed	Applicant	Purchaser, field, and location	Price per Mcf	Pressure base
CI62-272 E 2-12-68	Elton A. Bayer, trustee, d.b.a. Bayer Gas Co. (successor to Paul H. Ash et al., d.b.a. A & C Oil & Gas Co.), Post Office Box 519, Sioux Falls, S. Dak. 57101.	Equitable Gas Co., acreage in Lewis and Upshur Counties, W. Va.	25.0	15.325
CI62-377 E 2-12-68	do	do	25.0	15.325
CI62-380 E 2-12-68	do	do	25.0	15.325
CI62-654 E 2-12-68	do	do	25.0	15.325
CI62-1123 E 2-12-68	do	do	25.0	15.325
CI62-1184 (CI62-1243) C 2-20-68 [3]	Sinclair Oil & Gas Co. (Operator) et al., Post Office Box 521, Tulsa, Okla. 74102.	Arkansas Louisiana Gas Co., Arkoma Area, Latimer and Pittsburg Counties, Okla.	15.0	14.65
CI63-55 D 1-29-68	Texaco, Inc. (Operator), et al.	Arkansas Louisiana Gas Co., West Marlow Field, Stephens County, Okla.	[4]	
CI63-386 C 2-16-68	Glenn, Inc., c/o John S. Holy, attorney, Post Office Box 643, Weston, W. Va. 26452.	Equitable Gas Co., Central District, Doddridge County, W. Va.	25.0	15.325
CI63-1363 10-30-67 as amended 2-19-68 [5]	General American Oil Co. of Texas (Operator) et al., Meadows Bldg., Dallas, Tex. 75206.	Texas Gas Transmission Corp., Lawson Field, Acadia Parish, La.	20.5	15.025
CI63-1482 10-30-67 as amended 2-19-68 [5]	General American Oil Co. of Texas.	do	20.5	15.025
CI66-176 C 2-16-68	Skelly Oil Co. (Operator) et al., Post Office Box 1650, Tulsa, Okla. 74102.	Arkansas Louisiana Gas Co., Arkoma Basin, Franklin County, Ark.	15.0	14.65
CI66-176 C 2-20-68	do	do	15.0	14.65
CI67-625 C 2-15-68	E. A. Obering et al., 614 Petroleum Club Building, Oklahoma City, Okla. 73102.	Panhandle Eastern Pipe Line Co., Woodward Area, Woodward County, Okla.	[6] 17.0	14.65
CI67-792 (CI62-1243) C 2-20-68 [3]	Sinclair Oil & Gas Co.	Arkansas Louisiana Gas Co., Wilburton Area, Pittsburg County, Okla.	15.0	14.65
CI67-1647 C 2-21-68	Cleary Petroleum, Inc.,[7] 310 Kermac Bldg., Oklahoma City, Okla. 73102.	Panhandle Eastern Pipe Line Co., North Hopeton Field, Woods County, Okla.	[7] 15.0	14.65
CI68-55 (CI62-1243) C 2-20-68 [3]	Sinclair Oil & Gas Co.	Arkansas Louisiana Gas Co., West Wilburton Area, Pittsburg County, Okla.	15.0	14.65
CI68-227 C 2-19-68	Continental Oil Co., Post Office Box 2197, Houston, Tex. 77001.	El Paso Natural Gas Co., Blanco Field, San Juan County, N. Mex.	13.0	15.025
CI68-678 A 11-20-67	Gulf Oil Corp., [8] Post Office Box 1589, Tulsa, Okla. 74102.	Natural Gas Pipeline Co. of America, Lockridge Field, Ward County, Tex.	[9] 18.0	14.65
CI68-689 C 2-15-68	Lone Star Producing Co. (Operator) et al., 301 South Harwood St., Dallas, Tex. 75201.	Texas Eastern Transmission Corp., Whelan Field, Harrison County, Tex.	15.0	14.65
CI68-869 B 1-15-68	T. J. Ahern et al., 1013 Esperson Bldg., Houston, Tex. 77002.	Tennessee Gas Pipeline Co., a division of Tenneco, Inc., Placedo Field, Victoria County, Tex.	Depleted	
CI68-880 A 1-17-68	Getty Oil Co.,[10] Post Office Box 1404, Houston, Tex. 77001.	Natural Gas Pipeline Co. of America, Wolfe Area, Winkler and Loving Counties, Tex.	16.5	14.65
CI68-952 A 2-2-68	Sun Oil Co.[10] (Southwest Division).	Natural Gas Pipeline Co. of America, Lochridge Area, Ward County, Tex.	[6] 17.5	14.65
CI68-989 A 2-15-68	Midwest Oil Corp., 1700 Broadway, Denver, Colo. 80202.	Panhandle Eastern Pipe Line Co., Feldman (Upper Morrow) Field, Hemphill County, Tex.	[11] 17.0	14.65
CI68-990 (CI62-655) F 2-12-68	Elton A. Bayer, trustee, d.b.a. Bayer Gas Co. (successor to Paul H. Ash et al., d.b.a. A & C Oil & Gas Co.)	Equitable Gas Co., acreage in Lewis and Upshur Counties, W. Va.	25.0	15.325
CI68-991 A 2-15-68	Hugh K. Spencer, agent for Spurgeon Lease, Well No. 1, West Union, W. Va. 26456.	Equitable Gas Co., Central District, Doddridge County, W. Va.	25.0	15.325
CI68-992 A 2-16-68	Charles T. McCord, Jr., d.b.a. McCord Oil Co., 1705 Beck Bldg., Shreveport, La. 71101.	United Gas Pipe Line Co., West Crescent Farms Field, Terrebonne Parish, La.	21.25	15.025
CI68-993 A 2-15-68	Tenneco Oil Co., Post Office Box 2511, Houston, Tex. 77001.	Michigan Wisconsin Pipe Line Co., North Lovedale Field, Harper County, Okla.	[6] 17.0	14.65
CI68-995 A 2-16-68	Samedan Oil Corp. et al., Lincoln Center, Ardmore, Okla. 73401.	Panhandle Eastern Pipe Line Co., Rio Bravo Unit, Feldman Upper Morrow Field, Hemphill County, Tex.	[6] 17.0	14.65
CI68-996 A 2-16-68	Humble Oil & Refining Co., Post Office Box 2180, Houston, Tex. 77001.	Texas Gas Transmission Corp., East Lake Palourde Field, Assumption and St. Martin Parishes, La.	18.0	15.025
CI68-998 A 2-9-68	Union Drilling, Inc., Post Office Box 281, Washington, Pa. 15301.	Equitable Gas Co., Skin Creek District, Lewis County, W. Va.	25.0	15.325
CI68-1000 B 2-19-68	Atlantic Richfield Co., Post Office Box 2819, Dallas, Tex. 75221.	Transcontinental Gas Pipe Line Corp., San Miguel Creek Field, McMullen County, Tex.	[12]	
CI68-1002 A 2-19-68	Dorchester Gas Producing Co., Post Office Box 750, Amarillo, Tex. 79105.	Humble Gas Transmission Co., Carthage Point Field, Adams County, Miss.	15.0	15.025
CI68-1003 A 2-19-68	Union Oil Co. of California, Union Oil Center, Los Angeles, Calif. 90017.	Transcontinental Gas Pipe Line Corp., Block 169 Field, Ship Shoal Area, Gulf of Mexico.	20.5	15.025
CI68-1004 A 2-19-68	Renco, Inc., 809 First National Bank Bldg., Albuquerque, N. Mex. 87108.	El Paso Natural Gas Co., Devil's Fork, Rio Arriba County, N. Mex.	12.0	15.025
CI68-1005 A 2-19-68	Forest Oil Corp. (Operator) et al., 1300 National Bank of Commerce Bldg., San Antonio, Tex. 78205.	United Fuel Gas Co., Block 272 Field and Block 292 Field, Eugene Island Area, Offshore Louisiana.	20.0	15.025
CI68-1006 A 2-19-68	The Preston Oil Co., Post Office Box 2319, Columbus, Ohio 43216.	do	20.0	15.025
CI68-1007 A 2-20-68	Sinclair Oil & Gas Co.	Panhandle Eastern Pipe Line Co., Dover-Hennessey Area, Logan, Blaine, Garfield, and Kingfisher Counties, Okla.	[6] 15.0	14.65
CI68-1008 A 2-20-68	Odessa Natural Gasoline Co., Post Office Box 3908, Odessa, Tex. 79760.	Arkansas Louisiana Gas Co., Mansfield Field Logan and Scott Counties, Ark.	15.0	14.65
CI68-1009 (G-13135) (G-13051) F 2-16-68	Roy M. Huffington, Inc., Operator (successor to Sohio Petroleum Co. and Getty Oil Co.[13]), 2210 Tennessee Bldg., Houston, Tex. 77002.	Southern Natural Gas Co., Bayou Boullion Field, St. Martin Parish, La.	[14] 20.0	15.025
CI68-1010 (CI66-942) F 2-20-68	Shell Oil Co. (successor to Pan American Petroleum Corp.), 50 West 50th St., New York, N.Y. 10020.	Northern Natural Gas Co., Tangier Field, Woodward County, Okla.	[6] 17.0	14.65
CI68-1011 (CI60-466) F 2-21-68	Douglas Resources Corp.[15] (successor to Cabot Corp.), 310 Kermac Bldg., Oklahoma City, Okla. 73102.	Northern Natural Gas Co., Laverne Field, Beaver County, Okla.	22.0	14.65
CI68-1012 (G-13299) F 2-21-68	Douglas Resources Corp.[15] (successor to Sinclair Oil & Gas Co.).	Michigan Wisconsin Pipe Line Co., Laverne Field, Beaver County, Okla.	[11] 17.0	14.65

[1] Deletes acreage assigned to Ralph C. Hart and George L. Buckles.
[2] Rate of 15.70925 cents per Mcf presently being collected subject to refund in Docket No. G-20526.
[3] Adds acreage acquired from Ni-Gas Supply, Inc., an "et al" party under certificate issued to Anadarko Production Co. (Operator) et al. in Docket No. CI62-1243.
[4] Leases have expired and returned to landowners.
[5] Amendment to certificate to reflect change in field name from Midland Field to Lawson Field.
[6] Subject to upward and downward B.t.u. adjustment.
[7] Applicant states its willingness to accept permanent authorization on the same terms as specified by the Commission's order issued Mar. 30, 1964, in Docket No. G-19416 et al.
[8] By letter filed Feb. 12, 1968, Applicant agreed to accept permanent certificate containing conditions similar to those imposed by Opinion No. 468, as modified by Opinion No. 468-A.
[9] Includes 0.5 cent per Mcf upward B.t.u. adjustment. Subject to upward and downward B.t.u. adjustment.
[10] Applicant states its willingness to accept permanent certificate containing conditions similar to those imposed by Opinion No. 468, as modified by Opinion No. 468-A.
[11] Subject to upward B.t.u. adjustment.

[12] Seller has purchased the field compression facilities formerly utilized by Purchaser to compress the flash vapors. This acquisition enables Seller to compress its low-pressure gas and then process such gas through its rapid cycle unit before delivering the gas to Purchaser.
[13] Successor in interest to Tidewater Oil Co.
[14] Settlement rate approved by Commission order issued June 15, 1962, in Docket Nos. G-13310 et al.
[15] Applicant states its willingness to accept permanent certificate on the same terms and conditions as set forth in the Commission's Opinion No. 408, issued Oct. 31, 1963, in Docket Nos. G-19246 et al.

[F.R. Doc. 68-2792; Filed, Mar. 7, 1968; 8:45 a.m.]

[Docket Nos. RI68-488 etc.]

FLAG OIL CORPORATION OF DELAWARE ET AL.

Order Providing for Hearing on and Suspension of Proposed Changes in Rates, and Allowing Rate Changes To Become Effective Subject to Refund [1]

MARCH 1, 1968.

The Respondents named herein have filed proposed changes in rates and charges of currently effective rate schedules for sales of natural gas under Commission jurisdiction, as set forth in appendix A hereof.

The proposed changed rates and charges may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

[1] Does not consolidate for hearing or dispose of the several matters herein.

The Commission finds: It is in the public interest and consistent with the Natural Gas Act that the Commission enter upon hearings regarding the lawfulness of the proposed changes, and that the supplements herein be suspended and their use be deferred as ordered below.

The Commission orders:

(A) Under the Natural Gas Act, particularly sections 4 and 15, the regulations pertaining thereto (18 CFR Ch. I), and the Commission's rules of practice and procedure, public hearings shall be held concerning the lawfulness of the proposed changes.

(B) Pending hearings and decisions thereon, the rate supplements herein are suspended and their use deferred until date shown in the "Date Suspended Until" column, and thereafter until made effective as prescribed by the Natural Gas Act: *Provided, however,* That the supplements to the rate schedules filed by Respondents, as set forth herein, shall become effective subject to refund on the date and in the manner herein prescribed if within 20 days from the date of the issuance of this order Respondents shall each execute and file under its above-designated docket number with the Secretary of the Commission its agreement and undertaking to comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder, accompanied by a certificate showing service of copies thereof upon all purchasers under the rate schedule involved. Unless Respondents are advised to the contrary within 15 days after the filing of their respective agreements and undertakings, such agreements and undertakings shall be deemed to have been accepted.

(C) Until otherwise ordered by the Commission, neither the suspended supplements, nor the rate schedules sought to be altered, shall be changed until disposition of these proceedings or expiration of the suspension period.

(D) Notices of intervention or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 and 1.37(f)) on or before April 15, 1968.

By the Commission.

[SEAL] GORDON M. GRANT, *Secretary.*

APPENDIX A

Docket No.	Respondent	Rate schedule No.	Supplement No.	Purchaser and producing area	Amount of annual increase	Date filing tendered	Effective date unless suspended	Date suspended until—	Percent per Mcf: Rate in effect	Percent per Mcf: Proposed increased rate	Rate in effect subject to refund in docket Nos.
RI68-488	Flag Oil Corp. of Delaware, Post Office Box 23, Midland, Tex. 79701.	2	2	Panhandle Eastern Pipe Line Co. (Northeast Seiling Field, Dewey County, Okla.) (Oklahoma "Other" Area).	$6	2-5-68	[2] 3-7-68	[3] 3-8-68	[6] 17.73	[4 5 7] 17.745	
	do	4	2	Arkansas Louisiana Gas Co. (Kinta Field, Haskell County, Okla.) (Oklahoma "Other" Area).	2	2-5-68	[2] 3-7-68	[3] 3-8-68	[8] 15.0	[4 5 8] 15.015	
RI68-489	Union Oil Co. of California, Union Oil Center, Los Angeles, Calif. 90017.	140	10	Lone Star Gas Co. (Big Mineral Creek Field, Grayson County, Tex.) (RR. District No. 9).	96	2-2-68	[9] 3-4-68	3-5-68	15.0	[4 8] 15.096	RI66-426.

[2] The stated effective date is the date requested by Respondent.
[3] The suspension period is limited to 1 day.
[4] Tax reimbursement increase.
[5] Pressure base is 14.65 p.s.i.a.
[6] Includes base rate of 15 cents plus upward B.t.u. adjustment. Base price subject to upward and downward B.t.u. adjustment.
[7] Includes 0.015-cent tax reimbursement.
[8] Subject to a downward B.t.u. adjustment.
[9] The stated effective date is the first day after expiration of the statutory notice.

Union Oil Company of California (Union Oil) requests that its proposed rate increase be permitted to become effective as of February 1, 1968. Good cause has not been shown for waiving the 30-day notice requirement provided in section 4(d) of the Natural Gas Act to permit an earlier effective date for Union Oil's rate filing and such request is denied.

Flag Oil Corporation of Delaware (Flag) and Union Oil's proposed rate increases are for tax reimbursement only and exceed the applicable area increased rate ceilings as announced in the Commission's statement of general policy No. 61-1, as amended, and should be suspended. Since the proposed increases relate to tax reimbursement only, we conclude that they should be suspended for one day from March 7, 1968 (Flag), the proposed effective date, and March 4, 1968 (Union Oil), the expiration date of the statutory notice.

[F.R. Doc. 68-2857; Filed, Mar. 7, 1968; 8:45 a.m.]

[Docket No. RI68-100]

SUN OIL CO.

Order Accepting Decreased Rate Filing Subject to Refund in Existing Rate Suspension Proceeding

MARCH 1, 1968.

Sun Oil Co. (Sun) on February 12, 1968, submitted for filing a proposed decreased rate change providing for a rate of 16 cents in lieu of 17.71978 cents per Mcf and has requested that the 16-cent rate be substituted for the rate originally proposed so that the lesser rate may be placed into effect subject to refund as of February 1, 1968, pursuant to its previously submitted motion and agreement and undertaking. The basis for the substitute rate change is a letter agreement dated January 29, 1968, submitted concurrently with its notice of change and being made a part of such rate change filing. The agreement provides, among other things, for an extension of the contract term to August 1, 1987; the deletion of the price redetermination provisions and a new periodic pricing schedule. Such schedule provides for the 16-cent rate herein proposed, which is to hold until August 1, 1972, and for subsequent 1-cent periodic increases, up to 19 cents per Mcf, each 5-year period thereafter. The substitute rate filing reduces the annual amount of the previous increase by $10,628. The decreased rate filing is set forth on appendix A hereof.

The proceeding in Docket No. RI68-100 involves a rate increase filed by Sun on August 1, 1967, proposing to increase its rate, among others, from 14 cents to

17.71978 cents per Mcf for sales of gas to United Gas Pipe Line Co. from the Red Fish Bay Field, Nueces County, Tex. (Railroad District No. 4). The proposed increase, designated as Supplement No. 10 to Sun's FPC Gas Rate Schedule No. 16, was suspended for 5 months by the Commission's order issued August 31, 1967, in Docket No. RI68–100, until February 1, 1968. On January 26, 1968, Sun filed a motion and agreement and undertaking to place the suspended rate into effect subject to refund. Sun states no monies have been collected under the 17.71978-cent rate.

Sun requests a retroactive effective date of February 1, 1968, for its substitute decreased rate filing. Since the proposed rate decrease is due to changes in contract provisions, and no monies have been collected at the higher rate, we believe that it would be in the public interest to waive the 30-day notice requirement provided in section 4(d) of the Natural Gas Act and accept for filing Sun's rate decrease effective as of February 1, 1968, subject to refund in the existing rate suspension proceeding in Docket No. RI68–100.

The Commission finds:

(1) Good cause exists for accepting for filing Supplement No. 1 to Supplement No. 10 to Sun's FPC Gas Rate Schedule No. 16 to become effective as of February 1, 1968, subject to the existing rate suspension proceeding in Docket No. RI68–100.

(2) The rate, charge and classification set forth in Supplement No. 1 to Supplement No. 10 to Sun's FPC Gas Rate Schedule No. 16 should be permitted to become effective as of February 1, 1968.

The Commission orders:

(A) The 16 cents per Mcf contained in Supplement No. 1 to Supplement No. 10 to Sun's FPC Gas Rate Schedule No. 16 is accepted for filing and permitted to supersede the 17.71978-cent rate contained in Supplement No. 10 to said rate schedule, effective as of February 1, 1968, subject to the existing rate suspension proceeding in Docket No. RI68–100.

(B) The agreement and undertaking filed on January 26, 1968, appears to be satisfactory and is accepted for filing. The effective rate set forth in Supplement No. 1 to Supplement No. 10 to Sun's FPC Gas Rate Schedule No. 16 shall be charged and collected commencing as of February 1, 1968, subject to any future orders of the Commission in this proceeding.

(C) Sun shall comply with the refunding and reporting procedure required by the Natural Gas Act and § 154.102 of the regulations thereunder. Sun's agreement and undertaking shall remain in full force and effect until discharged by the Commission.

By the Commission.

[SEAL] GORDON M. GRANT, *Secretary.*

APPENDIX A

Docket No.	Respondent	Rate schedule No.	Supplement No.	Purchaser and producing area	Amount of annual decrease	Date filing tendered	Effective date	Cents per Mcf		Rate in effect subject to refund in docket Nos.
								Rate in effect	Proposed decreased rate	
RI68–100...	Sun Oil Co., 1608 Walnut St., Philadelphia, Pa. 19103, Attn: Mr. Charles E. Webber.	16	[1][2] 1 to 10	United Gas Pipe Line Co. (Red Fish Bay Field, Nueces County, Tex.) (RR. District No. 4).	[5] $12,360	2–12–68	[3] 2–1–68	[6][7] 14.0	[4][6][8] 16.0	RI68–100.

[1] To be substituted in lieu of filing submitted Aug. 1, 1968.
[2] Includes Letter agreement dated Jan. 29, 1968, which provides for, among other things, an extension of the contract term, deletion of price redetermination provision and a new price schedule.
[3] The stated effective date is the effective date requested by Respondent. (The end of the suspension period in Docket No. RI68–100.)
[4] Decreased rate filing. Previously shown as 17.71978 cents, the redetermined rate for the period from Nov. 1, 1962, to Nov. 1, 1967.
[5] Pressure base is 14.65 p.s.i.a.
[6] Subject to a downward B.t.u. adjustment.
[7] Settlement rate as approved by Commission order issued Oct. 1, 1964, in Docket Nos. G–8288 et al.
[8] A decrease of $10,628 from the previously reported amount of $22,988.

[F.R. Doc. 68–2858; Filed, Mar. 7, 1968; 8:45 a.m.]

[Docket No. CP68–231]

COLUMBIA OFFSHORE PIPELINE CO.

Notice of Application

MARCH 1, 1968.

Take notice that on February 19, 1968, Columbia Offshore Pipeline Co. (Applicant), 915 Collidge Boulevard, Lafayette, La. 79501, filed in Docket No. CP68–231 an application pursuant to section 7(c) of the Natural Gas Act for a certificate of public convenience and necessity authorizing the construction and operation of a natural gas pipeline system, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Specifically, Applicant seeks authorization to construct and operate the following facilities:

(1) 11 miles of 26-inch O.D. pipeline extending from the Block 292 Field, Eugene Island Area, Offshore Louisiana, to the Block 272 Field, Eugene Island Area, Offshore Louisiana.

(2) 23 miles of 30-inch O.D. pipeline extending from the Block 272 Field, Eugene Island Area, Offshore Louisiana, to the South Marsh Island Area, Eugene Island Area, Offshore Louisiana.

(3) 66 miles of 30-inch O.D. pipeline extending from the South Marsh Island Area, Eugene Island Area, Offshore Louisiana, to a point on the shoreline of the Gulf of Mexico approximately 1 mile east of the mouth of Fresh Water Bayou, Vermilion Parish, La.

(4) 7 miles of 30-inch O.D. pipeline extending northeasterly from the above-described point on the shoreline of the Gulf of Mexico to Pecan Island, Vermilion Parish, La.

Applicant further seeks authorization to transport by the above-mentioned facilities a maximum daily volume of 488,900 Mcf of natural gas produced along the route of the pipeline system. Such natural gas will be redelivered to the owner thereof at the onshore terminus of Applicant's pipeline system at Pecan Island, La.

The total estimated cost of the proposed facilities is $39,071,000, which will be financed by funds provided by Applicant's parent, Columbia Gas System, Inc.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before March 28, 1968.

Take further notice that, pursuant to the authority contained in and subject Federal Power Commission by section 7 and 15 of the Natural Gas Act and the to the jurisdiction conferred upon the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT, *Secretary.*

[F.R. Doc. 68–2851; Filed, Mar. 7, 1968; 8:45 a.m.]

[Docket No. CS68–43]

ROBERT A. DEAN ET AL.

Notice of Application for "Small Producer" Certificate

MARCH 4, 1968.

Take notice that on February 19, 1968, Robert A. Dean (Operator), et al., 823

Midland Tower Building, Midland, Tex. 79701, filed an application pursuant to section 7(c) of the Natural Gas Act and § 157.40 of the regulations thereunder for a "small producer" certificate of public convenience and necessity authorizing the sale for resale and delivery of natural gas in interstate commerce from the Permian Basin area of Texas and New Mexico, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before March 25, 1968.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission providing no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter believes that a grant of the certificate is required by the public convenience and necessity. Where a protest or petition for leave to intervene is timely filed, or where the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 68-2852; Filed, Mar 7, 1968; 8:45 a.m.]

[Docket No. CP68-235]

KANSAS-NEBRASKA NATURAL GAS CO., INC.

Notice of Application

MARCH 1, 1968.

Take notice that on February 21, 1968, Kansas-Nebraska Natural Gas Co., Inc. (Applicant), Hastings, Nebr. 68901, filed in Docket No. CP68-235 an application pursuant to sections 7(b) and 7(c) of the Natural Gas Act for permission and approval to abandon certain natural gas facilities and for a certificate of public convenience and necessity authorizing the construction and operation of certain other natural gas facilities, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

The facilities which Applicant proposes to construct or abandon consist of the following:

(1) Install a 5,600 horsepower addition to the Casper, Wyo. compressor station and remove two 500 horsepower compressors and one 1,100 horsepower compressor.

(2) Install a 1,100 horsepower addition to the Casper, Wyo. compressor station.

(3) Install four town border stations to serve the communities of Benedict, Byron, Glenvil and Ruskin, Nebr.

(4) Install a measuring station to serve U.S. Government's Cornhusker Army Ammunition Plant west of Grand Island, Nebr.

(5) Remove approximately 7.5 miles of 6-inch line north of Kearney, Nebr.

The total estimated cost of the proposed facilities is $872,000, which will be financed initially from current working capital and interim bank loans.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before April 1, 1968.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate and permission-and-approval for the proposed abandonment is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 68-2853; Filed, Mar. 7, 1968; 8:45 a.m.]

[Docket No. RI68-490]

SHELL OIL CO. ET AL.

Order Providing for Hearing on and Suspension of Proposed Change in Rate

MARCH 1, 1968.

On February 2, 1968, Shell Oil Co. (Operator) et al., (Shell) [1] tendered for filing a proposed change in its presently effective rate schedule for sales of natural gas subject to the jurisdiction of the Commission. The proposed change, which constitutes an increased rate and charge, is designated as follows:

Description: Notice of change, dated January 31, 1968.[2]
Purchaser and producing area: El Paso Natural Gas Co. (Wasson Plant, Yoakum County, Tex.) (Railroad District No. 8-A).
Rate schedule designation: Supplement No. 19 to Shell's FPC Gas Rate Schedule No. 20.
Effective date: March 4, 1968.[3]
Amount of annual increase: $122,968.
Effective rate: 12.63 cents per Mcf.[4]
Proposed rate: 13.753 cents per Mcf.
Pressure base: 14.65 p.s.i.a.

Shell requests a retroactive effective date of January 1, 1968, for its proposed rate increase. Good cause has not been shown for waiving the 30-day notice requirement provided in section 4(d) of the Natural Gas Act to permit an earlier effective date for Shell's rate filing and such request is denied.

Shell's proposed rate increase exceeds the applicable area ceiling rate established by the related rate schedule quality statement previously accepted pursuant to Opinion No. 468, as amended, and should be suspended for 5 months from March 4, 1968, the expiration date of the statutory notice, as ordered herein.

The proposed changed rate and charge may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the proposed change, and that Supplement No. 19 to Shell's FPC Gas Rate Schedule No. 20 be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority of the Natural Gas Act, particularly sections 4 and 15 thereof, the Commission's rules of practice and procedure, and the regulations under the Natural Gas Act (18 CFR, Ch. I), a public hearing shall be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of the proposed increased rate and charge contained in Supplement No. 19 to Shell's FPC Gas Rate Schedule No. 20.

(B) Pending such hearing and decision thereon, Supplement No. 19 to Shell's FPC Gas Rate Schedule No. 20 is hereby suspended and the use thereof deferred until August 4, 1968, and thereafter until such further time as it is made effective in the manner prescribed by the Natural Gas Act.

(C) Neither the supplement hereby suspended nor the rate schedule sought to be altered thereby, shall be changed until this proceeding has been disposed of or until the period of suspension has expired, unless otherwise ordered by the Commission.

(D) Notices of intervention or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure [18 CFR 1.8 and 1.37(f)] on or before April 15, 1968.

By the Commission.

[SEAL] GORDON M. GRANT,
Secretary.

[F.R. Doc. 68-2854; Filed, Mar. 7, 1968; 8:45 a.m.]

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[1] Address is: 50 West 50th Street, New York, N.Y. 10020, Attention: Mr. F. C. Sweat.

[2] Pertains only to additional residue volumes dedicated by Supplement No. 16.

[3] The stated effective date is the first day after expiration of the statutory notice.

[4] Initial rate authorized under temporary certificate issued Dec. 9, 1966, in Docket No. G-5013.

[Docket No. CP68-237]

TENNESSEE GAS PIPELINE CO.

Notice of Application

MARCH 4, 1968.

Take notice that on February 26, 1968, Tennessee Gas Pipeline Co., a division of Tenneco, Inc. (Applicant), Post Office Box 2511, Houston, Tex. 77001, filed in Docket No. CP68-237 an application pursuant to section 7(c) of the Natural Gas Act for a certificate of public convenience and necessity authorizing the construction and operation of pipeline facilities for the transportation of natural gas from gas reserves located in the East and West Cameron Areas, Offshore Louisiana, all as more fully set forth in the application which is on file with the Commission and open to public inspection.

Specifically, Applicant proposes to construct and operate approximately 79 miles of 26-inch pipeline from the West Cameron Block 192B central gathering platform to Station 823 at Kinder, La., and approximately 16 miles of 8-inch to 20-inch gathering and connecting lines in the Cameron Area.

The total estimated cost of the proposed facilities is $24,636,000, and Applicant states that the new facilities will provide Tennessee and its customers with additional assurance of continuity of supply from the Cameron Area.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before April 1, 1968.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 68-2855; Filed, Mar. 7, 1968; 8:45 a.m.]

[Docket No. CP68-238]

TEXAS EASTERN TRANSMISSION CORP. AND ALGONQUIN GAS TRANSMISSION CO.

Notice of Joint Application

MARCH 4, 1968.

Take notice that on February 27, 1968, Texas Eastern Transmission Corp. (Texas Eastern), Post Office Box 2521, Houston, Tex. 77001, and Algonquin Gas Transmission Co. (Algonquin), 1284 Soldiers Field Road, Boston, Mass. 02135, filed an abbreviated application with the Federal Power Commission pursuant to section 7(c) of the Natural Gas Act and the rules and regulations of the Commission issued thereunder for certificates of public convenience and necessity (a) authorizing Texas Eastern to sell 5,100 Mcf per day of natural gas to Orange and Rockland Utilities, Inc., and 4,080 Mcf per day of natural gas to Central Hudson Gas & Electric Corp. and to deliver such quantities of natural gas to Algonquin for their account at Texas Eastern's existing delivery point to Algonquin near Hanover, N.J., and (b) authorizing Algonquin to transport the aforesaid quantities of natural gas from the Hanover delivery point and deliver the gas to these two customers at previously certificated delivery points, all as more fully represented in the application which is on file with the Commission.

The application states that the proposed sale by Texas Eastern and the proposed transportation by Algonquin of the aforesaid volumes of natural gas to these two customers will be made by utilizing unallocated capacity provided by facilities previously permanently certificated by the Commission and no additional facilities are required or proposed. The application further states that the natural gas will be delivered to these two customers in parts of their market areas which are experiencing substantial growth and will enable them to save substantial sums of money in construction costs which would be required if they obtained these volumes of natural gas at other delivery points.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington, D.C. 20426, in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) and the regulations under the Natural Gas Act (§ 157.10) on or before April 1, 1968.

Take further notice that, pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing will be held without further notice before the Commission on this application if no protest or petition to intervene is filed within the time required herein, if the Commission on its own review of the matter finds that a grant of the certificate is required by the public convenience and necessity. If a protest or petition for leave to intervene is timely filed, or if the Commission on its own motion believes that a formal hearing is required, further notice of such hearing will be duly given.

Under the procedure herein provided for, unless otherwise advised, it will be unnecessary for Applicant to appear or be represented at the hearing.

GORDON M. GRANT,
Secretary.

[F.R. Doc. 68-2856; Filed, Mar. 7, 1968; 8:45 a.m.]

SECURITIES AND EXCHANGE COMMISSION

[30-244]

PENNZOIL CO.

Notice of Filing of Application for Order Declaring That Company Has Ceased To Be Holding Company

MARCH 1, 1968.

Notice is hereby given that Pennzoil Co. ("Pennzoil"), 900 Southwest Tower, Houston, Tex. 77002, a registered holding company, has filed an application with this Commission pursuant to section 5(d) of the Public Utility Holding Company Act of 1935 ("Act") requesting the Commission to declare by order that Pennzoil has ceased to be a holding company and that its registration as such be terminated.

On December 21, 1965, Pennzoil registered as a holding company under the Act. On February 7, 1968, pursuant to section 11(b)(1) of the Act, the Commission entered an order directing Pennzoil and its subsidiary company, United Gas Corp. ("United"), a gas utility company, to dispose or cause the disposition, in an appropriate manner not in contravention of the Act or the rules and regulations thereunder, of their direct and indirect interest in all of the gas utility properties owned by United.

By order dated February 21, 1968 (Holding Company Act Release No. 15980), the Commission approved an amended plan, as modified ("Plan") jointly filed by Pennzoil and United pursuant to section 11(e) of the Act. Said Plan provides, among other things, for the consolidation of Pennzoil and United into a single corporation to be called Pennzoil United, Inc. ("Consolidated Company"), and that, following the consolidation, Consolidated Company, as corporate successor to Pennzoil and United, will dispose of the retail gas distribution properties now held by United. On February 23, 1968, in accordance with the request of Pennzoil and United, the Commission filed an application in the U.S. District Court for the District of Delaware to enforce and carry out the terms of the Plan.

The application filed pursuant to section 5(d) states that upon effectiveness of the consolidation, Consolidated Company, the corporate successor to Pennzoil and United, will not be a holding company with respect to any public utility company or any company which is a holding company.

Pennzoil now applies for an order, to become effective only in the event, and on the effective date of, the consolidation of Pennzoil and United, declaring that Pennzoil has ceased to be a holding company, and in connection therewith Pennzoil and United (which has joined in the application) have agreed and consented that any such order may be subject to the condition that the Commission shall retain jurisdiction over Consolidated Company, as the corporate successor to Pennzoil and United, in the same

manner and to the same extent as though Consolidated Company were in all respects a registered holding company (1) in respect of the matter of fees and expenses over which jurisdiction was reserved in the Commission's orders of February 7, 1968, and February 21, 1968, (2) to secure compliance with the direction in the Commission's order of February 7, 1968, requiring the disposition of the gas utility properties now owned by United, and (3) to take such action as the Commission may deem necessary or appropriate with respect to the refinancing of the $214,975,000 of Pennzoil debt maturing in June and July, 1968 to be assumed by Consolidated Company.

Notice is further given that any interested person may, not later than March 20, 1968, request in writing that a hearing be held on such matter, stating the nature of his interest, the reasons for such request, and the issues of fact or law raised by said application which he desires to controvert; or he may request that he be notified if the Commission should order a hearing thereon. Any such request should be addressed: Secretary, Securities and Exchange Commission, Washington, D.C. 20549. A copy of such request should be served personally or by mail (air mail if the person being served is located more than 500 miles from the point of mailing) upon applicant at the above-stated address, and proof of service (by affidavit or, in case of an attorney at law, by certificate) should be filed with the request. At any time after said date, the application, as filed or as it may be amended, may be granted or the Commission may take such other action as it may deem appropriate. Persons who request a hearing or advice as to whether a hearing is ordered, will receive notice of further developments in this matter, including the date of the hearing (if ordered) and any postponements thereof.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 68-2870; Filed, Mar. 7, 1968; 8:46 a.m.]

SANTA FE INTERNATIONAL, INC.

Order Suspending Trading

MARCH 4, 1968.

It appearing to the Securities and Exchange Commission that the summary suspension of trading in the common stock of Santa Fe International, Inc., Denver, Colo. (Formerly Santa Fe Uranium and Oil Co., Inc.), otherwise than on a national securities exchange is required in the public interest and for the protection of investors;

It is ordered, Pursuant to section 15 (c) (5) of the Securities Exchange Act of 1934, that trading in such securities otherwise than on a national securities exchange be summarily suspended, this order to be effective for the period March 5, 1968, through March 14, 1968, both dates inclusive.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 68-2871; Filed, Mar. 7, 1968; 8:46 a.m.]

[File No. 7-2879]

UNISHOPS, INC.

Notice of Application for Unlisted Trading Privileges and of Opportunity for Hearing

MARCH 4, 1968.

In the matter of application of the Philadelphia - Baltimore - Washington Stock Exchange for unlisted trading privileges in a certain security.

The above named national securities exchange has filed an application with the Securities and Exchange Commission pursuant to section 12(f) (1) (B) of the Securities Exchange Act of 1934 and Rule 12f-1 thereunder, for unlisted trading privileges in the common stock of the following company, which security is listed and registered on one or more other national securities exchange:

Unishops, Inc., File No. 7-2879.

Upon receipt of a request, on or before March 19, 1968, from any interested person, the Commission will determine whether the application shall be set down for hearing. Any such request should state briefly the nature of the interest of the person making the request and the position he proposes to take at the hearing, if ordered. In addition, any interested person may submit his views or any additional facts bearing on the said application by means of a letter addressed to the Secretary, Securities and Exchange Commission, Washington 25, D.C., not later than the date specified. If no one requests a hearing, this application will be determined by order of the Commission on the basis of the facts stated therein and other information contained in the official files of the Commission pertaining thereto.

For the Commission (pursuant to delegated authority).

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F.R. Doc. 68-2872; Filed, Mar. 7, 1968; 8:47 a.m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATION FOR RELIEF

MARCH 5, 1968.

Protests to the granting of an application must be prepared in accordance with Rule 1100.40 of the general rules of practice (49 CFR 1100.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 41250—*Soda ash from Freeport, Tex., to Fernald, Ohio.* Filed by Southwestern Freight Bureau, agent (No. B-9057), for interested rail carriers. Rates on soda ash (other than modified soda ash), in bulk in covered hopper cars, in carloads, minimum 190,000 pounds, from Freeport, Tex., to Fernald, Ohio.

Grounds for relief—Barge-truck competition.

Tariff—Supplement 129 to Southwestern Freight Bureau, Agent, Tariff ICC 4615.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 68-2882; Filed, Mar. 7, 1968; 8:47 a.m.]

[Section 5a application 98]

INTERSTATE TARIFF BUREAU, INC.

Agreement

MARCH 4, 1968.

The Commission is in receipt of the above-entitled and numbered application for approval of an agreement under the provision of Section 5a of the Interstate Commerce Act.

Filed January 24, 1968, by: James C. McGrath, 25 Riverside Drive, Berea, Ohio 44017.

Agreement involves: Agreement between and among common carriers by motor vehicle, members of Interstate Tariff Bureau, Inc., relating to practices and procedures for the joint consideration, initiation, or establishment of rates, rules, and provisions, applicable to the transportation of iron and steel, and iron and steel articles between points in the States of Connecticut, Delaware, Illinois, Indiana, Iowa, Kentucky, Maryland, Massachusetts, Michigan, Missouri, New Jersey, New York, Ohio, Pennsylvania, Rhode Island, Tennessee, Virginia, West Virginia, and Wisconsin, and the District of Columbia.

The complete application may be inspected at the Office of the Commission in Washington, D.C.

Any interested person desiring to protest and participate in this proceeding shall notify the Commission in writing within 20 days from the date of this notice. As provided by the general rules of practice of the Commission, persons other than applicants should fully disclose their interest, and the position they intend to take with respect to the application. Otherwise, the Commission, in its discretion, may proceed to investigate and determine the matters involved without public hearing.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 68-2883; Filed, Mar. 7, 1968; 8:47 a.m.]

[Notice 562]

MOTOR CARRIER TEMPORARY AUTHORITY APPLICATIONS

MARCH 5, 1968.

The following are notices of filing of applications for temporary authority under section 210a(a) of the Interstate Commerce Act provided for under the new rules of Ex Parte No. MC 67 (49 CFR Part 340), published in the FEDERAL REGISTER, issue of April 27, 1965, effective July 1, 1965. These rules provide that protests to the granting of an application must be filed with the field official named in the FEDERAL REGISTER publication, within 15 calendar days after the date of notice of the filing of the application is published in the FEDERAL REGISTER. One copy of such protest must be served on the applicant, or its authorized representative, if any, and the protests must certify that such service has been made. The protests must be specific as to the service which such protestant can and will offer, and must consist of a signed original and six copies.

A copy of the application is on file, and can be examined at the Office of the Secretary, Interstate Commerce Commission, Washington, D.C., and also in the field office to which protests are to be transmitted.

MOTOR CARRIERS OF PROPERTY

No. MC 4405 (Sub-No. 458 TA), filed February 28, 1968. Applicant: DEALERS TRANSIT, INC., 7701 South Lawndale Avenue, Chicago, Ill. 60652. Applicant's representative: R. O. Homberger (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Trailers*, except those designed to be drawn by passenger automobiles, in initial truckaway service, from Plaistow, N.H., to points in the United States including Alaska, but excluding Hawaii, for 180 days. Supporting shipper: Process Engineering, Inc., Post Office Box 467, Plaistow, N.H. 03865. Send protests to: Roger L. Buchanan, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 219 South Dearborn Street, Room 1086, Chicago, Ill. 60604.

No. MC 95540 (Sub-No. 727 TA), filed February 28, 1968. Applicant: WATKINS MOTOR LINES, INC., 1120 West Griffin Road, Lakeland, Fla. 33801. Applicant's representative: Hoyt Starr (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Meats, meat products, and meat byproducts and articles produced by meat packing companies*, as described in sections A and C of appendix I to the *Report in Descriptions in Motor Carrier Certificates* 61 M.C.C. 209 and 766, from Guymon, Okla., to Jacksonville, Tampa, Orlando, Fort Lauderdale, West Palm Beach, Miami, Homestead, Ocala, Tallahassee, Pensacola, and Lakeland, Fla., for 180 days. Supporting shipper: Swift & Co., Box 68, Guymon, Okla. 73942. Send protests to: District Supervisor Joseph B. Teichert, Interstate Commerce Commission, Bureau of Operations, Room 1226, 51 Southwest First Avenue, Miami, Fla. 33130.

No. MC 107496 (Sub-No. 637 TA), filed February 29, 1968. Applicant: RUAN TRANSPORT CORPORATION, Keosauqua Way at Third, 50309, Post Office Box 855, Des Moines, Iowa 50304. Applicant's representative: H. L. Fabritz (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Detergent intermediates*, in bulk, from (1) Edwardsville, Kans., to St. Louis, Mo.; Philadelphia and Bristol, Pa., and points in Texas; (2) from Philadelphia, Pa., to Fernald, Ohio; (3) from Fernald, Ohio, to Edwardsville, Kans., and *detergent intermediate ingredients*, in bulk from Philadelphia, Pa., to Fernald, Ohio, for 180 days. Supporting shipper: Textilana-Nease, Inc., Box 326, Edwardsville, Kans. 66022. Send protests to: Ellis L. Annett, District Supervisor, Interstate Commerce Commission, Bureau of Operation, 677 Federal Building, Des Moines, Iowa 50309.

No. MC 123502 (Sub-No. 23 TA), filed February 28, 1968. Applicant: FREE STATE TRUCK SERVICE, INC., 10 Vernon Avenue, Glen Burnie, Md. 21061. Applicant's representative: Donald E. Freeman, Post Office Box 806, Westminster, Md. 21157. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Aluminum smelting residue*, in bulk, in dump vehicles, (1) from Millbury, Mass., to Philadelphia, Pa., (2) from Ellenville, N.Y., to Philadelphia, Pa., (3) from South Amboy and Edison, N.J., to Philadelphia, Pa., for 180 days. Supporting shipper: Atlantic Metals Corp., Orthodox Street at Delaware River, Philadelphia, Pa. Send protests to: William L. Hughes, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 1125 Federal Building, Baltimore, Md. 21201.

No. MC 127170 (Sub-No. 5 TA), filed February 29, 1968. Applicant: MYRL D. CROWE, doing business as TRUCK RENTAL COMPANY, Argyle, Iowa 52619. Applicant's representative: Thomas F. Kilroy, Colorado Building, 1341 G Street NW., Washington, D.C. 20005. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Fertilizer and fertilizer compounds*, dry, in containers; insecticides, in containers; (weed killing compounds), in containers; and *applicators for these commodities*, from points in Des Moines County and Lee County, Iowa, to points in North Dakota, South Dakota, Nebraska, Kansas, Missouri, Minnesota, Wisconsin, Illinois, Kentucky, Indiana, Michigan, and Ohio, for 180 days. Supporting shipper: Chevron Chemical Co., Post Office Box 282 Ortho Way, Fort Madison, Iowa 52627. Send protests to: Chas. C. Biggers, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 332 Federal Building, Davenport, Iowa 52801.

No. MC 127524 (Sub-No. 7 TA), filed February 29, 1968. Applicant: QUADREL BROS. TRUCKING COMPANY, INC., 1603 Hart Street, Rahway, N.J. 07065. Applicant's representative: Stephen T. Sliker (same address as above). Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Corn starch*, in bulk, in hopper-type vehicles, from North Bergen, N.J., to Tullytown, Pa. Restricted to shipments having a prior movement by rail, for 150 days. Supporting shipper: Clinton Corn Processing Co., Division of Standard Brands Inc., Clinton, Iowa 52733. Send protests to: District Supervisor Walter J. Grossmann, Interstate Commerce Commission, Bureau of Operations, 970 Broad Street, Newark, N.J. 07102.

No. MC 128814 (Sub-No. 16 TA), filed February 29, 1968. Applicant: TRI-STATE MOTOR TRANSIT CO., Post Office Box 113, East on Interstate Business Route 44, Joplin, Mo. 64801. Applicant's representative: Max G. Morgan, 450 American National Building, Oklahoma City, Okla. 73102. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Explosives, blasting agents, blasting materials and supplies*, from Freeburg, Ill., to points in Ohio, Virginia, West Virginia, and Michigan, for 150 days. Supporting shipper: Hercules, Inc., Suite 500, 120 Oakbrook Center Mall, Oak Brook, Ill. 60521. Send protests to: H. J. Simmons, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 1100 Federal Office Building, 911 Walnut Street, Kansas City, Mo. 64106.

No. MC 129610 (Sub-No. 2 TA), filed February 28, 1968. Applicant: MANUEL MARIN, Calle 7A No. 752, Ensenada, Baja Calif., Republic of Mexico. Applicant's representative: Donald Murchison, Suite 211, Allen Paris Building, 211 South Beverly Drive, Beverly Hills, Calif. 90212. Authority sought to operate as a *contract carrier*, by motor vehicle, over irregular routes, transporting: *Tin plate or fiber containers*, from points in Los Angeles, Riverside, Orange, and San Bernardino Counties, Calif., to port of entry at or near San Ysidro, Calif., on the international boundary line between the United States and Mexico, for 150 days. Supporting shipper: Fabricas Monterrey, S.A., Bronce Y Reformax, Apartado 804, Ensenada, Baja Calif., Republic of Mexico. Send protests to: District Supervisor W. J. Huetig, Interstate Commerce Commission, Bureau of Operations, Room 7708 Federal Building, 300 North Los Angeles Street, Los Angeles, Calif. 90012.

No. MC 129658 (Sub-No. 1 TA), filed February 29, 1968. Applicant: MARKO TRUCKING CORPORATION, 1804 Baldwin Court, Trenton, Mich. 48183. Applicant's representative: Frank J. Kerwin, Jr., 900 Guardian Building, Detroit, Mich. 48226. Authority sought to operate as a *common carrier*, by motor vehicle, over irregular routes, transporting: *Exothermic materials and rimming agents*, on flat bed equipment, from McKees Rocks, Pa., to points in Michigan, Ohio, Indiana, and Illinois, under continuing contract or contracts with Metallurgical Exoproducts Corp. of McKees Rocks, Pa., for 180 days. Supporting shipper: Metal-

lurgical Exoproducts Corp., Post Office Box 193, McKees Rocks, Pa. Send protests to: Gerald J. Davis, District Supervisor, Interstate Commerce Commission, Bureau of Operations, 1110 Broderick Tower Building, 10 Witherell Street, Detroit, Mich. 48226.

By the Commission.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 68-2884; Filed, Mar. 7, 1968; 8:48 a.m.]

[Notice 102]

MOTOR CARRIER TRANSFER PROCEEDINGS

MARCH 5, 1968.

Synopses of orders entered pursuant to section 212(b) of the Interstate Commerce Act, and rules and regulations prescribed thereunder (49 CFR Part 279), appear below:

As provided in the Commission's special rules of practice any interested person may file a petition seeking reconsideration of the following numbered proceedings within 20 days from the date of publication of this notice. Pursuant to section 17(8) of the Interstate Commerce Act, the filing of such a petition will postpone the effective date of the order in that proceeding pending its disposition. The matters relied upon by petitioners must be specified in their petitions with particularity.

No. MC-FC-70165. By order of February 28, 1968, the Transfer Board approved the transfer to Ed Holestine Truck Lines, Inc., Independence, Kans., of the operating rights in certificates Nos. MC-47583 (corrected), MC-47583 (Sub-No. 5), and MC-47583 (Sub-No. 7) issued September 9, 1943, February 27, 1946, and July 12, 1967, respectively, to Ed Holestine, Kansas City, Kans., authorizing the transportation, over irregular routes, of steel and iron tanks, building materials, feed, pipe and structural steel, livestock, seed, agricultural machinery, general commodities, and machinery, materials, supplies, and equipment used in the production, etc., of natural gas and petroleum, between various points in Kansas, Missouri, and Oklahoma. Lowell L. Knipmeyer, 2804 Power and Light Building, Kansas City, Mo. 64105, and Tom Crossan, 212 East Myrtle Street, Independence, Kans. 67301, attorneys for transferor and transferee.

No. MC-FC-70235. By order of February 28, 1968, the Transfer Board approved the transfer to Hourly Messengers, Inc., Philadelphia, Pa., of the operating rights in permits Nos. MC-102799, MC-102799 (Sub-No. 2), MC-102799 (Sub-No. 3), MC-102799 (Sub-No. 4) (Corrected), MC-102799 (Sub-No. 6), MC-102799 (Sub-No. 8), MC-102799 (Sub-No. 9), and MC-102799 (Sub-No. 10), issued April 19, 1956, April 13, 1959, January 21, 1960, October 10, 1960, April 19, 1961, June 20, 1961, October 29, 1962, and February 4, 1963, respectively, to Package Messengers, Inc., Philadelphia, Pa., authorizing the transportation of medical supplies and materials, and dental, optical, photographic, photo engraving, and photo finishing supplies, materials, and products; and processed film and unprocessed film, from, to, and between specified points in Pennsylvania, New Jersey, and Delaware. V. Baker Smith, 123 South Broad Street, Philadelphia, Pa. 19109, attorney for applicants.

No. MC-FC-70261. By order of February 28, 1968, the Transfer Board approved the transfer to West Transfer Co., a corporation, Asheville, N.C., of the operating rights in permit No. MC-103335 issued January 3, 1967, to Malvin J. Parham, doing business as West Transfer Co., Asheville, N.C., authorizing the transportation of, explosives and blasting supplies, between points in North Carolina, South Carolina, Georgia, and Tennessee. Robert R. Williams, Jr., Post Office Box 7316, Asheville, N.C. 28807, attorney for applicants.

No. MC-FC-70263. By order of February 28, 1968, the Transfer Board approved the transfer to McCourt Cartage, Ltd., Windsor, Ontario, Canada, of the operating rights in certificate No. MC-93315 issued February 16, 1950, to John M. McCourt, doing business as McCourt Cartage Service, Windsor, Ontario, Canada, authorizing the transportation of, general commodities, including household goods, but with certain other exceptions, between the United States-Canadian border, at Detroit, Mich., on the one hand, and, on the other, points in the Detroit, Mich., commercial zone as defined by the Commission. John W. Ester, Suite 1700, 1 Woodward Avenue, Detroit, Mich. 48207, attorney for applicants.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 68-2885; Filed, Mar. 7, 1968; 8:48 a.m.]

[Section 5a application 65, Amdt. 3]

NATIONAL MOTOR EQUIPMENT INTERCHANGE

Agreement

MARCH 4, 1968.

The Commission is in receipt of a petition in the above-entitled proceeding for approval of the revision of the agreement and bylaws therein approved.

Filed February 20, 1968, by Kenneth R. Hauck, Attorney-in-Fact, 1616 P Street NW., Washington, D.C. 20036.

The revision involves: Incorporation of the Bylaws of the Association and the Equipment Interchange Agreement into a single instrument and setting out the composition, functions and procedures of the Rental Charge Committee.

The petition is docketed and may be inspected at the office of the Commission in Washington, D.C.

Any interested person desiring to protest and participate in this proceeding shall notify the Commission in writing within 20 days from the date of this notice. As provided by the general rules of practice of the Commission, persons other than applicants should fully disclose their interest, and the position they intend to take with respect to the petition. Otherwise, the Commission, in its discretion, may proceed to investigate and determine the matters involved without public hearing.

[SEAL] H. NEIL GARSON, *Secretary.*

[F.R. Doc. 68-2886; Filed, Mar. 7, 1968; 8:48 a.m.]

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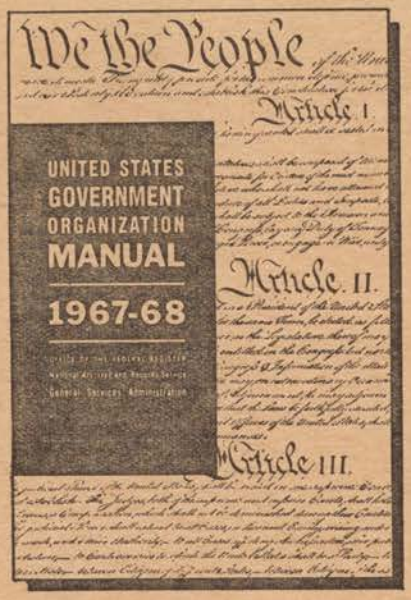
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